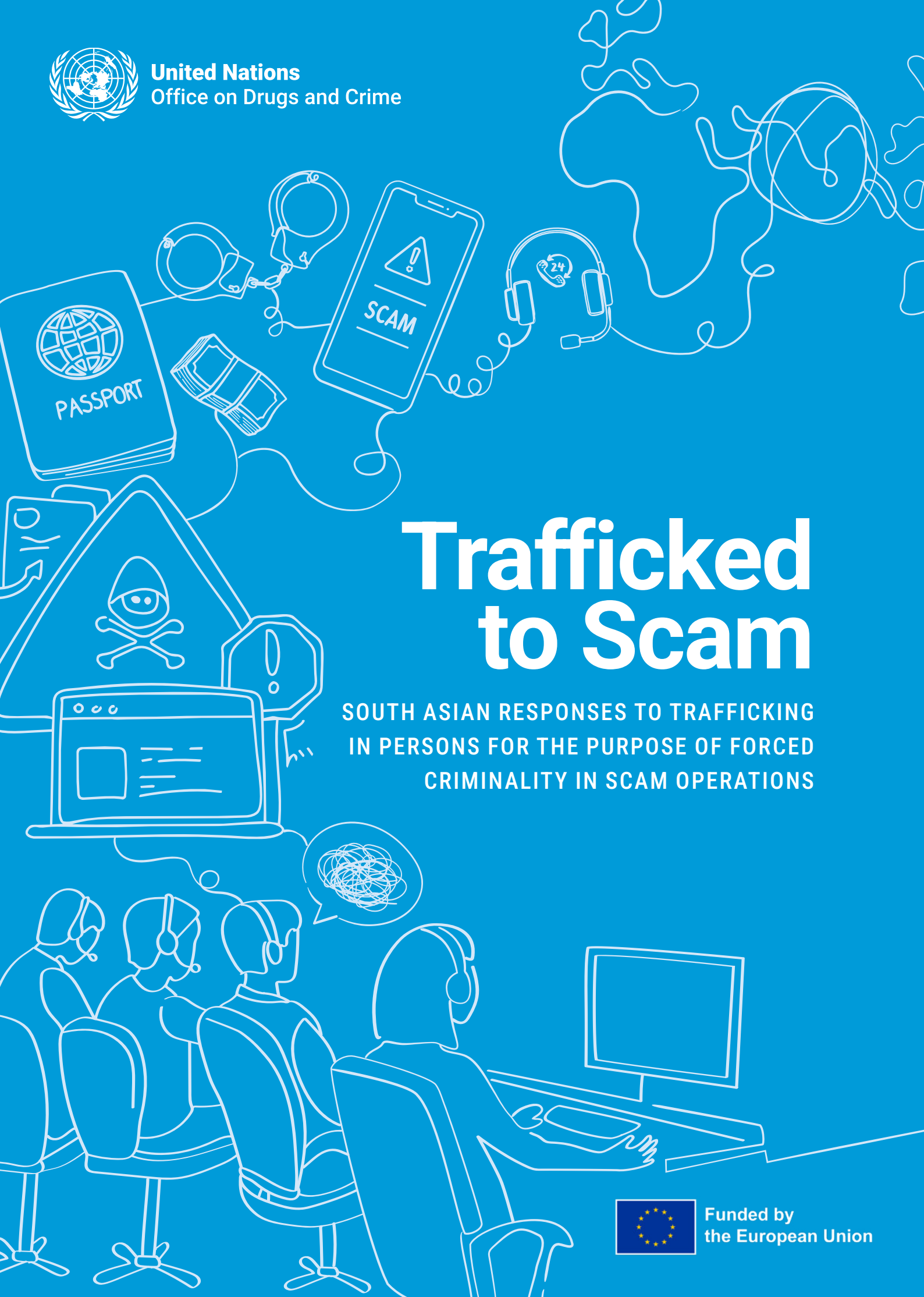
United Nations
Office on Drugs and Crime



Trafficked to Scam

SOUTH ASIAN RESPONSES TO TRAFFICKING IN PERSONS FOR THE PURPOSE OF FORCED CRIMINALITY IN SCAM OPERATIONS

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Photo: Magnific

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ACRONYMS

AHTB	Anti-Human Trafficking Bureau
AHTSIB-CID	Anti-Trafficking and Smuggling Investigations Bureau of the Sri Lanka Police Criminal Investigation Department
AHTUs	Anti-Human Trafficking Units
AI	Artificial Intelligence
ASEAN	The Association of Southeast Asian Nations
ATO	Anti-Trafficking in Persons Office
BEPZA	Bangladesh Export Processing Zone Authority
BHTPA	Bangladeshi Hi-Tech Park Authority
BIMSTEC	Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation
BMET	Bureau of Manpower, Employment and Training
BRAC	Bangladesh Rural Advancement Committee
CBI	Central Bureau of Investigation
C3	Cyber Crime Centre
CCIB	Central Crime Investigation Bureau
CCU	Cyber Crime Unit
CIB	Central Investigation Bureau
CID	Criminal Investigation Department
CSOs	Civil Society Organisations
CSE	Commercial sexual exploitation
CTTC	Counter Terrorism and Transnational Crime
DLO	Department of Law and Order
DMP	Cyber Crime Investigation Division
DNR	Department of National Registration
DoEE	Department of Employment and Entrepreneurship
ETA	Electronic Transactions Act 2008
ETA	Electronic Travel Authorization
EZ	Economic Zones
EPZs	Exporting Processing Zones
FATF	Financial Action Task Force
FEA	Foreign Employment Act, 2007
FEB	Foreign Employment Board
GASO	Global Anti-Scam Organization
GDP	Gross Domestic Product
G2G	Government to Government
HRC	Humanity Research Consultancy
HTTCA	Human Trafficking and Transportation (Control) Act 2007
ICT	Information and Communication Technology
IGP	Inspector General of Police
IJM	International Justice Mission
IOM	International Organisation for Migration
IT	Information Technology
Lao PDR	Lao People's Democratic Republic
MEWOE	Ministry of Expatriates, Welfare and Overseas Employment
MHA	Ministry of Home Affairs
MLA	Mutual Legal Assistance
MLATs	Mutual Legal Assistance Treaties
MLM	Multilevel marketing
MoE	Ministry of Education
MOFA	Ministry of Foreign Affairs
MoHST	Ministry of Homeland Security and Technology
MoICE	Ministry of Industry, Commerce and Employment

MoLE	Ministry of Labour and Employment
MoLESS	Ministry of Labour, Employment and Social Security
MoLJPA	Ministry of Law, Justice, and Parliamentary Affairs
MoSW	Ministry of Social Welfare
MOU	Memorandum of Understanding
MoWCA	Ministry of Women and Children Affairs
MoWCSC	Ministry of Women, Children and Senior Citizens
MPS	Maldives Police Service
NAHTCC	National Anti-Human Trafficking Coordination Committee
NAHTTF	National Anti-Human Trafficking Task Force
NCB	National Central Bureau
NCCHT	National Committee for Controlling Human Trafficking
NCCT	National Committee for Counter Trafficking
NGO	Non-governmental Organizations
NID	National Investigation Department
NRMA	Non-Resident Madhesi Association
NRM	National Referral Mechanism
OEMA	Overseas Employment and Migrants Act 2013
OHCHR	Office of the United Nations High Commissioner for Human Rights
PBI	Police Bureau of Investigation
PGO	Prosecutor General's Office
PISCES	Personal Identification Secure Comparison and Evaluation System
POGO	Philippine Offshore Gaming Operator
PPP	Public Private Partnership
PSAs	Public Service Announcements
PSD	Public Security Division
PSHTMS	Prevention and Suppression of Human Trafficking and Migrant Smuggling Act 2026
RBOEAs	Registered Bhutanese Overseas Employment Agents
RBP	Royal Bhutan Police
SAARC	South Asian Association for Regional Cooperation
SEZ	Special Economic Zones
SLAPP suits	Strategic Lawsuits against Public Participation
SLBFE	Sri Lanka Bureau of Foreign Employment
SOM	Smuggling of Migrants
SOPs	Standard Operating Procedures
STF	Special Task Force
UAE	United Arab Emirates
UK	United Kingdom
UNCAC	United Nations Convention against Corruption
UNCC	United Nations Convention against Cybercrime
UNODC	United Nations Office on Drugs and Crime
ROSEAP	Regional Office for South-East Asia and the Pacific
UNTOC	United Nations Convention against Transnational Organized Crime
USA	United States of America
VPNs	Virtual Private Networks
WCPD	Woman and Child Protection Division



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EXECUTIVE SUMMARY

Trafficking in persons for the purpose of forced criminality in scam operations has quickly become one of the most significant and rapidly evolving global human trafficking challenges. What began as a largely South-East Asian phenomenon — concentrated in compound-based operations in Cambodia, Lao People's Democratic Republic (PDR) and Myanmar – has fundamentally shifted and has been detected across the globe, from South Asia, Africa, Europe, Latin America, the Caribbean and elsewhere.

This report, developed under the UNODC project "Preventing and Addressing Trafficking in Human Beings and Smuggling of Migrants in South Asia" (2024-2027), offers the current situational context and responses to the phenomenon in five South Asian countries – Bangladesh, Bhutan, Maldives, Nepal and Sri Lanka.[1] It draws upon in-country consultations conducted with 103 stakeholders between March and May 2026 and a review of available open-source materials.

While scam operations is a complex and multidimensional organized crime involving various intertwined criminalities including cybercrime, trafficking in persons, corruption, extortion, money laundering and more, this report examines this poly-criminality through a counter-trafficking lens. It looks at the situation and trends across the region, both the trafficking of South Asian nationals abroad and the emergence of scam operations within the region. It then offers an overview of criminal justice responses along the three interrelated pillars of prosecution, protection, and prevention. Finally, it proposes a set of recommendations against each pillar with the aim of supporting the criminal justice stakeholders' efforts to build evidence-based strategies and recalibrate its responses against this urgent crisis of criminality.

1 The five South Asian Member States covered under this report are those in which the UNODC Project "Preventing and Addressing Trafficking in Human Beings and Smuggling of Migrants in South Asia" operates in: Bangladesh, Bhutan, Maldives, Nepal, and Sri Lanka.

KEY FINDINGS

Current Situation

1. **South Asia is a key region of origin for trafficking into forced criminality, yet data is lacking:** Out of the five South Asian countries covered under this report, Bangladesh, Nepal and Sri Lanka are the common countries of origin for victims of trafficking into scam operations abroad. While there have been thousands of repatriations back to their countries, uneven or lack of screening processes in both destination and origin countries mean that many victims are unaccounted for. Data is not consistently shared between origin, transit and destination countries, nor between agencies within them, meaning that accurate intelligence pictures are not available. As a result, countries in South Asia currently do not have reliable data of how many of its nationals remain trapped in scam operations abroad nor about the potential trafficking that is occurring to and within their own countries.

2. **South Asia is an emerging hub for scam operations:** Scam operations – both large and small – have been raided in Bangladesh, Nepal, and Sri Lanka, with disruptions sharply increasing in 2026. Amidst heightened awareness and enforcement action in South-East Asia, there has been dispersal of these sophisticated criminal networks into other regions, including South Asia.

3. **Scam operations have been detected in a range of environments and settings across South Asia:** The scam operations uncovered in the region have been found in various locations, ranging from private villas, apartment buildings, hotels and office buildings. In some cases, entire buildings are rented out at inflated prices in exchange for the landlord's silence. In some others, scam operations take place under the cover of legitimate and registered businesses. They have also been detected in various environments, from large urban centres to more remote rural areas. Unlike in South-East Asia, where Special Economic Zones (SEZs) and casinos have been misused by organized criminal groups as a hub for scam operations and related criminal activities, the same detection has yet been made by South Asian authorities.

4. **Profiles of persons encountered in South Asian scam operations are similar to those encountered elsewhere:** As in South-East Asia and elsewhere, people encountered at disrupted scam operations are predominantly adult males between the ages of 20 and 40. While there is a wide range of nationalities encountered in scam operations within the region, nationals of some countries are more commonly encountered than others.



5. **South Asian vulnerabilities to the crime type are complex and mirror the experiences of South-East Asia:** The experiences and lessons learned by South-East Asian countries give a stark warning to South Asia as this criminal phenomenon spreads to the region.

    - Like South-East Asia, South Asia is a region with significantly porous land borders and established smuggling routes that can be taken advantage of by transnational traffickers.

    - There are hundreds of Special Economic Zones (SEZs) across South Asia at various stages of development. There is much to be leveraged from the experiences and lessons learned by South-East Asian countries, including in relation to the governance structures of SEZs, lack of or limited law enforcement involvement despite legitimate jurisdictional authority, and significant levels of foreign direct investment.

    - Within both SEZs and beyond, there are lessons to be learned from the South-East Asian experience, in which the rapid rise of large infrastructural and investment projects has been exploited by powerful organized criminal groups posing as legitimate entities to gain access to the local economies and actors.

    - Similarly, the rapid growth of casino, online gambling, and gaming industries as well as social media platforms, which are largely un- or underregulated, pose substantial risk of unchecked money laundering, trafficking in persons and corruption on an industrial scale.

    - Lastly, the combination of remittance-dependent economies against geopolitical instability around the globe, including in regions with large South Asian migrant workers, may amplify the vulnerability of South Asians to victimization as well as their willingness to participate in criminality.



Photo: Magnific

Prosecution

6. **Prosecution challenges are operational, not legislative:** The legal frameworks of all five South Asian countries are broadly equipped to capture the crime of trafficking for the purpose of forced criminality, including for scam operations. To note, international instruments on trafficking in persons were drafted to be non-exhaustive as to the types of exploitation for which a victim can be trafficked. Around the world, States have taken different legislative approaches to criminalizing trafficking, meaning that trafficking for the purpose of forced criminality in scam operations may be captured in various ways, e.g. as forced labour, slavery, a practice similar to slavery; as another form of exploitation; or as a non-specified form of exploitation under non-exhaustive provisions. How the South Asian countries will apply their legislative provisions is not yet known, given that – with a few exceptions – there have so far been few successful prosecutions of this crime type, let alone those that have targeted high-level actors.

7. **Evidence gathering is particularly challenging in this crime type:** Challenges in gathering evidence, including financial and forensic evidence within the confines of time permitted, hamper criminal justice response. Resource and capacity limitations of law enforcement at sites where scam operations take place, the large number of people typically encountered at such sites, and the slow and bureaucratic processes required to obtain evidence across borders, mean that cases rarely make their way to the court system.

8. **Investigations are reactive rather than proactive:** Law enforcement actions against scam operations have generally been the result of tip-offs, rather than built on the basis of proactive intelligence-led targeting of criminal networks. Consequently, authorities have so far taken a pragmatic approach in processing the people encountered with immigration, fraud, or labour offences. Furthermore, where trafficking cases are pursued, they often target only low-level offenders, such as recruiters, brokers, transporters, rather than proactively targeted to build cases against organized crime groups involved in serious crimes including trafficking in persons. As a result, disruptive opportunities are missed.

9. **Insufficient interagency coordination hampers effective response:** Despite the multi-agency response that is required to respond to this complex phenomenon, including those mandated to combat cybercrime, money laundering, trafficking in persons and other organized crime, there is insufficient coordination between the relevant agencies. As such, there is a risk that persons who have been trafficked into forced criminality in scam operations may not be identified as victims of trafficking, and that opportunities to build a stronger intelligence picture against serious criminals involved in operations will be lost.

10. **Formal cooperation attempts are rare despite strong legal basis:** The nature of the crime requires international cooperation at bilateral, regional and trans-regional levels to obtain evidence against high-level actors involved in transnational organized crime. Despite there being strong legal frameworks in place to provide for international and inter-institutional cooperation, attempts to initiate it are few and far in between, owing to the slow and cumbersome bureaucratic processes involved and the perception that such efforts will not yield results. Opportunities to build informal international relationships between counterparts were highlighted as a means to enhance regional and transnational cooperation against this crime type.

Protection

11. **Inconsistent or insufficient screening for potential trafficking victims is the most urgent protection gap across the region:** People returning to South Asian countries from scam operations abroad are not screened for potential trafficking as a matter of course. Similarly, there are significant inconsistencies in the screening approaches taken to the people encountered in scam operations within the region. Various challenges exist, including inadequate human resources and capacities, challenges relating to languages spoken by foreign nationals at these locations, the fact that the officials involved in carrying out operations may not understand trafficking dimensions, and the challenges associated with processing positively identified victims. These all speak to the need for a multi-dimensional response to address this gap.

12. **Available protection and assistance services available to victims of trafficking into forced criminality in scam operations are insufficient:** Globally, victims of trafficking into forced criminality in scam operations are primarily adult males. However, protection and assistance services in South Asia are primarily designed for female and child victims of trafficking, meaning that adult males may not have access to services they require. States may need to reassess their response to ensure that victims have access to services they need (whether inside the counter-trafficking framework or otherwise) as victims of serious crime.

13. **Available resources fall short of meeting the needs for repatriation and reintegration:** There is a significant and serious gap in support available to repatriate South Asian victims of trafficking from abroad, often leading to victims incurring debts to self-fund their return and contributing to a cycle of vulnerability to re-trafficking or participating in criminal activities. Existing government services designed to support migrant workers abroad are not accessible to those who have been trafficked into forced criminality. Furthermore, mechanisms to repatriate and reintegrate foreign individuals encountered at scam operations within South Asian countries are also lacking, resulting in their treatment – whether as criminals or irregular migrants deported for immigration violations – being dependent on their nationality.

14. **The non-punishment principle is unevenly understood and applied:** While there is general acceptance that those who are involved in scam operations abroad are likely to have been trafficked into such situations, the same assumption is not applied to those involved in scam operations located within the countries. The key challenge in applying the non-punishment principle is inconsistencies in victim screening and identification. The non-punishment principle cannot be applied to victims who are not identified. However, there are significant challenges associated with identifying victims who have been trafficked to participate in unlawful activities in cases where victim and perpetrator profiles may overlap. While not all countries have legal provisions that specifically give effect to the non-punishment principle, there is scope for criminal justice practitioners to exercise discretion.

Prevention

15. **Awareness raising efforts may not reach nor influence their target audience:** Many State and non-state actors have undertaken efforts to raise awareness of the risk of being trafficked into scam operations abroad, but the impact of such campaigns is difficult to measure. A key concern raised by government authorities was that the social media platforms that they post their messages on may not be the ones used by their target audience. Furthermore, awareness raising efforts are not agile nor wide-reaching enough to counter the sophisticated targeted online recruitment methods of traffickers. No examples were found of efforts to raise awareness of the risk of being trafficked into scam operations within South Asia.

16. **Measures to promote safe and orderly migration can be further strengthened to improve prevention efforts:** Regulation of recruitment agencies remain insufficient across the region to guard against the recruitment of victims of trafficking into scam operations. The high cost and limited opportunities for regular migration continue to divert people to irregular channels and increase their vulnerability to trafficking. Inward migration governance has not been equipped to screen or monitor foreigners who are entering countries in the region, identify potential victims of trafficking, or detect criminals involved in scam operations or other serious transnational crimes, including trafficking in persons. Strengthening prevention requires coordinated engagement between countries of origin, transit and destination, including joint awareness campaigns and oversight of recruitment practices.

17. **There is an urgent need to regulate sectors that are highly susceptible to being misused by transnational organized criminal actors:** In several regions around the world, SEZs, casinos and online gambling sectors, and large-scale infrastructure projects have all been exploited by organized criminal groups behind the phenomenon of trafficking-fuelled scam operations. Countries in South Asia should take the opportunity to learn from experiences elsewhere to strengthen their resilience and law enforcement capacity to prevent this same criminal phenomenon from rising in this region.

South Asia stands at a critical juncture. Organized criminality behind scam operations is proliferating rapidly across the region and the regulatory and criminal justice strategies to confront it must keep pace. Countries in the region have an advantage that other affected countries did not – they can learn from those experiences to inform and refine their own efforts. The conditions that enabled scam operations to be entrenched as a criminal enterprise in South-East Asia, and the victimization of hundreds of thousands of trafficked people from across the globe as well as millions of victims of scam operations, are also evident in this region. So too are the combination of enablers, such as under-regulated SEZs, opaque casino and gambling industries, insufficient inter-agency coordination, counter-trafficking responses that are siloed from efforts to respond to a range of complex crime types, the lack of proactive investigation and inadequate victim identification.

In recalibrating the criminal justice response towards a comprehensive, coordinated, and proactive approach, some pragmatic truths must be acknowledged. Counter-trafficking responses that have not met the challenge of other forms of trafficking will be ineffective to rise to the challenge of this more complex threat. Without sufficient resources, National Action Plans and policy frameworks will only remain aspirational rather than actionable. It also must be conceded that the region – and the world – faces serious challenges in disrupting powerful organized criminal groups whose influence extends over public and private institutions for illicit gain. An effective response goes well beyond what criminal justice response alone can achieve. The limitations are undeniable, but the cost of inaction far outweighs the cost of failing to rise to the challenge that the region is confronted with.

RECOMMENDATIONS

The recommendations offered in this report do not address the full scope of the problem, which must cut across economic, social, cultural, and political responses. Instead, the recommendations are offered under three pillars of prosecution, protection, and prevention and are targeted to criminal justice and other stakeholders with a mandate to address trafficking in persons.

Prosecution

1. Raise awareness among the criminal justice practitioners that the existing trafficking in persons legislation are applicable to the exploitative context of forced criminality in scam operations.

2. Strengthen law enforcement capacity to apply special investigative techniques and conduct financial and cyber investigations to gather evidence against high-level perpetrators and to reduce overreliance on testimonies of victims of trafficking.

3. Equip the agencies mandated to address trafficking, organized crime and cybercrime stakeholders with sufficient human, financial and technological resources to address trafficking into scam operations.

4. Strengthen capacity of agencies mandated to address organized crime and cybercrime to identify potential victims of trafficking, with emphasis on the irrelevance of victim consent where traffickers use means to traffic them.

5. Strengthen interagency coordination and integrate existing cybercrime, organized crime and trafficking in persons responses in coordinated efforts to address the nexus between these crimes.

6. Identify and address procedural obstacles (e.g., limited window of time to interview large numbers of persons taken into custody) and strive to expedite cases of trafficking into forced criminality with due respect for procedural rights of parties.

7. Proactively pursue and prioritize available resources to target the organized criminal infrastructure behind scam operations and its high-level organizers rather than lower-level workforce and to confiscating assets and proceeds of crime.

8. Where trafficking charges are not feasible, explore opportunities to target and disrupt high-level criminal actors by applying alternative offences that are commensurate to the gravity of the crime.

9. Where prosecutions of high-level suspects are not pursued, consider informal and formal cooperative opportunities to proactively share information and support other jurisdictions to bring perpetrators to justice.

10. Leverage existing international, regional and bilateral regimes to create a South Asian regional mechanism to share information on trafficking into forced criminality in scam operations and related crimes.

Protection

1. Sensitize frontline officers to the irrelevance of victim consent where traffickers have used means as well as the many reasons why victims of trafficking into forced criminality may not identify themselves as victims of trafficking.

2. Train frontline officers to understand and fulfill their duty to proactively screen for victims of trafficking among persons encountered in scam operations and enhance their capacity to identify and refer victims of trafficking to available protection and assistance services.

3. Develop or amend multi-agency Standard Operating Procedures for victim-sensitive law enforcement raids of scam operations to strengthen coordination, evidence gathering, chain of custody, and victim screening.

4. Explore opportunities to draw on insights of victim-survivors to develop screening indicators, tools, procedures and other resources to identify victims of trafficking into forced criminality, including in large-scale scam operations.[2]

5. Consult practitioners, experts and victim-survivors to determine whether existing victim protection, assistance and reintegration services are fit for purpose and sufficiently tailored for victims, including for adult foreign males.

6. Map the assistance and protection services available to victims of crime at scam operations who have suffered harm, regardless of whether they are positively identified as victims of trafficking.

7. Strengthen capacity to apply the non-punishment principle across all stages of criminal justice response to trafficking into forced criminality in scam operations, including in criminal justice processes involving scammers who may be victims of trafficking.

8. Identify and remove barriers that victims returning from scam operations abroad face in accessing protection and assistance services.

9. Assess whether the available protection and assistance services are meaningfully mitigating vulnerability to re-trafficking or otherwise re-entering the scam industry.

10. Develop Standard Operating Procedures for diplomatic and consular staff and provide them with appropriate resources to assist, protect and repatriate nationals trafficked for the purpose of forced criminality in scam operations abroad.

2 UNODC's *Key Indicators of Trafficking in Persons for Forced Criminality to Commit Cyber Enabled Crimes* (UNODC ROSEAP, May 2023) can be referred to as a basis for developing country-specific indicators.

Prevention

1. Learn from South-East Asia and other regions to proactively identify, assess and mitigate risks of organized crime groups establishing scam operations in South Asia.

2. Collate and analyse law enforcement, immigration, administrative and other data to develop profiles of victims and perpetrators of scam operations, trafficking and related crimes that can inform resource allocation and disruption strategies.

3. Assess and address regulatory vulnerabilities in Special Economic Zones (SEZs) and relevant sectors (e.g., finance, casinos and online gaming, technology, and infrastructure projects) that may be exploited to support scam operations, including through law enforcement access to the zones and collaboration with SEZ boards and management structures.

4. Aggregate law enforcement and immigration data to prevent attempted re-entry of criminals involved in trafficking and scam operations into the country for nefarious purposes.

5. Collect and share relevant trafficking trends from, into and within the country with stakeholders across trafficking routes and engage with victim-survivors in developing targeted and actionable awareness raising messages.

6. Strengthen resilience of tourism and labour migration visa regimes to abuse by organised crime groups to move money and people across borders for scam operations.

7. Regulate and monitor casinos, gambling, call centres, IT, social media and other businesses that can operate as fronts for scam operations and trafficking for forced criminality.

8. Regulate and monitor recruitment agencies and pursue criminal charges against natural and legal persons involved in recruitment into scam operations.

9. Put in place accountability mechanisms at ports of entry, exit and transit for criminals and victims of trafficking from, to and through the country, to minimise the role of corruption in facilitating trafficking into scam operations.

10. Consider measures to prevent the departure or entry of individuals assessed to be at significant risk of trafficking into scam operations, in line with domestic law and international human rights obligations, including through secondary screening processes to identify trafficking indicators.

REGIONAL ANALYSIS



Trafficking in persons for forced criminality in scam operations is emerging as a significant concern across South Asia, intertwined with the region's longstanding patterns of labour migration and its recruitment modalities as well as the rapid growth of digital economies in the region.

INTRODUCTION

The intersection of trafficking into forced criminality in scam operations with other serious transnational organized crimes has been well-documented, including by UNODC.[3] Thus far, research has focused on the situation in South-East Asia, involving 'industrial scale cyber-enabled fraud and scam centres, driven by sophisticated transnational syndicates and interconnected networks of money launderers, human traffickers, data brokers, and a growing number of other specialist service providers and facilitators.'[4] This report is an initial attempt to take stock of the current context and analyze the response of five South Asian Member States[5] (Bangladesh, Bhutan, Maldives, Nepal and Sri Lanka) with the aim of providing evidence-based and action-oriented policy and practice recommendations.

Trafficking in persons for forced criminality in scam operations is emerging as a significant concern across South Asia, intertwined with the region's longstanding patterns of labour migration and its recruitment modalities as well as the rapid growth of digital economies in the region. Since 2021, anecdotal accounts and national reports have pointed to a sharp increase of victims from the region, including from Bangladesh, Nepal and Sri Lanka, being trafficked into scam operations both within the region and abroad, particularly to South-East Asia. Victims of such exploitation are generally recruited through fraudulent online job advertisements on social media or informal brokers, and once relocated, are confined in secured premises and compelled to carry out scams.

Limited data on the scale of the phenomenon, profiles of perpetrators and their modus operandi present challenges for the development of evidence-based policies, effective prioritization of resources for investigation, protection and prevention, and international cooperation in ways that respond to risks and realities. These challenges are further compounded by broader difficulties in anti-trafficking efforts, including the hidden and shifting nature of the crime, gaps in law and policy, overreliance on victim testimony, and limitations with protection mechanisms.

To better support its partner countries in South Asia, the UNODC project "Preventing and Addressing Trafficking in Human Beings and Smuggling of Migrants" (2024-2027) has sought to strengthen the evidence base by

3 See Transnational Organized Crime and the Convergence of Cyber-Enabled Fraud, Underground Banking and Technological Innovation in Southeast Asia: A Shifting Threat Landscape (UNODC, 2024) and Casinos, cyber fraud and trafficking in persons for forced criminality in Southeast Asia (UNODC, 2023); Inflection Point: Global Implications of Scam Centres, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), pp.61.

4 Inflection Point: Global Implications of Scam Centres, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), p.3.

5 While several other UN Member States are part of South Asia, the five South Asian Member States covered in this report are those in which the UNODC Project "Preventing and Addressing Trafficking in Human Beings and Smuggling of Migrants in South Asia" operates in: Bangladesh, Bhutan, Maldives, Nepal, and Sri Lanka.

consolidating publicly available qualitative information and national stakeholder consultations on the issue. This report seeks to support a clearer understanding of the emerging trends, current gaps in state responses, and to inform the development of evidence-based policies and prioritization of resources in addressing trafficking in persons for forced criminality in scam operations.

Against this backdrop, the present report focuses specifically on trafficking in persons for the purpose of forced criminality into scam operations – one of the many dimensions of the poly-criminality behind scam operations ranging from cybercrime, financial fraud, extortion, money laundering and corruption. The report does not look at whether and how smuggling of migrants may also be used to deliver a labour force into these operations.

In recent years, a growing number of organized crime groups have established extensive scam operations in several countries in South-East Asia. In 2024, more than 220,000 people were estimated as having been held in situations in which they are forced to carry out various cyber-enabled fraud and scam activities in Cambodia and Myanmar alone.[6] By 2025, more than 300,000 people were estimated to be involved in scam operations in South-East Asia.[7]

In South-East Asian countries of destination for trafficking into forced criminality in scam operations, response in 2021 and 2022 were hindered by the evolving and poorly understood nature, scope and scale of the problem. A shift came in 2023 as several regional events were convened by international actors to discuss the issue; Interpol released a warning about 'trafficking-fuelled fraud'[8] and the United States Department of State's trafficking in persons report treated trafficking into scam operations as a 'Topic of Special Interest'.[9] The mounting evidence of both the organized criminal groups stealing billions of dollars from its victims through cyber-enabled fraud and scam operations, and the trafficking of people from across the globe, gave countries in the region impetus to finally publicly acknowledge the issue. Sustained international pressure resulted in a shift in political posture, culminating in the 2023 *Association of Southeast Asian Nations (ASEAN) Leader's Declaration on Combating Trafficking in Persons Caused by the Abuse of Technology,* that explicitly recognised trafficking for forced criminality into the ASEAN region.

A growing number of governments have now intensified their efforts against cyber-enabled fraud and scam operations in the region. Sanctions were imposed by the United States, the United Kingdom and others in late 2025 and 2026 on hundreds of entities and individuals, including members of the political elite. Cumulative actions have led to increased raids and dismantling of some scam operations, freezing and seizing of assets and proceeds of crime, and the arrest and extradition of some powerful actors.[10] While these concrete steps were extremely positive in having resulted in the rescue of several thousand victims and the apprehension of high-level criminals, organized criminals have continued to adapt and expand across the globe, including to South Asia.[11]

6 Casinos, Money Laundering, Underground Banking, and Transnational Organized Crime in East and South-East Asia: A Hidden and Accelerating Threat (UNODC, 2024) p.54.

7 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.8.

8 INTERPOL, *"INTERPOL issues global warning on human trafficking-fueled fraud"*, 7 June 2023.

9 2023 Trafficking in Persons Report (US Department of State, 2023).

10 U.S. Department of the Treasury, *"Treasury Sanctions Cambodian Senator Kok An and Scam Center Network Defrauding Americans"*, 23 April 2026; Thomas Pigott, *"Imposing Sanctions on Online Scam Centers in Southeast Asia"*, U.S. Department of State, 23 April 2026.

11 Johann Rebert and Nicola Nixon, *"Asia's scam centre problem is moving on, not shutting down"*, 16 April 2026.

Without urgent course correction to identify and mitigate threats, countries in the region are at risk of the economic, social, political and reputational fallout that has been seen elsewhere.

The scope, scale and gravity of the challenge the region faces highlights the need for a pragmatic response. Scam operations involve a host of serious crimes with global impacts, including money laundering, corruption, transnational trafficking and torture. It cannot be prevented by counter-trafficking responses alone. Therefore, it is incumbent upon States to determine what responses can disrupt and dismantle the organised crime groups perpetrating this crime. At the same time, where existing counter-trafficking responses are not adequately identifying, protecting, and assisting victims, there is a need to strengthen, adapt, and complement those responses. Given the scale of exploitation associated with this criminal phenomenon, addressing trafficking into forced criminality dimensions must remain an integral component of a comprehensive response.

Countries in South Asia have the distinct advantage of learning from the experiences and lessons learned of destination countries in South-East Asia to proactively identify and acknowledge the risks and vulnerabilities to trafficking for the purpose of forced criminality in scam operations, and to urgently adopt a preventative posture in responding to it. Delays in aligning its justice and governance structures to respond only heightens the risk that their countries will succumb to a similar scale and severity of criminality. Ongoing impunity of high-level offenders will embolden organized criminals to continue to expand and entrench their activities across the region. In short, without urgent course correction to identify and mitigate threats, countries in the region are at risk of the economic, social, political and reputational fallout that has been seen elsewhere.

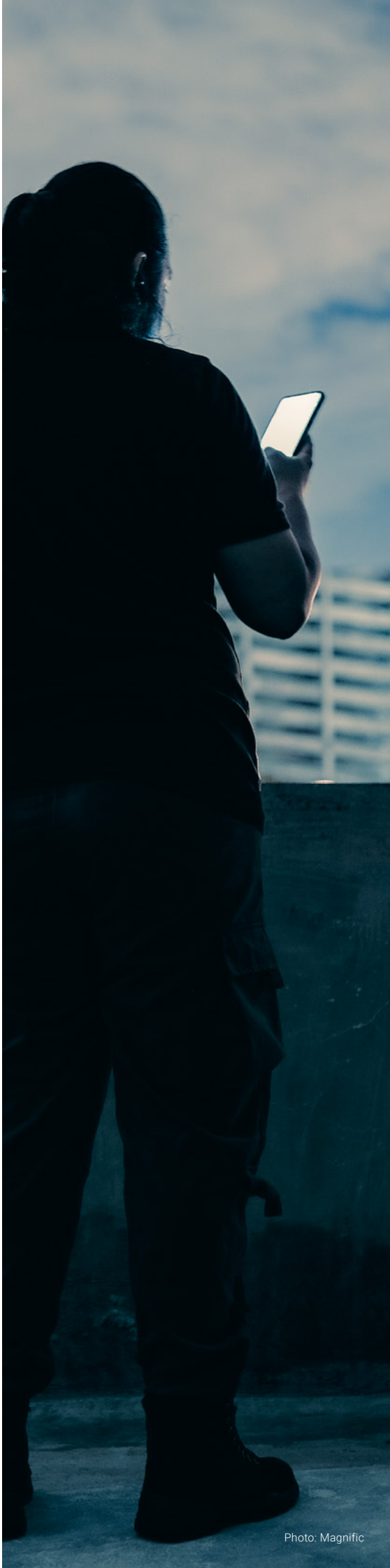


Photo: Magnific

METHODOLOGY

This report is based on an extensive desk review of open-source information pertaining to all five countries as well as one online and 34 in-country consultations reaching a total of 103 people, carried out between March and May 2026, in four of the five countries included in this report.

The draft report, prepared based on these efforts, were reviewed and discussed at a Regional Validation Workshop held in June 2026 attended by all five countries.

Table 1: Number of consultation meetings and participants

Country	No. Meetings	No. Participants	Male	Female
Bangladesh	10	44	39	5
Maldives	6	12	4	8
Nepal	10	25	21	4
Sri Lanka	9	22	15	7
TOTAL	**35**	**103**	**79**	**24**

For more details, please see Annex I on methodology.

LIMITATIONS

There are several limitations to this report. The desk-based review suffered from limited official data available about this specific crime type across the South Asian region. To date, no country has embarked on collecting systematic data on this crime type, whether on the scam operations itself or the potential human trafficking and exploitation elements thereof. Furthermore, only open-source and English language information was reviewed.

The number and profile of participants in the stakeholder consultations was uneven across the countries, potentially resulting in slanted perspectives. In each country, the number of people consulted varied drastically from 44 in Bangladesh (accounting for almost 43% of total participants) to only 12 in the Maldives (less than 12%). Relatively few individuals (10 people, being less than 10% of participants) from non-government entities were consulted. While it is appropriate for an exercise of this nature that the majority of participants were criminal justice practitioners, additional consultations with non-government actors would have offered helpful insights. That said, this limitation is arguably balanced out by the fact that most of the available open-source literature (on which the desk review is based) is from non-governmental rather than government sources.

Finally, only four of the five countries included in this report were visited for in-country consultations, meaning that country insights are unevenly represented. This balance was remedied in part by the participation of delegates from the Royal Government of Bhutan at the Regional Validation Workshop and their provision of written comments.



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PART 1. SITUATION AND VULNERABILITIES

This analysis is based on open-source information and the primary data collection through stakeholder consultations conducted for the purpose of this report. Key findings were validated at the Regional Validation Workshop in June 2026. For more details, see Annex I on methodology.

Trafficking from South Asia

South Asia is a region of origin for victims of trafficking into scam operations, particularly to South-East Asia. The trafficking of people into forced criminality in scam operations have been identified as long ago as 2015, but began to gain significant attention in 2021, as evidence emerged of its extensive scale and impact.[12] The phenomenon was exacerbated by the COVID-19 pandemic, where casinos situated in SEZs in the region pivoted to online gambling, gaming and scam operations. As borders reopened, the nationalities of those trafficked into these operations significantly broadened. A large number of skilled and semi-skilled professionals who had lost their livelihoods during the pandemic significantly widened the pool of targetable victims who hailed from every region of the world, including South Asia.

Since then, the location, scale and sophistication of this crime type have rapidly evolved, and South Asia emerged as a key region targeted by organized crime groups behind scam operations. Nationals from Bangladesh, Bhutan, Nepal and Sri Lanka have all been identified in scam operations in South-East Asia and elsewhere.[13] While no known nationals from the Maldives have been identified in scam operations, it should not be assumed that they do not exist.

South Asian victims are recruited into scam compounds in South-East Asia using the similar method to traffic victims from elsewhere. In many cases, victims from South Asia are recruited by a person known to and trusted by them, including people from their own villages or even close family members.[14] In a February 2026 report by the Office of the United Nations High Commissioner for Human Rights (OHCHR), a South Asian victim was reported to have been recruited from a friend he had known for five years, who video-called him to show him his workplace and to assure him that the job would provide for his disabled father.[15]

In other cases, victims respond to fraudulent job advertisements on social media platforms that refer to professional positions requiring specialized computer and language skills, as well as generalized marketing, administrative or customer service jobs. Some refer to trading opportunities or sponsored work and study programmes. Benefit packages are attractive. Applicants may be pressured to make quick decisions, with their recruiters gaining their confidence and assuring them of the legitimacy of the opportunity.[16]

12 Interpol, *Crime Trend Update: Human Trafficking-Fuelled Scam Centres* (June 2025)

13 Inflection Point: Global Implications of Scam Centers, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), pp.7, 10.

14 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.22.

15 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.22.

16 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.23.



The targeting of highly skilled and educated victims means that recruitment is more organised than for other forms of exploitation.[17] The victims are sometimes recruited through a multi-stage application and interview process that gives the impression of professionalism and legitimacy. For instance, a Sri Lankan victim reported being made to participate in typing tests and having to submit videos to showcase his English skills. In another example, a Bangladeshi victim had his typing skills tested during a Zoom interview. Both reported interacting with large 'human resources' departments.[18]

CASE STUDY: TRAFFICKING FROM BANGLADESH[19]

In 2022, a Bangladeshi man in his twenties was trafficked into forced criminality in scam operations in Long Bay scam compound in Cambodia. The victim had been recruited into an IT job in Cambodia through a trusted childhood friend. His parents mortgaged their land to pay the 3,000 USD recruitment fee.

Upon arrival in Phnom Penh, he was taken by Bangladeshi brokers to an office where he was interviewed for the job before being taken to Long Bay in Dara Sakor, a SEZ 350 km from Phnom Penh. There, he was forced to create fake accounts to commit fraud through investment schemes. Those who did not comply or meet targets were tortured. Between 1 April and 4 September 2022, the victim was sold to three different scam compounds for amounts ranging between 3,500 and 10,000 USD. He earned approximately 600 USD in the five months he was exploited, most of which he spent on meals.

He was finally rescued with the support of an NGO in September 2022. He warns job seekers against opportunities that offer a tourist visa (rather than a work visa) or job descriptions that feature crypto-selling or "computer operator" tasks.

17 Sasha Jesperson, Henrik Alffram, Lisa Denny and Pilar Domingo, "Trafficking for Forced Criminality: The Rise of Exploitation in Scam Centres in Southeast Asia" (ODI / ASEAN-ACT, December 2023)

18 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.23.

19 Christine Tan, "I was told to scam Singaporeans: Bangladeshi man who was trafficked to scam compounds", The Straits Times, 11 April 2024.



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Victims of trafficking from South Asia have not only been recruited from their country of origin, but also from other countries. South Asian migrant workers in Dubai have been recruited into scam centres in South-East Asia and elsewhere, including in the Middle East.[20] The income precarity caused by the geopolitical instabilities in the Middle East – where millions of people from South Asia are living and working – raises concerns that more South Asian migrant workers will become vulnerable to recruitment via fraudulent job offers that expose them to exploitation.

Thus far, the increased use of generative artificial intelligence (AI) has not eliminated the demand for trafficked persons. On the contrary, victims with various language skills are still sought.[21] The rapid improvement in AI has increased the capacity of criminals to generate convincing fake job ads to recruit victims. It has been used to scrape social media platforms in search of financial vulnerability and employment-related distress, enabling traffickers to identify, recruit and exploit high-risk individuals at scale.[22] AI technology has also been used for counter-surveillance, including through face-swapping technology to disguise identities and protect perpetrators.[23]

20 Ekantipur News, *"Nepali workers being held hostage and subjected to online fraud"*, 29 October 2025.

21 Emerging threats: The intersection of criminal and technological innovation in the use of automation and artificial intelligence in the cybercrime landscape of Southeast Asia (UNODC, September 2025), p.13.

22 Emerging threats: The intersection of criminal and technological innovation in the use of automation and artificial intelligence in the cybercrime landscape of Southeast Asia (UNODC, September 2025), p.16, referring to "New Frontiers: The Use of Generative Artificial Intelligence to Facilitate Trafficking in Persons" (OSCE, 2024)

23 Emerging threats: The intersection of criminal and technological innovation in the use of automation and artificial intelligence in the cybercrime landscape of Southeast Asia (UNODC, September 2025), p.17.

PROFILE OF VICTIMS OF TRAFFICKING INTO SCAM OPERATIONS

The profile of victims of trafficking for the purpose of forced criminality in scam operations and the concept of vulnerability to them are different to those relating to other forms of exploitation. Perpetrators behind the crime type specifically target people with specialized skills, including computer and language skills, most of whom have been males.

Consequently, most South Asian victims of trafficking into scam operations are young adult males, ranging from 18 to 40 years old. Job losses during the COVID-19 pandemic, and of the resultant other economic stresses, have contributed to heightened vulnerability to recruitment into scam operations, including among skilled, semi-skilled and even tertiary educated people.[24]

By way of example, a Sri Lankan victim with a degree in human resources told OHCHR that after he lost his job as a travel agent during the pandemic, he was surviving on manual labour jobs in construction at the time he was recruited.[25] Increased vulnerability owing to the geopolitical instabilities in the Middle East, which impacts foreign worker remittances, also serve to increase the vulnerability of many more people to falling prey to fraudulent job offers that lead to situations of trafficking or leave them with few choices but to participate in criminality in the scam industry.

Upon receiving job offers, victims travel through irregular and regular channels; criminals use a blend of legal and irregular channels to traffic victims.[26] Tourist visas are commonly used to travel into South-East Asia, with false promises that work permits will follow their arrival in the country they will be working. In many cases, victims think they will be working in Thailand, and travel there before being trafficked into Cambodia, Lao PDR or Myanmar. While some victims of trafficking into scam operations abroad travelled on tourist visas, many have also had employment visas as several companies involved in scam operations are registered as legitimate companies operating behind a veneer of legitimacy.

Recruitment also occurs among people already in destination countries who are looking to move to alternative 'employers' in search of better conditions. For instance, in a Telegram advertisement, shared by a LinkedIn post on 2 February 2026, the text read as follows:

> *We are hiring for Cambodia and Myanmar. Strictly preferred who is inside the country. Nationality: India, Pakistan, Bangladesh, Nepal, Africa. Pic up [sic] facilities available after interview. Full freedom company, we respect our employees. So we need only good employees with English proficiency. Original passport must be in hand.*[27]

24 IOM's Regional Situation Report on Trafficking in Persons into Forced Criminality in Online Scamming Centres in Southeast Asia (IOM, February 2024) p.3.

25 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.34.

26 Suleman Lazarus, Mina Chiang, Rossitza Stefanova Dimitrova, Theint Theint Thu & Enobong Essien, "What Do We Know About Human Trafficking and Scam Compounds in Southeast Asia (2020–2025)? A Qualitative Meta-Synthesis of Coercive Deviant Enterprises", Deviant Behavior, 06 January 2026, p.19-20.

27 Telegraph message received by victim. Ling Li, *"Re-trafficking risk is already happening in Cambodia"*, LinkedIn post, 2 February 2026.

These realities mean that people involved in scam operations do not always fall into neat binary distinctions between victim and criminal, raising significant challenges for identification of victims and application of the non-punishment principle to the extent that a person is not liable for criminal activities that relate to his or her being trafficked.

In other cases, recruitment into forced criminality implies or even explicitly states the illicit nature of the scam operations in the job offer. For example, one report shows recruitment ads for 'conducting calculated conversions', meaning steering online conversations to information that can be used to scam them or building romantic relationships with victims. Some of these jobs are specifically targeted for people from South Asia.[28] However, as with other forms of trafficking (such as trafficking into sexual exploitation), the person who is recruited may be aware of the nature of the work but unaware of its exploitative conditions. These realities mean that people involved in scam operations do not always fall into neat binary distinctions between victim and criminal, raising significant challenges for identification of victims and application of the non-punishment principle to the extent that a person is not liable for criminal activities that relate to his or her being trafficked.



28 Uncovering the Spread of Human Trafficking for Online Fraud into Laos and Dubai (Humanity Research Consultancy, July 2024) p.17.

Exploitation

When victims arrive at scam sites, their documents are rapidly confiscated and they quickly end up in a cycle of control, coercion and even threats or use of violence. A notable feature of trafficking into scam operations is that victims are often made to sign 'contracts', some of which are effectively used to disempower victims – sometimes explicitly placing them into debt bondage. The use of such 'contracts' is particularly insidious, as authorities in destination countries often hold mistaken beliefs that a person can legitimately enter an arrangement to commit crime – and thus the cases are labour disputes rather than trafficking situations – rather than using them as evidence to prove elements of the traffickers' criminality.[29]

Victims of trafficking are made to target people across the world through a range of scams, including romance scams, long-term investment fraud schemes, cryptocurrency fraud and other rapidly evolving forms of cybercrime. Victims targeted by these various cyber-enabled fraud scams have suffered financial and psychological ruin, with many suicides of scam victims having been reported. The victims of trafficking who are made to perpetrate these scams also suffer severe psychological and physical harms, owing to the damage they have caused to others as well as the means that traffickers use to force victims to comply with their demands.

CASE STUDY: TRAFFICKING FROM BANGLADESH

The rapid developments in AI technology have increased the capacity of criminals to scam people through the use of deepfake technology, including for extortion and romance scams.[30]

A Bangladeshi victim who escaped from a scam compound in Myanmar, reported that he was made to scam men in the Middle East using AI to alter his image into an attractive woman. He was threatened with electric shocks unless a quota of 5,000 USD in profit was met every week.[31] He and his friends who had been recruited from Dubai reported having to sign a 'contract' at gunpoint, obligating them to generate 200,000 USD within 18 months.[32] Heavy punishments were issued for 'contractual' infractions, resulting in spiralling debts and an entrenched situation of debt bondage.[33]

A Bangladeshi man was arrested at Chattogram airport in connection with this crime and charged with eight human trafficking cases filed at different police stations across the country.[34]

29 Marika McAdam, Application of counter-trafficking legislation to address trafficking in persons into criminal activities: A comparative case analysis of select ASEAN Countries (UNODC, 2025), pp.7, 24-25, 58-59.

30 Interpol, Crime Trend Update: Human Trafficking-Fuelled Scam Centres (June 2025); Emerging threats: The intersection of criminal and technological innovation in the use of automation and artificial intelligence in the cybercrime landscape of Southeast Asia (UNODC, September 2025).

31 Jonathan Head, Lulu Luo and Thanyarat Doksone, *"'I need help': Freed from Myanmar's scam centers, thousands are now stranded"*, BBC, 26 February 2025.

32 Shariful Islam, *"An escape from hell"*, The Daily Star, 6 December 2024; Also see Reuter's Graphic story that tells Ariyan's story – Adolfo Arranz, Poppy McPherson, Devjyot Ghoshal and Han Huang, "Scammed into Scamming", Reuters, 20 September 2025.

33 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.13.

34 The Business Standard, *"18 Bangladeshis imprisoned, tortured in 'scam centers' in Myanmar to return home"*, 18 March 2025.

Victims of trafficking and other people in scam compounds are subjected to serious crimes perpetrated against them during the exploitation phase, including assault, debt bondage, sexual exploitation, rape and torture.[35] They have been confined, denied food, and are subject to exploitative working conditions in high security compounds where they are threatened with punishments for failing to meet unrealistic targets. A Sri Lankan victim of trafficking reported that those who fail to meet monthly targets were subjected to immersion in water containers, known as 'water prisons', for hours.[36] Others have reported of specific rooms being used to torture people for non-compliance with traffickers' demands. Some people have been murdered in scam centres or died attempting escape.

Forced criminality beyond scam operations

Victims of trafficking into scam operations have not only been made to participate in crimes related to scam operations, but in other crimes too. There are reports of victims not only being subjected to torture, but being made to inflict it – a Bangladeshi victim of trafficking reported being forced to beat other workers.[37] As with other forms of exploitation in trafficking, such as sexual exploitation, victims trafficked into scam operations may be incentivized to recruit others as a way of improving their own circumstance or even escaping it. Victims have reported 'assemblies' in compounds announcing financial incentives to recruit others; others have been told that in order to leave they need to replace themselves with new recruits.[38] A Bangladeshi victim reported being made to film a 'recruitment video,' later learning that it had been used to persuade other Bangladeshi victims to accept fraudulent job offers.[39] Challenges arise in situations where victims of trafficking turn into recruiters, whether of their own volition or as a means to escaping or improving their own situations.

Exiting scam compounds

Intensified raids in Cambodia and Myanmar in late 2025 and early 2026 uncovered individuals of various nationalities trapped in scam operations, including Bangladeshi, Nepalese, and Sri Lankan nationals.[40] Not all of those encountered are identified by authorities in destination countries as victims of trafficking. Some, including nationals of South Asian countries, are treated as irregular migrants for their lack of documentation or as criminals for their involvement in scams. This reality demonstrates the challenges in properly screening and identifying victims of trafficking and in applying the non-punishment principle in doing so.

Raids are not the only means by which some victims exit the compound. A range of NGOs have also supported victims from South Asia and elsewhere to escape. One Bangladeshi reported contacting brokers in Bangladesh and Cambodia to help him leave the compound.[41]

35 Su Myat, *"Beatings, torture and electric shocks: freed scam compound workers allege horrific abuse"*, The Guardian, 25 February 2025.

36 A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.12.

37 Ibid., p.12.

38 Ibid., p.20.

39 Ibid., p.20.

40 Ingyin Naíng, *"261 trafficking victims rescued from Myanmar scam center"*, VOA news, 12 February 2025.

41 Suleman Lazarus, Mina Chiang & Mark Button:, "Assessing Human Trafficking and Cybercrime Intersections Through Survivor Narratives", Deviant Behavior, 25 February 2025, p.12.

Assistance from NGOs has helped to rescue Bangladeshi and Nepali victims.[42]

In some cases, victims can only escape after the traffickers and corrupt officials are effectively paid to release. Authorities reported that some victims have exited scam compounds after their families have paid ransoms. These situations illustrate the level of corruption involved and the extent to which the entire criminal enterprise has been monetized by corrupt actors, from recruitment, transport, scam operations themselves, to the release of victims.

As with trafficking in persons globally, corruption and impunity remain significant enabling factors in trafficking for forced criminality linked to scam operations. Efforts to disrupt and deter the business model used by organized criminal groups in some destination countries have not yet kept pace with the speed and scale at which these operations have expanded. Criminal networks continue to build facilities and exploit more victims to sustain their operations. The resulting convergence of organized crime has become a major governance and security challenge for parts of South-East Asia.[43]

Table 2: Common elements in trafficking for the purpose of forced criminality in scam operations

Act

Recruitment | Transportation | Harbouring | Receipt

Means

Deception | Fraud | Threat or use of force | Other forms of coercion | Abuse of power | Abuse of position of vulnerability

Exploitative purpose

Forced criminality | Forced labour | Slavery or practices similar to slavery | Other

42 Ibid., p.10.

43 Inflection Point: Global Implications of Scam Centers, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025)

Proactive efforts to identify, investigate and address these crimes can help ensure that potential threats are detected, investigated and addressed at an early stage. This underscores the importance of monitoring regional trends, strengthening institutional capacities, and maintaining vigilance to recognize and respond to emerging risks.

Trafficking into and within South Asia

South Asia is not only a source region of victims, but also a host to criminals involved in trafficking as well as trafficking-dependent scam operations. Local recruiters target and traffic individuals from countries in the region to countries elsewhere, including to scam operations in South-East Asia. At the more organized, large-scale level, recruiters based in South Asian countries are not only recruiting nationals of those countries, but nationals of countries in other regions.

State authorities across South Asia are increasingly identifying scam operations hosted in their countries.[44] Notably, scam centres have been found in Bangladesh, Nepal and Sri Lanka. Recent years have seen an escalation in this trend, as sophisticated criminal networks and scam operations disperse from South-East Asia.[45] While in some cases, the trafficking dimensions of this type of criminality are documented, other reports do not make clear whether authorities have effectively screened for victims of trafficking among the people encountered in such scam centres.

Preliminary findings of UNODC's forthcoming 2026 *Global Report on Trafficking in Persons* show an increase in the number of adult male trafficking victims found in South Asia.[46] While the exploitative purpose for which these victims have been trafficked is not consistently known in the reported cases, this is striking in light of the finding that victims of trafficking into forced criminality in scam operations have been predominantly adult males.

44 2025 Trafficking in Persons Report: Sri Lanka (US Department of State, 2025)

45 Hannah Ellis-Petersen, *"Sri Lanka sees 'alarming' rise in cybercrime as scam networks relocate from south-east Asia"*, The Guardian, 16 June 2026.

46 UNODC Global Report on Trafficking in Persons 2026 (forthcoming).



Bhutan

At the time of this writing, no information could be found about trafficking into scam operations in Bhutan nor any cases encountered by national authorities. However, Bhutanese citizens are increasingly being targeted and falling prey to scams, including to South-East Asian countries. Authorities reported familiar scenarios of educated, young, English-speaking and digitally literate people being victimized.[47]

Bangladesh

During consultations, government stakeholders reported sophisticated recruitment operating from Bangladesh to service scam operations abroad. Scam centres are also operating out of Bangladesh, although the extent to which the human trafficking dimensions of these operations, if any, have been detected is unclear. Offshore gambling operations, which are frequently associated with crimes of fraud and money laundering, have also established a presence in Bangladesh.[48]

Maldives

Authorities have yet to encounter cases of trafficking into scam operations occurring in the Maldives. However, Maldivians are increasingly targeted for scams and efforts to recover stolen funds and identify money mules have been made.[49] There are several factors that could make the Maldives vulnerable to this crime type, including relative ease of entry, large-scale foreign investments and developments, rapid digital transformation, and the country's complex geography (consisting of dispersed across 26 atolls and islands expanding though land reclamation projects), combined with overall low rates of identification of trafficking victims.

Nepal

The presence of large-scale scam operations has long been observed. Raids of scam facilities carried out since 2022 and every year since (up to and including 2026) have identified hundreds of people – both Nepali and foreign – involved in committing fraud. The enabling effect of corruption is also observed, revealing a familiar pattern noted elsewhere.[50] Potential trafficking dimensions of these operations have been inconsistently determined.

Sri Lanka

Sri Lanka has become a favoured destination for scam operations displaced from South-East Asia.[51] There has been a sharp increase of disruptions throughout 2026 across Sri Lanka, with the police having arrested more than 1,000 people for alleged involvement in cybercrime in the first five months of 2026 – in stark contrast to only 430 for the entirety of 2024.[52] Most of the people encountered at scam operations so far have been foreign nationals, but national authorities reported that there have been 'no substantial evidence yet of foreign victims trafficked into Sri Lanka'. The online gambling and gaming industry in Sri Lanka is also escalating risks of scam operations originating from Sri Lanka.

47 "Trafficking in Persons for Forced Criminality in Cyber Scam Operations (Bhutan)", presentation delivered at the *Regional Validation Workshop: South Asian responses to trafficking in persons for the purpose of forced criminality in cyber scam operations*, organized by UNODC in Colombo, Sri Lanka from 2 to 4 June 2026.

48 The Business Standard, *"CID arrests 3 over online gambling-linked money laundering network"*, 23 May 2026.

49 Results reported at Operation Frontier + III Press Conference, 20 May 2026.

50 Epardafas, *"Nepal Faces Expanding Transnational Crime Web Involving Chinese Syndicates, Multiple Arrests and Investigations Reveal"*, 17 May 2026.

51 Hannah Ellis-Petersen, *"Sri Lanka sees 'alarming' rise in cybercrime as scam networks relocate from south-east Asia"*, The Guardian, 16 June 2026.

52 Focus Gaming News Asia Pacific, *"Sri Lanka sees rise in online gambling scam networks after Southeast Asia crackdown"*, 19 May 2026.

In countries where information on scam operations is limited or unavailable (notably, in Bhutan and Maldives), it should not be assumed that such activities are absent. Rather, the limited availability of data may reflect various factors, including challenges in detecting, documenting, and responding to trafficking and related forms of organized crime. Proactive efforts to identify, investigate and address these crimes can help ensure that potential threats are detected, investigated and addressed at an early stage. This underscores the importance of monitoring regional trends, strengthening institutional capacities, and maintaining vigilance to recognize and respond to emerging risks.

Much of the large-scale trafficking into scam operations in South-East Asia flourished through businesses and venues such as SEZs, casinos, and business and technology parks, which offered attractive conditions to organized criminal networks.

VULNERABILITIES

Countries in the region currently do not have comprehensive data on the number of people who have been transnationally trafficked into forced criminality in scam operations, nor on how many may remain in those situations. Similarly, little is known about trafficking into forced criminality into the region. These research, knowledge and data gaps pose challenges in designing and adapting responses to shifting trends and modus operandi of traffickers.

A misconception prevalent in South Asia is that criminals who trafficked victims into forced criminality in scam operations require significant physical space for such scam operations. This impression comes from the experiences of those trafficked into industrial-scale compounds, including in South-East Asia. In reality, however, a significant number of scam operations with trafficked victims have taken place in hotels, resorts, casinos, houses, rented apartments, office spaces, villas and small properties. In some cases, it occurs in modern office spaces that are registered businesses and have 'clean' documentation.[53] Given that the scale of specific scam operations does not bear on whether or not it involves human trafficking, investigators need to remain vigilant to operations that have a small physical footprint and/or that are dispersed.

The exploitation of SEZs by organized criminal networks in South-East Asia offers important lessons for other countries seeking to expand economic zones and develop associated regulatory and oversight frameworks. SEZs, while important in fostering trade volume, foreign direct investment and job creation, have also proven useful to powerful criminals and impenetrable by local authorities due to relatively lax regulations and oversight by law enforcement authorities. Much of the large-scale trafficking into scam operations in South-East Asia flourished through businesses and venues such as SEZs, casinos, and business and technology parks, which offered attractive conditions to organized criminal networks.

53 Kristina Amerhauser and Alex Goodwin, *A World of Deceit: Mapping the Landscape of the Global Scam Centre Phenomenon* (Global Initiative against Transnational Organized Crime, March 2026), pp.9-11.

There are hundreds of SEZs across all five countries at various stages of operation and development. All are encouraging foreign investment, including into the digital and fintech sectors that have proven susceptible to being exploited as covers for scam operations. Land reclamation projects backed by foreign direct investment, particularly in Maldives and Sri Lanka, and the rise of casinos as well as online gambling and gaming industries in and outside of SEZs in Bangladesh, Sri Lanka and Nepal mirror the conditions that organized criminals exploited in South-East Asia.

It would serve the South Asian countries well to treat the South-East Asian experiences with SEZs as cautionary tales to inform their own risk assessments and to determine their own vulnerability to infiltration by organized crime groups behind scam operations and other criminal activities.

CASINOS, GAMBLING AND GAMING

The casino, online gambling and gaming sectors are particularly vulnerable to use by criminals for scam operations.

The experience of the Philippines offers insights on effective State response. The Philippines Offshore Gaming Operations (POGOs) – online gambling companies located in the Philippines but catering to customers based elsewhere – were initially viewed as a potential source of revenue for the country. However, its operations were quickly harnessed by organized crime to commit scams and human trafficking at scale.[54] The large-scale organized criminality that entered the country through the POGO infrastructure eventually culminated in the ban on POGOs in 2023 and the prosecution of some high-level criminals, including high-profile politicians, who were involved in trafficking thousands of people into them.

The 2023 ban, 2025 legislation, and a set of SOPs in 2026 to address law enforcement gaps and the experiences leading up to those measures offer significant lessons for countries in South Asia looking to regulate their own gaming industries to mitigate risks of organized crime.[55]

Regulations over SEZs are insufficient or opaque, making for highly attractive conditions for criminals. The ability to operate in multiple currencies, low tax thresholds, low regulation and minimal or no oversight by national authorities in host countries are pull factors for powerful organized criminals. A key example is gaps in beneficial ownership transparency requirements. The laws and regulations that require companies to disclose the beneficial owners, i.e., the persons and/or entities who own or control them, allow for multiple legal personality arrangements and subsidiary structures to be misused in ways that make SEZs highly attractive to criminal actors and render significant challenges in conducting meaningful customer due diligence in the context of SEZs.

54 UNODC Regional Office for South-East Asia and the Pacific, *"Scam no more: how the Philippines is cracking down on online fraud centres with UNODC support"*, 27 April 2026.

55 Sam Beltran, *"Can Philippines' new anti-Pogo playbook rein in fast-moving scam hubs?"*, South China Morning Post, 30 April 2026.

As in South-East Asia, local law enforcement in the South Asian countries can exercise enforcement jurisdiction in the SEZs by law. However, they tend not to in practice and may even be under a misapprehension that they need to seek permission from SEZ governance bodies before entering those zones as they are governed by separate regulations. Similarly, labour inspectors may not operate in SEZs, which may be governed by separate legislation. In both regions, there is an assumption that oversight falls to SEZ authorities and that they would report any concerns about criminality or labour law infractions to police. There is scope for South Asian governments to remain vigilant to the possibility that such incidents would not be reported as well as to the overall risks of misuse by criminal actors, as has unfolded in many SEZs across South-East Asia.

Economic challenges precipitated by political upheavals, environmental and natural disasters as well as geopolitical instabilities around the globe all exacerbate the existing vulnerability to trafficking while also impacting State capacity to respond to it. On the one hand, economic, cultural and social push factors increase the risk that more people will be lured into scam operations both as victims and as perpetrators. At the same time, the diplomatic relationships that determine the country's economic and political interests in the context of global instability, including to secure both remittances from migrant workers in foreign jurisdictions and foreign investment in their country, provides ample opportunities for organized criminals to exploit and grow their operations in the region.

The vital relationships that South Asian countries have with States outside the region whose support is integral to national security as well as to economic growth have an impact on how organised crimes, including trafficking in persons for the purpose of forced criminality into scam operations, are prioritized and responded to. This is a double-edged sword, contributing to both the challenges in confronting the phenomena and opportunities for partnerships in doing so. If the scam operations landscape and the potential trafficking dimensions of it continue unchallenged, reputational and relationship risks will be exacerbated, particularly with those countries whose citizens are targeted for both scam operations and for trafficking.



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Table 3: Push and pull factors for trafficking into forced criminality and scam operations

	Push factors	Pull factors
Economic	• Poverty and/or economic instability • Limited employment opportunities / high unemployment rate • High dependence on remittances • Insufficient access to safe and legal migration pathways	• Livelihood opportunities • Rapid economic development • Limited regulations and oversight of SEZ • Permissive gambling and gaming industries • Permissive financial and banking sectors • Large infrastructure developments • Direct foreign investment opportunities • Permissive entry systems
Cultural / Social	• Inequality • Discrimination • Familial pressures • Gendered expectations • Migration aspirations • Culture of mobility	• Weak law enforcement • Patronage • Significant foreign labour force and diaspora • Poor and/or discriminatory treatment of migrant labour force and its normalisation
Political / Institutional	• Conflict and instability • Corruption • Criminal impunity	• Conflict and instability • Corruption • Criminal impunity • Weak labour governance • Weak migration governance
Environmental	• Climate change • Natural disasters and extreme weather events	• Hard to access areas whether rural and remote, or urban and hidden • Weak environmental standards
Technological	• Sufficient digital literacy for susceptibility to online recruitment and online work • Insufficient digital literacy to detect fraudulent recruitment offers	• Developed digital communications infrastructure • Permissive crypto-currency landscape • Weak digital regulatory frameworks

PART 2. PROSECUTION

This analysis is based on open-source information and the primary data collection through stakeholder consultations conducted for the purpose of this project. Key findings and recommendations were validated at the Regional Validation Workshop in June 2026. For more details, see Annex I on methodology.

The lead agencies for trafficking in persons differ across the five countries, ranging from the Ministry of Home Affairs (Bangladesh, Bhutan), to the Ministry of Homeland Security and Technology (Maldives), Defence (Sri Lanka) and Women, Children and Senior Citizens (Nepal).

Table 4: Lead agencies relevant to countering trafficking for forced criminality in scam operations

	Trafficking in Persons	Organized Crime	Cybercrime
Bangladesh	Ministry of Home Affairs (MHA) Counter Trafficking and Monitoring Cell	Criminal Investigation Department (CID) for organized crime Counter Terrorism and Transnational Crime (CTTC) for transnational organized crime	Cyber Police Centre (CID); Cyber Crime Investigation Division (Dhaka Metropolitan Police), others
Bhutan	Department of Law and Order (DLO), Ministry of Home and Cultural Affairs (chairs national anti-trafficking task force)	Royal Bhutan Police (RBP), Anti-Money Laundering and Organized Crime Unit	Royal Bhutan Police (RBP) Cybercrime Investigation Unit
Maldives	Anti-Trafficking Office (ATO), Ministry of Homeland Security and Technology (MoHST), oversees the National Anti-Trafficking Steering Committee	Maldives Police Service (MPS), Gang crime enforcement division (no dedicated organized crime agency)	Maldives Police Service (MPS), Cyber Crime Centre (C3) National Cybersecurity Agency (separate from MPS)
Nepal	Ministry of Women, Children and Senior Citizens (MoWCSC) on policy Nepal Police Anti-Human Trafficking Bureau (AHTB) on operational response	Central Investigation Bureau (CIB) of Nepal Police, under Ministry of Home Affairs (MHA)	Central Cyber Bureau of Nepal Police
Sri Lanka	National Anti-Human Trafficking Task Force (NAHTTF), interagency coordination body, chaired by Ministry of Defence Human Trafficking, Smuggling Investigation and Maritime Crime Investigation Unit (HTSIMCIU) of Criminal Investigation Unit of Sri Lanka Police	Central Crimes Investigation Division and specialized organized crime unit of Criminal Investigation Department (CID) of Sri Lanka Police	Cyber Crime Unit (CCU) of the Sri Lanka Police Criminal Investigation Department (CID)



Interagency coordination: National coordination committees on trafficking in persons have been established across countries in the region, meeting both regularly and on an ad hoc basis. Notwithstanding that such committees have been established, coordination challenges are significant. Ministries with overlapping counter-trafficking mandates may not coordinate as a matter of course and may have different perceptions about whether a situation constitutes trafficking or not, signalling uneven levels of understanding of the crime. Coordination challenges are exacerbated by high and frequent turnover of staff, resulting in lost institutional memory and the need to constantly rebuild inter-agency relationships and counter-trafficking capacity. The specificities of this type of trafficking, which involves organized crime and cuts across cybercrime, money laundering and corruption, require that specialized expertise are embedded in coordination mechanisms.

Criminalization and jurisdiction

All five South Asian countries covered under this report are States Parties to the United Nations Convention against Transnational Organized Crime (UNTOC) and its Protocol to Prevent, Suppress and Punish Trafficking in Persons (Trafficking in Persons Protocol): Bangladesh became party to those instruments in 2019, Bhutan in 2023, the Maldives in 2016, Nepal in 2020 and Sri Lanka in 2015. They have all criminalized trafficking in persons in their domestic law. Both the Maldives and Nepal have specific legislation on organized crime, while Bangladesh and Sri Lanka do not. Bhutan has provisions in their penal codes to criminalize organized crime.

Exploitation: While not all countries have standalone trafficking in persons legislation, all have provisions in their domestic legislation that can capture trafficking into forced criminality. The only country that explicitly includes forced criminality as form of exploitation is Bangladesh through its new *Prevention and Suppression of Trafficking in Persons and Smuggling of Migrants Act,* adopted in April 2026. Elsewhere, forms of exploitation that could be applied include forced labour or slavery, practices similar to slavery, servitude, or other forms specified in domestic law, as captured in the table below.[56] The Maldives and Nepal are unique in that the focus of criminalization of human trafficking in domestic law is on transportation rather than exploitation.

Jurisdiction: Most countries have extended their jurisdiction to capture extraterritorial offences, including through the nationality principle generally where the alleged perpetrator is a national (Bangladesh, Bhutan, Maldives) and in the case of Nepal, Bhutan and Bangladesh, where the victim is a national. Sri Lanka has established extraterritorial jurisdiction over its nationals abroad for trafficking offences.

Implementation: The challenge in responding to trafficking for forced criminality in scam operations is not the legislative framework, but its implementation. Frontline officials who encounter such cases may lack familiarity with applicable trafficking laws or be uncertain about how to apply them to this form of crime. As a result, more immediately apparent offences (such as for scam itself or immigration offences) may be prioritised before a more time-consuming assessment is undertaken to determine whether trafficking has occurred.

As can be expected from the emerging nature of the crime, no case examples or judgements of relevance were yet found to determine how the law is interpreted and applied to trafficking for the purpose of forced criminality in scam operations, either of South Asian nationals abroad or of people into scam operations in the region. While significant expectations are often placed on new or amended legislation to strengthen counter-trafficking responses, there remains scope for reflection and improvements as the implementation challenges experienced under previous legal frameworks are equally likely to arise in relation to new or revised provisions.

56 In the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime (Trafficking Protocol), article 3(a) states that exploitation shall include, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the removal of organs. According to the 1956 Supplementary Convention on the Abolition of Slavery, the Slave Trade and Institutions and Practices Similar to Slavery, practices similar to slavery include debt bondage, serfdom, servile forms of marriage, and the sale of children for exploitation. In international law, 'practices similar to slavery' includes debt bondage, serfdom, servile forms of marriage, sale of children for exploitation, worst forms of child labour.

Table 5: Criminalization and jurisdiction provisions in South Asia

	Relevant form of exploitation in counter-trafficking legislation	**Extraterritorial Jurisdiction**
Bangladesh	*The Prevention and Suppression of Trafficking in Persons and Smuggling of Migrants Act, 2026* (PSHTMS), adopted on 9 April 2026. Section 2(20)(i), 'Forcing a person to commit criminal acts, such as drug transport and distribution, fraud, etc.' Section 2(20)(j), 'Detaining a person and demanding or collecting ransom.'	Section 4 of the PSHTMS Act extends its jurisdiction with extraterritorial application to: (1) any offence committed under this Act against a citizen of Bangladesh beyond Bangladesh. (2) If any person commits an offence under this Act from beyond Bangladesh into Bangladesh or from within Bangladesh to beyond Bangladesh, the offence and the entire process of its commission shall be deemed to have been committed in Bangladesh and the provisions of this Act shall apply to the person and the offence committed.
Bhutan	*Penal Code (Amendment) Act of Bhutan 2021, to amend the Penal Code of Bhutan 2004 and its Penal Code (Amendment) Act of Bhutan 2011.* Section 154, Forced labour (non-exhaustive).	Article 20 of the *Civil and Criminal Procedure Code of Bhutan 2001* gives extraterritorial jurisdiction to the Supreme/High Court outside of Bhutan on the bases of the following principles: (a) territoriality, (b) nationality, (c) passive personality; (d) protective, (e) universality, (f) flag jurisdiction and (g) airspace.
Maldives	Exploitation not necessarily required for trafficking offence, which focuses on 'unlawful coercive means' to transport a person. *Prevention of Human Trafficking Act (Law No. 12 / 2013)* Section 10, "Exploitative conduct" means (a) Where the person against whom such act is committed has been subject to unlawful coercive means; (b) To compel a person to provide a service or labour; and such service or labour is obtained from the person after being subjected to a condition; and because of the unlawful coercive means utilised such person is not free to change the person's status or condition; (c) To compel a person to enter an agreement which creates a legal obligation; (e) Where an identification document of a person or travel document is withheld or is destroyed by the person committing the act; (f) To pledge a person or that of a person under such person's control to provide a service or labour and such agreement is entered into by the person in return of a debt or suspected debt.	*The Penal Code (Law No.6/2014)* established jurisdiction to prosecute; any offence committed by or in cooperation with a citizen of the Maldives or a person domiciled in the Maldives regardless of the location of the offence (Section 13(a)(3)) and any offence that results in substantial harm to citizens, agents, or property of the State, and any inchoate offense that, if completed, would have likely resulted in substantial harm to citizens, agents, or property of the State (Section 13(a)(2)). Section 13 of the *Penal Code (Law No.6/2014)* applies both the active personality principle (based on the nationality of the alleged perpetrator) and the passive personality principle (based on the nationality of the alleged victim).
Nepal	*Human Trafficking and Transportation (Control) Act, 2064 (2007)* (HTTCA) captures 'human trafficking and transportation' by a series of acts, which need not be committed by means in the case of human trafficking. The focus is on those who deliver people into exploitative situations, rather than on exploiters. Section 2(e), "Exploitation" means an act of keeping a human being as a slave and bonded. *The National Penal (Code) Act, 2017* Section 213. Punishment for kidnapping or hostage-taking. Section 162. Prohibition of forced labour. Section 163. Prohibition of slavery. Section 164. Prohibition of serfdom or debt bonded labour.	*The Human Trafficking and Transportation (Control) Act, 2064 (2007)* (HTTCA) extends jurisdiction both within Nepal and extraterritorially in cases of offenses committed against a Nepali citizen from foreign territory (Section 1(3)). Section 12 of the HTTCA provides for the Nepal government to rescue any Nepali citizen sold in the foreign land. Section 2 of *the National Penal (Code) Act, 2017* on Extra-territorial application of the Act does not include trafficking offences relevant to trafficking in persons (including forced labour at Section 162; prohibition of slavery at Section 163; serfdom or debt bonded labour at Section 164; and abduction and hostage taking at Section 213).
Sri Lanka	Relevant forms of exploitation included under Section 360C of *the Penal Code (Amendment) Act No. 16 of 2006* on Trafficking are "forced or compulsory labour or services, slavery, servitude, … or any other act which constitutes an offence under any law." Section 358A of *the Penal Code (Amendment) Act No.16 of 2006* concerns debt bondage, serfdom, forced or compulsory labour, and slavery as self-standing offences. Section 358A (3) of *the Penal Code (Amendment) Act No. 16 of 2006* explains "forced or compulsory labour", in alignment with the ILO Convention definition.	Article 15 of the *Penal Code (Amendment) Act No.16 of 2006* relating to jurisdiction does not speak to crimes committed by or against Sri Lankans outside of Sri Lanka, with the exception of Sri Lanka nationals who enjoy diplomatic immunity (article 2(2)(c).

Lack of coordination between the relevant agencies can mean that perpetrators of scams are not screened for potential trafficking into that situation, resulting in significant risk that victims of trafficking may be punished for unlawful activities they were forced to commit, and the loss of vital information required to build a stronger intelligence picture against traffickers.

Law enforcement

Coordination: Relevant law enforcement agencies across the region include those mandated to address organized crime, cybercrime, corruption, money laundering and trafficking in persons. Lack of coordination between the relevant agencies can mean that perpetrators of scams are not screened for potential trafficking into that situation, resulting in significant risk that victims of trafficking may be punished for unlawful activities they were forced to commit, and the loss of vital information required to build a stronger intelligence picture against traffickers.

Specialization: Where agencies not specialized in trafficking cases are required to respond to potential trafficking situations, they may not have sufficient understanding or capacity to effectively screen and identify potential victims, nor to conduct effective interviews with victims, witnesses and suspects. Conversely, counter-trafficking actors may lack the specialized skills required to investigate complex, multi-faceted serious organized crime. High turnover of staff can mean that specialized expertise is lost in institutional memory. In countries where the counter-trafficking agencies' mandate specifically focuses on trafficking of women and children, they may be insufficiently equipped to identify and respond to trafficking for force criminality in scam operations, the victims of which are predominantly adult males.

Reactive rather than proactive investigation: As is true in several countries around the world, law enforcement agencies in South Asia often take reactive rather than proactive approaches to investigations of trafficking in persons. Even where legislation allows for use of special investigative techniques, investigations are commonly reactive and triggered by referrals by NGOs or complaints by victims. A key challenge that practitioners pointed to in responding to this type of trafficking was the lack of reporting by victims, who are hesitant to come forward to authorities.

Overreliance on victim cooperation to provide information: Victim testimony may be the key or sometimes the only form of evidence. However, victims emerging from scam operations may not self-identify as such due to fears of prosecution and/or deportation, or fears of retaliation by traffickers. Therefore, formal complaints are often not lodged, and investigations may not be commenced.[57] As is the case for all types of trafficking, it is not the responsibility of victims to identify themselves or the criminals involved in trafficking them but rather the law enforcement who have the skills and the responsibility to carry out these tasks – victims are under no obligation to help them and investigations should not depend on their cooperation.

57 Alastair McCready and Allegra Mendelson, *'Survivors of Myanmar's Scam Mills Talk Torture, Death - and the Battle to Escape"*, South China Morning Post, 22 January 2024.

Furthermore, victims are unlikely to know much, if at all, about the high-level perpetrators orchestrating the scam operations. Their testimony may therefore only be useful in getting at low-level actors whose prosecution will have no disruptive impact. In the case of trafficking into scam operations, there is abundance of other evidence beyond victim testimony that may yield stronger results. For example, the many physical and forensic evidence at crime scenes would offer actionable intelligence. Many traffickers also force victims to sign 'contracts' to trap them in their exploitative situation.

Victims emerging from scam operations may not self-identify as such due to fears of prosecution and/or deportation, or fears of retaliation by traffickers. Therefore, formal complaints are often not lodged, and investigations may not be commenced.

Challenges in evidence gathering: Where evidence is in another jurisdiction, the challenges associated with both formal and informal cooperation can act as a deterrent to making the attempt at all. For offences that occur within the country, and for which evidence is available within the jurisdiction, procedural limitations may pose barriers to evidence collection. For example, in Sri Lanka, suspects must be presented before the court within 24 hours, which may be insufficient for police who are dealing with events involving several (sometimes more than 100) people and conducting forensic investigations of computers and phones seized, all with limited human and technological resources to do so.

The fact that the many people encountered at those sites (both potential victims and potential suspects) speak foreign languages mean that external cooperation is required, which may not be obtained within prescribed time limits. Where the operational site is in a remote or rural area, these resource challenges are further exacerbated.



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Resource and capacity gaps: Limited resources and capacity to conduct investigations of cybercrime, money laundering, and financial investigations involving crypto-currencies mean that comprehensive investigations are not taken to paint a full picture of the powerful criminals and profits involved.

A key challenge raised in this respect was that of private sector partnerships to provide critical evidence. A wide range of well-known social media and messaging platforms are regularly used to both target people for trafficking and for scam operations. Challenges remain in gathering evidence from companies whose platforms or products are used to perpetrate crimes but may not be registered in the country and/or may not share information because of legislation in other jurisdictions.

Alternative charges to trafficking charges: These very real challenges mean that many cases are not investigated as potential cases of trafficking in persons perpetrated by serious transnational organized crime groups. Instead, to avoid the complexities and resource implications of applying complex legislation related to organized crime and human trafficking, law enforcement may instead opt to investigate under 'simpler' crimes. As a result, people encountered in scam operations may be penalized for immigration violations or charged for fraud-related offences rather than being screened as potential trafficking, and investigations to uncover connections with powerful criminals may not be mounted. Where cases are pursued under trafficking laws, it is very often low-level actors who are prosecuted, such as recruiters, brokers, transporters, and money mules who provide bank accounts or property.

High level targets not pursued: In short, the targeted, proactive approach required to get at the relatively small number of often inter-connected perpetrators involved in trafficking a very large number of victims is so far lacking. As a result, the investigations that take place of simpler offences or of low-level criminals have little deterrent or disruptive effect on high-level perpetrators.


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Prosecution and adjudication

Low prosecution rates: Prosecution rates for all types of trafficking, including for the purpose of forced labour and/or sexual exploitation, are low across the region. Prosecution of complex transnational cases involving powerful actors whose nationalities and activities span several jurisdictions, is uniquely challenging. As mentioned, the few cases that find their way into the court system commonly involve lower-level recruiters or those who facilitate travel to destination countries, rather than the people higher up in the chain of criminality who are yielding the most profits. Media reports point to exceptions in Nepal, where networks have been disrupted and charges laid – including against police officers – for trafficking offences.[58] The pursuit of cases against traffickers of people into forced criminality in scam operations was confirmed by government stakeholders in Nepal.

Overreliance on victim testimony: Given the realities on the ground, the current overreliance on victims to testify in trafficking cases effectively results in impunity for traffickers. Participating in criminal justice processes can be lengthy, costly and ultimately reap no particular benefit for victims. Delays in prosecutorial processes mean that victims who are initially willing to support criminal justice processes may eventually lose patience and instead may opt to settle out of court with suspects or accept payments from them to not pursue actions against them. Even where legislation allows for victims to testify via video-link, it is rarely used in practice. Victim testimony or statements alone are insufficient for prosecutors to prove the elements of the offence beyond a reasonable doubt, signalling a need for proactive investigation and effective cooperation between investigators and prosecutors.

Economic and political challenges: There are significant challenges associated with charging high-level, powerful criminals, including corrupt public officials and private actors. Economic and diplomatic relationships with countries of nationality of both suspects and victims raise both sensitivities and opportunities. Stakeholders may be cautious to ensure that any actions they take to investigate and prosecute perpetrators do not detract, or in any way compromise, the important positive relationships they have with foreign jurisdictions.

Reticence to acknowledge South Asia as a region of destination: There is a prevailing view across the region that where nationals of South Asia are trafficked abroad, authorities in destination countries should take the lead in proactively investigating and prosecuting key offenders. However, that same view is not taken to those potential cases of trafficking into the region. While there is acceptance that trafficking for forced criminality in scam operations takes place elsewhere, it has yet to take hold for occurrences within the region despite the increasing prevalence.

Delays in adopting a destination country posture raise the risk that the region's reputation as a safe haven for organized crime will grow. South Asia's experience as a region of origin for trafficking and the challenges it has dealt with in engaging with destination countries to where its citizens have been trafficked offer key lessons that can be integrated into its own response to trafficking in its jurisdiction. Unless those lessons are heeded and acted upon, countries in the region risk being subject to the same scrutiny and sanctions that have resulted from slow or weak responses in other regions.

58 The Times of India, *"Karnataka: Fake trading apps at core of Nepal-linked cyber fraud, says Mangaluru police chief"*, 5 February 2026; Gujarat Samachar, *"Trafficking ring supplying Indians to Chinese-run scam hubs in Myanmar, Cambodia busted, mastermind held"*, 18 November 2026; WION, *"Hyderabad police make a major cyber fraud bust, arrests 52 people in 'Operation Octopus 2.0'"*, Facebook, (Date accessed: 5 June 2026); Kumar Mukesh, *"'iPhones for Rs 2.5k': Cyber fraud hub busted in Hisar village, 2 held"*, The Times of India, 15 May 2026; The Economic Times, *"UP Police bust inter-state cyber gang in Bareilly with links to Nepal, China; arrests 5"*, 19 April 2026.

Across the region, there are strong legal frameworks in place that can be used as a basis for international cooperation. All South Asian countries are States Parties to the United Nations Convention against Transnational Organized Crime (UNTOC) and the United Nations Convention against Corruption (UNCAC) and can make use of its international cooperation-related provisions.

International cooperation

Strong frameworks for formal cooperation: Across the region, there are strong legal frameworks in place that can be used as a basis for international cooperation. All South Asian countries are States Parties to the UNTOC and the United Nations Convention against Corruption (UNCAC) and can make use of its international cooperation-related provisions. However, none of these instruments has yet been used as a basis for cooperation to confront the organised crime involved in trafficking for forced criminality into scam operations – once again confirming that the challenge is not legislative in nature, but operational. The fact that neither the UNTOC nor the UNCAC have been used to date as a basis for cooperation against these offences should serve as an impetus for States Parties to enhance their use and application, including through capacity building efforts. The Maldives and Sri Lanka are also signatories to the new United Nations Convention against Cybercrime (UNCC).

Table 6: Provisions relating to international cooperation under the UNCAC, UNTOC and the UNCC

UNCAC	UNTOC	Cybercrime Convention
Chapter IV: Provides a framework for mutual legal assistance and encourages joint investigations and other forms of law enforcement cooperation such as agency-to-agency cooperation based on traditional legal processes.	Articles 18 and 27: Details obligations for mutual legal assistance and broad law enforcement cooperation, forming a standard framework for international investigations.	Chapter V: Includes traditional mutual legal assistance and agency-to-agency cooperation, and provisions on domestic procedural and law enforcement powers designed for the ICT environment. It requires States Parties to provide mutual legal assistance and to cooperate with each other for the purpose of collecting, obtaining, preserving and sharing of evidence in electronic form (per chapter V) of any serious crime.

Source: *The Nexus between Cybercrime and Corruption* (UNODC ROSEAP, October 2025), p.24.

Regional cooperation commitments: At the regional level, all five partner countries have signed the South Asian Association for Regional Cooperation (SAARC) Convention on Combating Trafficking in Women and Children for Prostitution. However, this regional instrument is limited in scope, concerning only trafficking in women and children who have been trafficked for sexual exploitation. Thus, trafficking for the purpose of forced criminality in scam operations – victims of which are mostly adult males – explicitly falls outside the scope of the SAARC Convention.

The Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation (BIMSTEC), with whom UNODC has signed an Memorandum of Understanding in April 2025, may have utility for this crime type.[59] The 2022 BIMSTEC Convention on Mutual Legal Assistance in Criminal Matters can serve as a legal basis for mutual assistance among BIMSTEC Member States – the five partner countries in South Asia (except Maldives) and Myanmar and Thailand.[60]

Yet, formal cooperation attempts are rare: The transnational nature of trafficking into forced criminality in scam operations points to the need for international cooperation and there are numerous legal instruments that enable it. However, international cooperation remains a key challenge for countries, both within the South Asia region and beyond. Notwithstanding the above-described international and regional frameworks that provide the legal basis for cooperation, mutual legal assistance (MLA) tends to be slow, with requests received in the wrong form, and requiring support from multiple stakeholders to progress, many of whom may not be familiar with its processes. The range of crime types involved was also cited as a challenge: for example, inconsistencies between approaches to cryptocurrencies may raise challenges in meeting dual criminality requirements for MLA requests.

No examples of formal international cooperation, whether MLA or extradition, were found in responding to cases of trafficking into scams specifically.

Scope to address trafficking for forced criminality through BIMSTEC: The fact that BIMSTEC membership includes countries in both South[61] and South-East Asia – and addresses both trafficking in persons and cybercrime – presents an opportunity for it to be leveraged in confronting trafficking into forced criminality in scam operations.

In 2025, a five-year action plan for BIMSTEC Cyber Security Cooperation was finalised. At the Sixth BIMSTEC Summit Declaration of 4 April 2025 held in Bangkok, Thailand, signatories called for future meetings to address transnational organized crime, in particular human trafficking and scams across digital and telecommunications channels. Bangladesh assumed the chairmanship of BIMSTEC from Thailand for the period of 2025 – 2027.

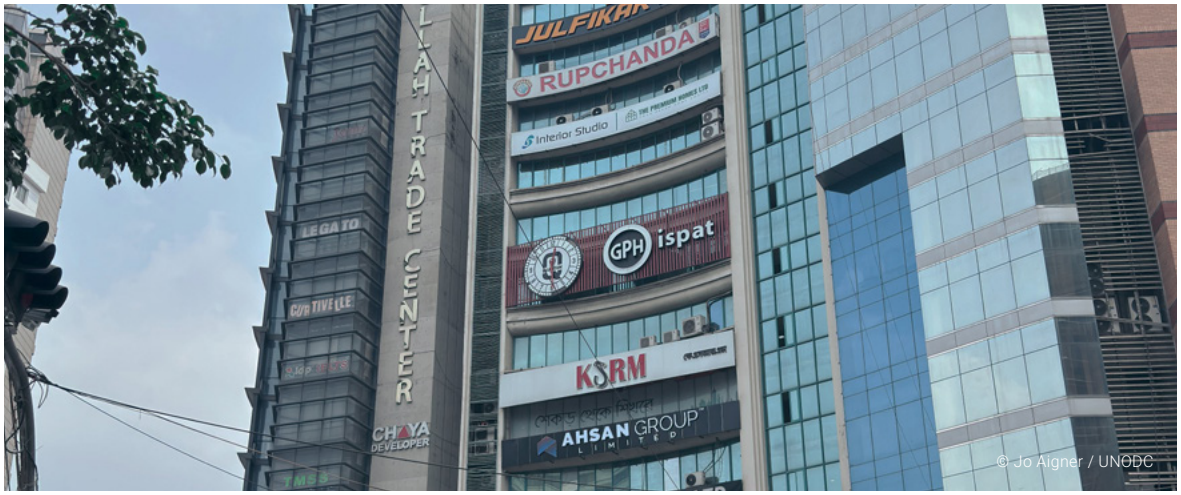
Following the MoU in April 2025, UNODC and BIMSTEC have pledged to enhance regional collaboration in combatting transnational organized crime, drug trafficking and other security threats across South and South-East Asia. In 2026, BIMSTEC and UNODC have developed a joint Plan of Action for 2026-2030 across four thematic areas, including on trafficking in persons and smuggling of migrants. The Plan of Action provides a promising framework under which regional cooperation can be strengthened in addressing trafficking for forced criminality in scam operations.

Appetite for bilateral Mutual Legal Assistance Treaties (MLATs): Many countries in the region have bilateral MLATs with other countries, including in relation to transnational organized crime and trafficking in persons. Given that the existing cooperation frameworks, such as the UNTOC or the BIMSTEC Convention, have not been effectively used in responding to trafficking cases, the

59 United Nations Office on Drugs and Crime, *"UNODC and BIMSTEC sign Memorandum of Understanding for a Safer Bay of Bengal"*, 8 April 2025.

60 BIMSTEC, BIMSTEC Convention on Mutual Legal Assistance in Criminal Matters, 2022.

61 With the exception of the Maldives.



utility and the desirability of pursing the additional MLATs, a time-consuming and resource-intensive endeavour, remains to be seen.

Ad hoc informal (police-to-police) cooperation: International police-to-police cooperation has been reported in responding to scam operations, resulting in arrests and accounts being frozen. However, when responding to the *trafficking in persons* dimension in the context of scam operations, cooperation tends to be limited to repatriation (through deportation) of victims and suspects, rather than the investigation of traffickers.

No joint investigation teams on trafficking in persons: Domestic laws and policies encourage the establishment of joint investigation teams to address transnational trafficking, but no examples could be found of any having been established in practice. Law enforcement officials reported that they may not be authorized to reach out directly to foreign counterparts, hampering capacity to operationalise commitments to conduct joint investigations. Stakeholders have reported that the wide range of workshops, meetings, and conferences organized by UNODC and other international organizations provide police with opportunities to establish relationships and build trust with foreign counterparts, which collectively contribute to strengthening operational cooperation capacity.

Opportunity to apply promising practices of regional and international cooperation mechanisms: There are several examples of international platforms to facilitate cooperation between criminal justice practitioners that South Asian practitioners can engage with and learn from in strengthening their own efforts.

The South-East Asia Justice Network (SEAJust), which UNODC serves as Secretariat, is a judicial network for informal information sharing that facilitates direct communication among its members. SEAJust is 'open to any country or territory within and outside the South-East Asian region'.[62] It has been involved in expediting over 300 cases.

Similarly, the Emergency Response Network (ERN) was initially established among seven South-East Asian countries to respond specifically to trafficking into forced criminality in scam operations, but it has now grown to include additional countries, immigration authorities, Interpol NCBs as well as to address other forms of trafficking and smuggling of migrants. The ERN has been used to achieve joint and parallel investigations of trafficking networks.

62 UNODC, "South-East Asia Justice Network (SEAJust)".

Recommendations

1. Raise awareness among the criminal justice practitioners that the existing trafficking in persons legislation are applicable to the exploitative context of forced criminality in scam operations.

2. Strengthen law enforcement capacity to apply special investigative techniques and conduct financial and cyber investigations to gather evidence against high-level perpetrators and to reduce overreliance on testimonies of victims of trafficking.

3. Equip the agencies mandated to address trafficking, organized crime and cybercrime stakeholders with sufficient human, financial and technological resources to address trafficking into scam operations.

4. Strengthen capacity of agencies mandated to address organized crime and cybercrime to identify potential victims of trafficking, with emphasis on the irrelevance of victim consent where traffickers use means to traffic them.

5. Strengthen interagency coordination and integrate existing cybercrime, organized crime and trafficking in persons responses in coordinated efforts to address the nexus between these crimes.

6. Identify and address procedural obstacles (e.g., limited window of time to interview large numbers of persons taken into custody) and strive to expedite cases of trafficking into forced criminality with due respect for procedural rights of parties.

7. Proactively pursue and prioritize available resources to target the organized criminal infrastructure behind scam operations and its high-level organizers rather than lower-level workforce and to confiscating assets and proceeds of crime.

8. Where trafficking charges are not feasible, explore opportunities to target and disrupt high-level criminal actors by applying alternative offences that are commensurate to the gravity of the crime.

9. Where prosecutions of high-level suspects are not pursued, consider informal and formal cooperative opportunities to proactively share information and support other jurisdictions to bring perpetrators to justice.

10. Leverage existing international, regional and bilateral regimes to create a South Asian regional mechanism to share information on trafficking into forced criminality in scam operations and related crimes.

PART 3. PROTECTION

This analysis is based on open-source information and the primary data collection through stakeholder consultations conducted for the purpose of this report. Key findings and recommendations were validated at the Regional Validation Workshop in June 2026. For more details, see Annex I on methodology.

Screening and Identification

Overreliance on victim self-identification: There is a common misconception that victims of trafficking will identify themselves to authorities. The many reasons why victims may not self-identify are not consistently understood, including situations where victims may not understand what human trafficking is; do not view themselves as having been subject to coercion or manipulation; have little to no awareness of their fundamental rights; or a perception that their experiences are part of the general hardships of life rather than criminal exploitation. Victims also tend not to trust authorities; are fearful of detention and deportation; fear punishment in the destination or their origin country as well as stigmatization by their families and communities for having been trafficked or committing other offences during their victimization. Overreliance on victims to identify themselves has resulted in insufficient proactive identification by authorities of victims forced into criminality in scam operations.

Specific challenges relating to trafficking for the purpose of forced criminality: Challenges persist in screening processes to identify victims of all types of trafficking (including for the purpose of sexual exploitation and for forced labour), resulting in foreign victims potentially treated as irregular migrants or as working in contravention of their visas. Those challenges are compounded in the context of scam operations, where victims may be encountered alongside criminals who have not been trafficked. Furthermore, the volume of people encountered at scam sites is often significant, raising further challenges for consistent screening processes and raising demands for already stretched resources. Different perspectives of stakeholders may result in inaccurate screenings, where for instance law enforcement officers tend to assume encountered people are perpetrators whereas NGOs and others may assume that all such people are victims. Law enforcement officials on the ground may not sufficiently recognize or draw upon the expertise and lived experience of survivors of trafficking for forced criminality. Accurately determining who is who requires that individuals are individually screened through a combination of investigative and victim-centred skills and expertise, which can be time-consuming and resource-intensive.

Uneven and inconsistent screening for potential trafficking victims: In all partner countries consulted under this report, potential victims returning home from scam operations abroad are not screened as a matter of course. For those who may be exploited at scam operations within the country, screening is extremely challenging and inconsistent. Particularly at locations where large numbers of people (including foreign nationals) are encountered, the reality is that officials on site may not be skilled, mandated, or adequately resourced to carry out trafficking screenings. Indicators of trafficking may not be known to them, observed, or even if observed, may not result in referrals. Where large numbers of people are encountered who may speak foreign languages, there are practical barriers to conducting comprehensive individual screenings. The common response reported by authorities, and documented in media reports, is to detain such persons for immigration or other violations and thereafter deport them in cooperation with the country of origin.[63]

63 AFP, *"Sri Lanka arrests 37 Chinese nationals at suspected scam centre: police"*, 3 May 2026; ABC, *"Sri Lanka police report surge in online scam operations amid crackdowns elsewhere"*, 22 May 2026.

The lack of proactive investigation of trafficking into scam operations means that many screenings take place in the context of raids triggered by tip-offs. Furthermore, the type of trafficking at issue may take place at sites that law enforcement officers or labour inspectors do not investigate or inspect as a matter of course, such as in hotels, apartments, private houses and offices. The same challenge is even more pronounced in the case of SEZs, which authorities may consider to be 'off limits' to them.

> *It cannot be assumed that all persons involved in scam operations are victims of trafficking, nor should it be assumed that none are.*

Difficulty in understanding the trafficking offence: The complexity in understanding the nuances of trafficking in persons as a criminal offence, let alone trafficking into forced criminality, raises challenges even for counter-trafficking stakeholders. Understanding the constituent elements of trafficking and the irrelevance of consent when one or more means, such as coercion and deception, are used make it difficult for authorities to carry out accurate identification of potential victims among potential perpetrators.

These nuances are even more complex for non-trafficking actors to grasp, and yet, scam operations are primarily investigated by cybercrime investigators rather than anti-trafficking authorities. As such, those actors on site may not have the mandate nor the capacity to recognise potential indicators of trafficking. Screenings conducted in the context of law enforcement raids to uncover illegal activity are unlikely to be victim-centred nor effective at identifying victimization. The same is true of immigration raids carried out at scam operations, which do not promote effective identification of potential victims among migrants in irregular situations.

Insufficient application of operational procedures, protocols and indicators: Not all countries have effective standard operating procedures (SOPs), protocols or lists of indicators for victim screening and identification. Where there are such tools and procedures in place, they are inconsistently applied and have not been updated for either the user or to the forced criminality context, which may involve a large number of people encountered at once who need to be screened for potential trafficking in persons. As a result, factors that should be approached as clear indicators of trafficking (such as non-payment of wages and document confiscation) may be normalized, rather than being treated as indicators that should trigger further enquiry. These realities highlight the need to develop and/or amend existing standard operating procedures, screening tools and indicators that are sensitive to the scale of people they need to be applied to, and the context and capacity of those applying them.

Lack or low levels of protection measures available to potential victims of trafficking among persons involved in scam operations, which may serve as a disincentive: The insufficient assistance and protection services available in the country for victims of trafficking among those found at scam operations, who are predominantly adult males, presents a challenge that serves as a deterrent for identifying them as victims. Where victim identification does not connect to sufficiently resourced national referral mechanisms, there may be little incentive for authorities to make positive identifications. Therefore, the presumption of victimhood is not consistently applied to screening processes.

Victim-offender overlap raises challenges for screening and referral: Identifying victims among those who have been encountered as offenders raises significant challenges – a person may fall into the category of criminals as well as being identified as a victim of trafficking. The victim-offender overlap creates difficulties for practitioners, who must use their discretion to decide how to process a person who may fall into both categories. It cannot be assumed that all persons involved in scam operations are victims of trafficking, nor should it be assumed that none are. And yet, the assumption that all people encountered are irregular migrants and/or offenders paves the way to deportation rather than to protection and assistance.

Victim and witness protection and assistance

Uneven availability of protection and assistance services: A range of victim services is available across the region. Few victims who have returned from scam operations abroad have benefited from them. The low level of identification of victims of scam operations based in the region suggest that potential victims may not have access to them. Most countries lack comprehensive witness protection programmes to protect witnesses of serious organized crime.

Insufficient resources to respond as both origin and destination countries for trafficking: Embassies in destination countries where victims from South Asia have been trafficked play a vital role in the assistance, protection and repatriation of victims and witnesses abroad. However, their capacity to provide protection and assistance to their nationals is hampered by insufficiency of resources, including staffing and counter-trafficking capacity. At the same time, the insufficiency of protection and assistance services available to foreign victims within the region highlights the challenge that States face in aligning their protection and assistance services to fulfill their obligations as destination countries for trafficking. Embassies and consulates of foreign victims in South Asian countries would also play a critical role in identification, protection and repatriation, yet their limited resources and capacity significantly constrain effective responses to trafficking in destination countries.

Insufficient protection and assistance services available, particularly for adult male victims: Protection and assistance services available across the region, which are scant, are primarily designed to support women and children. Countries in the region have yet to adapt their protection and assistance services for adult males, who around the world account for most victims of trafficking for forced criminality in scam operations. In some cases, the agencies responsible for protection are not explicitly mandated to support adult males.[64] Compounding these challenges are the fact many countries have also yet to adapt their protection posture to that required of a destination country for trafficking in persons, meaning that assistance and protection services are insufficient to serve the significant number of foreign national victims. There is a resulting risk that adult males in need of shelter may instead be accommodated in immigration or other detention facilities.

Conditionality of victim protection: Significant challenges arise when protection services are provided on the condition that victims cooperate in investigation and prosecution processes. There are heightened protection needs for victims who have been trafficked by organized criminals on the one hand, and low incentive to participate in processes against them on the other. This reality, combined with the lack of appeal for victims to be identified as such (as it poses a significant burden with few benefits) as well as the absence of victim-witness protection programmes, means that general counter-trafficking challenges are exacerbated in the context of transnational trafficking into scam operations.

64 For example, the Ministry of Women, Children and Senior Citizens (MoWCSC) in Nepal has victim protection mandates.

Return and reintegration

Challenges faced by South Asian victims abroad: A 2025 study highlighted the challenge that victims of trafficking into forced criminality face when returning home: 'Even when victims manage to escape the scam compounds, they face significant challenges during repatriation, primarily due to the lack of identification documents and expired visas, which leave them vulnerable to arrest and detention.'[65] There are reports of victims being required to pay an overstay fine and being detained, contrary to the non-punishment principle. There reportedly have also been incidents of corruption and extortion, not only of destination country officials but also of diplomatic staff from origin countries, demanding payment from stranded victims to support their repatriation.[66]

Insufficient resource allocation and access for victims abroad: There is a significant and serious gap in support available to repatriate South Asian victims of trafficking. In practice, return and repatriation procedures are largely the result of diplomatic efforts of South Asian countries through its foreign missions in South-East Asia as well as of NGOs. Significant delays in repatriation and the need for victims to sometimes fund their own return, often incurring debts to do so, has contributed to a cycle of vulnerability to re-trafficking. The government assistance that is allocated to support migrant workers abroad may not be available to those who have been trafficked into forced criminality. Such services may only be accessible to persons who have been recruited through legitimate channels, have appropriate visas, and/or have paid into the system. While States bear primary responsibility for facilitating the repatriation of their nationals, the unprecedented scale of recent cases has placed considerable pressure on available repatriation mechanisms and resources. As a result, efforts have often relied on support from international organizations, NGOs, and civil society partners to meet urgent needs and address capacity gaps.

Insufficient reintegration of returning victims: The destitution that some victims of trafficking face when they return home, and insufficient reintegration support, may mean that many end up in situations so precarious that they may contemplate returning to scam operations.[67] Returning victims are rarely provided with state support, financial or otherwise, to reintegrate. Their lack of access to financial support, skills and job training means that they are very often vulnerable to being re-trafficked or otherwise re-entering to the scam industry for lack of viable alternative livelihood opportunities. Insufficient support also leaves them highly susceptible to the offers of traffickers to accept money to not file charges. Additionally, insufficient data on repatriated victims means that opportunities to identify persons at risk of returning to scam operations or other exploitative environments are missed.

Returning victims of trafficking may face significant hardship upon return, particularly where reintegration assistance and livelihood opportunities are limited. In some cases, these circumstances can increase the risk of re-trafficking or re-exploitation. Some victims have returned to scam centres for a range of reasons, including inability to access support, desperation, stigma, large debts and the hope of earning money, among others. Access to financial assistance, skills training, employment opportunities, and psychosocial support remains uneven in origin countries. In addition, limited data on repatriated victims may reduce opportunities to identify and support individuals who remain at heightened risk of further exploitation.

65 Mackenzie Nace, Exploiting Migration Channels: Trafficking for Forced Criminality in Southeast Asia (Mekong Club, 2025), p.8.

66 Moudud Ahmmed Sujan, *"Sold as Cyber slaves"*, The Daily Star, 21 January 2023; UNODC Analysis.

67 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.32.

Insufficient repatriation and reintegration of foreign victims in South Asia: As with other areas of trafficking response, countries of the region that are being targeted by criminals for scam operations have yet to establish a strong destination country response – including in relation to the facilitation of repatriation from their jurisdictions to other countries. In some countries, there are no legislative opportunities for effective repatriation (e.g., Bhutan, Nepal, Sri Lanka), or legislation is insufficient to provide for reflection periods or protection visas (e.g., Bangladesh, Bhutan, Nepal, Sri Lanka). Maldivian law provides for reflection periods and special visas for victims of trafficking, although they have yet to be applied in practice due to low levels of victim identification.

Deportation instead of repatriation from South Asia: In the absence of adequate screening processes and identification, it is common practice for people encountered to be categorically identified as perpetrators or irregular migrants so that they are deported to countries of origin as a matter of course. Across the region, it is not clear what policies and practices apply to the repatriation of foreigners encountered. However, some nationals encountered at scam operations in South Asia have been returned to their home country through processes facilitated by their country of origin. In the primary data collection stage of this report, it was shared that some victims who return to their home countries often feared reprisals from the criminals they have had to associate with as well as potential prosecution from their State. It is likely that such fears are heightened when victims are returned through deportation processes, rather than through screenings, identification, repatriation and reintegration.

Non-punishment

Non-punishment principle in law and policy: Identifying victims of trafficking among people involved in unlawful activity emerged as a key challenge in responding to trafficking into forced criminality in scam operations. Bangladesh has an explicit non-punishment provision in its counter-trafficking legislation, although it is limited to only immigration and document-related offences. In the Maldives, victims of trafficking are protected from immigration detention owing to their illegal entry. In Sri Lanka, provisions on duress and compulsion are provided for in the penal code. Otherwise, in Bhutan, a 2019 SOP gives expression to the principle, though without an explicit legal provision. Nepal protects victims of forced prostitution from liability for killing or injuring perpetrators while escaping from trafficking.

Table 7: Non-punishment principle in South Asian legislation

	Non-punishment in law	**Commentary**
Bangladesh	*The Prevention and Suppression of Trafficking in Persons and Smuggling of Migrants Act, 2026* (PSHTMS Act) Section 54. Protection of Victims and Witnesses in Criminal Proceedings. (1) A victim of trafficking in persons shall not become liable to any criminal prosecution under this Act for his illegally entering into a destination state or transit state, or for his illegally remaining in such state, or for procuring by him or providing to him a fraudulent travel or identity document for entering into such state, if such acts are the direct consequences of the offence of trafficking in persons committed.	Section 54 under the 2026 Act includes the non-criminalization of victims of trafficking and smuggled migrants regarding illegal entry or possession of fraudulent travel or identity documents "if such acts were direct consequences of human trafficking."
Bhutan	There is no explicit non-punishment provision.	Provisions of the *Penal Code of Bhutan, 2004* (e.g., Sections 80-82 on duress, compulsion, or coercion) may be available for defending victims of trafficking for unlawful activities in connection with their trafficking.
Maldives	*Prevention of Human Trafficking Act (Law No. 12 / 2013)* does not contain a specific non-punishment provision. However, victims are protected from detention in the following sections: Section 33(c). A person must not be detained because of the person's status as potential victim of trafficking. Or a person must not be detained based on legality of immigration status of such person. *Section 46. Illegal entry into Maldives by potential victim of trafficking* Section 46(a). Whilst identifying a potential victim of trafficking is an actual victim of trafficking under section 44 of this law, there is sufficient evidence for Maldives Police Service to believe that such person is a foreign national having entered the Maldives illegally, the foreign national may be deemed an illegal immigrant in Maldives, and Maldives Police Service shall have the discretion to act in accordance with the laws and regulations governing such person. Section 46(b). If the potential victim of trafficking entered the Maldives illegally as a result of being a victim of trafficking, such foreign national shall not be an illegal immigrant for the purpose of subsection (a) of this section. *Section 49. Legal protection for illegal immigrant status* If a person is identified as a victim of trafficking in accordance with section 44 of this law, if such person continues to stay in the Maldives illegally, such person shall not be subjected to any charge for the reason thereof.	Provisions in the *Maldives Penal Code, 2014* (e.g., Section 55 on duress) may be available for defending victims of trafficking for unlawful activities in connection with their trafficking.
Nepal	*Human Trafficking and Transportation (Control) Act, 2064 (2007) (HTTCA)* Section 16. Exemption from Punishment If a person knows or there is reasonable ground to believe that he/she is being bought, sold or engaged in prostitution or taken for the same and he/she does not get help to get rid of from those acts or somebody creates obstacle or stops or takes into control or uses force, in such case, if he or she believes that it is impossible to get rid of from such control and on such faith the perpetrator happens to be killed or injured in the course of release, such person shall not be liable for any punishment notwithstanding anything in the prevailing law.	Section 16 exempts persons who are involved in prostitution from criminal liability for killing or injuring perpetrators in the course of escape. It does not protect victims of all types of trafficking from punishment for unlawful activities they were involved in as a direct result of their trafficking, including status offences, minor offences or serious criminal offences.
Sri Lanka	There is no explicit non-punishment provision.	Provisions in the *Penal Code (Amendment) Act No. 16 of 2006* (e.g., Section 87 on 'act to which a person is compelled by threats') may be available for defending victims of trafficking for unlawful activities in connection with their trafficking.

LEGAL FRAMEWORK

THE NON-PUNISHMENT PRINCIPLE

The non-punishment principle acknowledges that where a person lacks criminal intent to commit a crime – including because means have been used to traffic them – they cannot be held responsible for their unlawful actions. Trafficking in persons is a unique and complex crime in the way it operates on a victim. Traffickers use means against a victim – including force, fraud, coercion and the abuse of their vulnerability – to limit a victim's decision-making power and capacity to act. A person cannot be held liable for their involvement in unlawful activities, where they lack the mens rea. In the context of scam operations, victims of trafficking into forced criminality in scam operations are not culpable to the extent that traffickers have damaged their free will to participate.

The non-punishment principle is upheld in both international and regional law.[68] The article 14 savings clause of the Trafficking in Persons Protocol provides a solid basis for the non-punishment principle, reminding States that they must implement that instrument in accordance with their international human rights obligations. Article 2 (b) of the Protocol further indicates that its purpose is to protect and assist the victims of trafficking, with full respect for their human rights. Furthermore, article 25 of the UNTOC concerning assistance and protection of victims requires States to safeguard the rights of victims. This cannot be done if victims are being punished for unlawful activities they were involved in as a direct result of being trafficked. Article 4(2) of the 2014 ILO Protocol to the Forced Labour Convention explicitly provides for the non-punishment of victims of forced or compulsory labour for involvement in unlawful activities they were compelled to commit.

Even in countries that have not included a specific non-punishment provision in their domestic counter-trafficking legislation, there are opportunities to apply the principle in practice. However, its application depends on victims of trafficking being effectively identified as victims of trafficking. If a person is not identified as a victim, he or she is at risk of being arrested, detained, deported, prosecuted or convicted for their role in scam operations, contrary to State obligations to protect victims of trafficking.

Adapted from *Application of counter-trafficking legislation to address trafficking in persons into criminal activities: A comparative analysis of select ASEAN countries (United Nations Office on Drugs and Crime, 2025)*, pp.50-51.

68 The ASEAN Convention against Trafficking in Persons (article 14(7)) states that "Each Party shall, subject to its domestic laws, rules, regulations and policies, and in appropriate cases, consider not holding victims of trafficking in persons criminally or administratively liable, for unlawful acts committed by them, if such acts are directly related to the acts of trafficking", and the 2005 Council of Europe Convention on Action against Trafficking in Human Beings (Council of Europe Treaty Series No. 197) "Each Party shall, in accordance with the basic principles of its legal system, provide for the possibility of not imposing penalties on victims for their involvement in unlawful activities, to the extent that they have been compelled to do so." The principle has garnered strong international consensus. See, *inter alia* Conference of the Parties to the United Nations Convention against Transnational Organized Crime, Working Group on Trafficking in Persons, Report on the meeting of the Working Group on Trafficking in Persons held in Vienna on 14 and 15 April 2009, UN Doc. CTOC/COP/WG.4/2009/2 (21 April 2009) 3 [12]; UN Conference of the Parties to the United Nations Convention against Transnational Organized Crime, Activities of the Working Group on Trafficking in Persons, UN Doc. CTOC/COP/2010/6 (10 August 2010) 4 [16(b)]

Determining who should be punished for their role in scams is extremely challenging, particularly given that some victims of trafficking may choose to remain or return to scam operations, or recruit others into it – a stark reminder that victimization and perpetration are not binary concepts.

Inconsistent understanding and application of the non-punishment principle in the context of forced criminality in scam operations: Notwithstanding the uneven reflection in domestic legislation and policies, there is a strong understanding among the consulted South Asian stakeholders of the non-punishment principle as it applies to victims of trafficking who have been forced into criminality, i.e. that South Asians who are involved in scam operations abroad are likely to have been trafficked victims, to whom the non-punishment principle should apply.

However, authorities in South Asia have yet to consistently apply that same assumption to those involved in scam operations located within their jurisdictions, who are commonly presumed to be criminals instead. The key challenge to the effective application of the non-punishment principle in the region is the lack or dearth of effective identification of victims. As discussed above at length, persons encountered at scam operations located in the region are not screened as a matter of course, meaning that victims of trafficking may not be effectively identified and are therefore exposed to the risk of punishment, including through detention, deportation, fines and imprisonment, for unlawful activities committed during the experience of being trafficked.

Exercise of discretion to protect victims from punishment: There is clear scope to strengthen legislative protection of the non-punishment principle. The key challenge is not the framework in place, but the application of the principle in practice. Frontline officials may have discretion to divert people that they encounter into protection channels and away from punitive processes (for instance, where a person encountered at scam operations shows visible signs of having been tortured), but the extent to which they exercise them is not clear. Similarly, prosecutors may use discretion, including on public interest considerations, to avoid prosecuting a victim of trafficking.

Statutory provisions concerning culpability and statutory defences could, at least in theory, be exercised by skilled practitioners to establish that victims of trafficking are not culpable for unlawful activities in connection to their trafficking. However, these provisions are measures of last resort for victims who have not been diverted away from the criminal justice system into protection channels.

Non-identification as a barrier to protection from punishment: The key barrier in practice to the application of the non-punishment principle is the lack of victim identification. Where victims are not identified, the principle cannot be applied to them. The risk of victims being punished is exacerbated in the context of this form of trafficking, where political and policy priorities are on addressing the cybercrime aspect of the phenomenon without also necessarily applying a counter-trafficking approach to identify potential victims among suspects.

Challenges of upholding the non-punishment principle for identified victims of trafficking, while ending impunity for criminals: It is challenging to promote the non-punishment of people forced to engage in online scams, while at the same time recognizing that some individuals voluntarily and willingly participate in, facilitate, or direct scam operations. The reality that many people involved in scam operations are not trafficked must be recognized, and potential offenders should be treated with due process. Determining who should be punished for their role in scams is extremely challenging, particularly given that some victims of trafficking may choose to remain or return to scam operations, or recruit others into it – a stark reminder that victimization and perpetration are not binary concepts.

A particularly troubling challenge arises from the situation of victims of trafficking who return to scam operations. As mentioned above, underlying motivations may differ: while some may be lured by promises or expectations of improved or better conditions and the benefits they may receive (which may include food, accommodation, money, drugs, nightclubs, sexual services), others may have been insufficiently protected and assisted in reintegration, finding themselves in desperate situations to make a living in the absence of viable alternatives otherwise. Yet in other cases, some may see the high earning potential.

That people do not fit into neat categories of victim or offender points to the limitations of victim screening processes and the sheer complexities of applying the non-punishment principle in practice. These limitations must be acknowledged against the reality that who is a victim and who is an offender is not a binary distinction and attempting to impose a counter-trafficking approach to situations where it is an inadequate response may detract from better suited responses to provide assistance to people who have suffered harm and to disrupt the criminals involved.



Photo: Magnific

Recommendations

1. Sensitize frontline officers to the irrelevance of victim consent where traffickers have used means as well as the many reasons why victims of trafficking into forced criminality may not identify themselves as victims of trafficking.

2. Train frontline officers to understand and fulfill their duty to proactively screen for victims of trafficking among persons encountered in scam operations and enhance their capacity to identify and refer victims of trafficking to available protection and assistance services.

3. Develop or amend multi-agency Standard Operating Procedures for victim-sensitive law enforcement raids of scam operations to strengthen coordination, evidence gathering, chain of custody, and victim screening.

4. Explore opportunities to draw on insights of victim-survivors to develop screening indicators, tools, procedures and other resources to identify victims of trafficking into forced criminality, including in large-scale scam operations. [69]

5. Consult practitioners, experts and victim-survivors to determine whether existing victim protection, assistance and reintegration services are fit for purpose and sufficiently tailored for victims, including for adult foreign males.

6. Map the assistance and protection services available to victims of crime at scam operations who have suffered harm, regardless of whether they are positively identified as victims of trafficking.

7. Strengthen capacity to apply the non-punishment principle across all stages of criminal justice response to trafficking into forced criminality in scam operations, including in criminal justice processes involving scammers who may be victims of trafficking.

8. Identify and remove barriers that victims returning from scam operations abroad face in accessing protection and assistance services.

9. Assess whether the available protection and assistance services are meaningfully mitigating vulnerability to re-trafficking or otherwise re-entering the scam industry.

10. Develop Standard Operating Procedures for diplomatic and consular staff and provide them with appropriate resources to assist, protect and repatriate nationals trafficked for the purpose of forced criminality in scam operations abroad.

69 UNODC's *Key Indicators of Trafficking in Persons for Forced Criminality to Commit Cyber Enabled Crimes* (UNODC ROSEAP, May 2023) can be referred to as a basis for developing country-specific indicators.

PART 4. PREVENTION

This analysis is based on open-source information and the primary data collection through stakeholder consultations conducted for the purpose of this report. Key findings and recommendations were validated at the Regional Validation Workshop in June 2026. For more details, see Annex I on methodology.

To address the scam threat and vulnerability landscape facing the South Asian region, there are a host of preventative regulations and measures external to the counter-trafficking response that can be strengthened and enforced to bolster resilience against exploitation by organized crime groups. While an in-depth discussion of such measures are beyond the scope of this report, they include, among others: strengthening regulations to combat money laundering, regulations in the banking and financial sector, in the casino and online gaming sector, the regulation and oversight of SEZs, and the regulation of social media and messaging platforms facilitating criminal activities within the jurisdiction of South Asia.[70]

Awareness raising

Travel warnings issued by embassies and government agencies: Warnings about the risks of being trafficked into forced criminality have been issued through government websites, embassies, and social media websites. For example, the Embassy of Bangladesh in Thailand and Nepali and Sri Lankan embassies located in Cambodia, Lao PDR, Myanmar and Thailand have all issued travel warnings. Police in South Asian countries have also issued social media warnings about the risk of falling victim to fraudulent job offers.

Awareness raising campaigns on trafficking into forced criminality in scam operations: Few examples could be found of large-scale State-sponsored awareness raising campaigns about this form of trafficking specifically in South Asia. Some effort has been made (e.g., in Nepal) to provide information to the media to encourage their dissemination of information. International NGOs in South-East Asia have undertaken awareness raising efforts, including among South Asians who arrive at specific airports or who stay at specific hotels. International NGOs in South Asia have likewise raised awareness of the risk of being trafficked into scam operations. One government agency observed that messages highlighting the risks that the potential victimization may pose to their family members can be more effective than messages focusing solely on the risks faced by the aspirant migrants themselves.

The impact of these travel warnings and campaigns can be difficult to measure. In some instances, awareness raising messages may not fully reflect the evolving recruitment methods used by traffickers and organized criminal groups. For example, warnings may focus on destination countries, whereas prospective victims are often initially recruited or encouraged to travel through transit countries. As a result, prevention messages may not always resonate with intended audiences or address the specific risks they encounter. In addition, while campaign reach can often be measured, less is known about the extent to which such initiatives influence awareness, risk perception, and behaviour among intended audiences.

70 Efforts in this respect are critical: research indicates that up to 10% of Meta's global revenue (around $16 billion) comes from advertising scam ads. Jessica McMaster, *"Meta Allowed and Profited From Scam Ads, Lawsuit Claims"*, AARP, 24 April 2026.

Encouraging media reporting: State actors and non-state actors have had some success in raising awareness through media engagement and reporting. Coverage has increased in recent years, helping to bring greater public attention to the issue. However, concerns remain that awareness of the specific risks, recruitment methods, and indicators associated with trafficking into these operations may not yet be widespread among populations at risk. Interviews with some victims suggest that they had little or no prior knowledge of scam operations or the possibility of being trafficked into them before their exploitation occurred.[71]

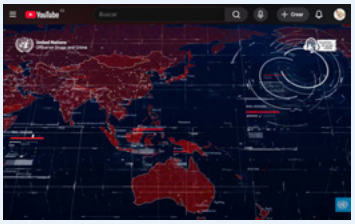
Challenges in designing resonant messaging: Many countries in the region rely heavily on remittances from migrants, which complicates any attempt to challenge positive perceptions of migration. Most aspirant migrants do not understand trafficking (or smuggling) risks and even when known, consider such risks to be worth taking in the absence of alternative options to secure the livelihoods of their families in their home countries.

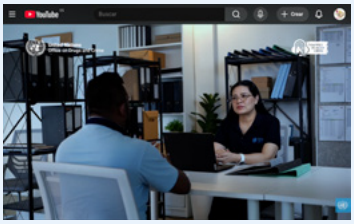
The effectiveness of awareness raising campaigns for this type of trafficking is further challenged by its scope, scale and the extremity of the violence involved. Messages may be dismissed as exaggerations or occurring only in exceptional cases, particularly against experiences of some willing workers in scam centres where conditions are more moderate.

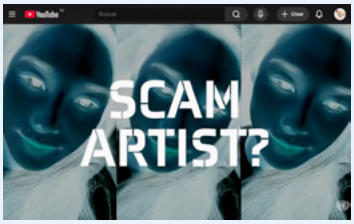
UNODC AWARENESS RAISING CAMPAIGN

In late 2025, UNODC Regional Office for South-East Asia and the Pacific and the International Justice Mission (IJM) launched an awareness raising campaign called 'Trapped in Scam Crime.'[72]

Many of the elements of that campaign specifically feature victims of trafficking from South Asian countries; see for instance the 'trapped in scam crime' (4:58),[73] the survivor testimony of 'Gavesh' (5.51),[74] and the non-punishment-related video 'Scam Artist or Victim of Trafficking – Inside a scam farm' (10:40).[75]







These open-source materials are freely available in multiple languages for counter-trafficking stakeholders to use for their awareness raising purposes.

71 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026), p.24.

72 UNODC Regional Office for Southeast Asia and the Pacific, *"#TrappedInScamCrime Regional Campaign"*, (Date accessed: 3 June 2026).

73 UNODC, *"Trapped in Scam Crime Regional Campaign"*, YouTube, 21 January 2026.

74 UNODC, *"Survivor Testimonial Video – Gavesh"*, YouTube, 21 January 2026.

75 UNODC, *"Scam Artist or Human Trafficking Victim? – Inside a Scam Farm"*, YouTube, 10 July 2024.

Safe migration

Regulation of recruitment agencies: Many States are investing in the monitoring and regulation of recruitment agencies (Bangladesh, Bhutan, Nepal, Sri Lanka) and pre-departure training and information (Bhutan, Nepal, Sri Lanka). It is vital that any efforts to regulate, fine and/or revoke licences of recruitment agencies that are found to knowingly or intentionally be involved in the trafficking of people into forced criminality do not stop short at civil measures but also include opportunities to hold them criminally liable. Some countries have or are creating recruitment portals for those looking for work opportunities abroad to help jobseekers differentiate between legitimate and potentially fraudulent job advertisements.

High cost of regular migration channels diverting people into irregular channels: In some countries, the high cost of regular channels for work overseas (including through recruitment fees) can encourage prospective migrant workers to seek out irregular channels, potentially making them vulnerable to recruitment by traffickers. Employer-paid recruitment fees would reduce risks in this respect.

Insufficient governance of inward-bound migration: Little information could be found about the measures in place in the South Asian countries covered under this report to protect inward-bound travellers and prospective migrant workers from potential exploitation. Likewise, there were no risk assessment processes conducted by criminal justice practitioners for inbound travellers, particularly for the purpose of identifying potential victims or perpetrators of crimes linked to scam operations.



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Border and document measures

Border screening capacity: In the context of preventing trafficking into forced criminality, 'strengthened' borders means ensuring that border points are staffed by those who have sufficient capacity to screen for indicators of trafficking, and to identify potential traffickers and victims among those people who are travelling in either direction across national borders. As such, equipping border officials with indicators relevant to trafficking for forced criminality into scam operations, including traveller profile, destination and type of visa, is critical in this respect, as is empowering officials to exercise their discretion to intervene to either prevent movement or to raise awareness of risks.

Interference with movement of potential victim: Countries in South Asia have adopted different approaches to addressing situations in which a traveller may be at risk of trafficking. In some jurisdictions (e.g., Bangladesh), authorities may intervene where there are reasonable grounds to believe that an individual faces a risk of exploitation, including in cases where the individual has required documentation. In others (e.g., Nepal, Sri Lanka), authorities exercise more limited powers to restrict travel, placing emphasis on safeguarding freedom of movement.

Recent responses by some countries to trafficking into scam operations have included the issuance of travel advisories, targeted travel restrictions, and enhanced screening measures for travel to identified high-risk locations.[76] Such measures illustrate the range of tools that States have employed in response to evolving trafficking risks.

These differing approaches both within and outside the region reflect the need to balance a range of considerations, including the right to freedom of movement, the prevention of trafficking in persons, and the protection of individuals from exploitation and other serious harms.

Measures aimed at preventing trafficking are most effective when informed by robust evidence, risk assessments, and clear safeguards to ensure that interventions are proportionate, non-discriminatory, and consistent with human rights standards.[77]

Travel and identity documents: Most countries have legislation in place to address the use of fraudulent travel or identity documents, including in the commission of trafficking in persons. However, challenges of keeping pace with technological advancements in travel and identity document fraud hamper the application of such legislation. It is also unclear in any of the countries whether document control legislation has been applied to the context of trafficking for forced criminality, where trafficking was enabled by fraudulent documents.

Visa policies: As countries in the region shift from origin countries to also become destination countries for scam operations (which may or may not involve trafficking in persons), it is important to determine whether border and document control measures are equipped to address inward-bound movements of people – both potential criminals and potential victims. Many South Asians who have been trafficked into scam operations travelled on tourist visas. Notably, many of the people who have been encountered in scam operations in South Asian countries have also travelled into the region on tourist visas.

Corruption: Authorities highlighted the corruption risks associated with accreditation systems for outward-bound migrants, both in the issuance of the required permits and in the facilitation of travel using those permits. Critically, border and document measures to guard against trafficking into forced criminality, whether from or into the country, requires measures to address corruption in both border and document control processes that enable these serious crimes to occur.

76 For example, as a response to thousands of its citizens being trapped in scam compounds and the torture and murder of one of its citizens, South Korea implemented a travel ban for its citizens to travel to certain parts of Cambodia. Jack Kim, *"South Korea issues travel ban for parts of Cambodia after nationals trapped in scam centres"*, Reuters, 15 October 2025.

77 Blanket policies that restrict migration of certain people (e.g., women or young adults) to certain places (e.g., to the Middle East) may attract criticism for being discriminatory in purpose or effect, and for raising risk of trafficking by diverting people away from regular channels into riskier ones.

Recommendations

1. Learn from South-East Asia and other regions to proactively identify, assess and mitigate risks of organized crime groups establishing scam operations in South Asia.

2. Collate and analyse law enforcement, immigration, administrative and other data to develop profiles of victims and perpetrators of scam operations, trafficking and related crimes that can inform resource allocation and disruption strategies.

3. Assess and address regulatory vulnerabilities in Special Economic Zones (SEZs) and relevant sectors (e.g., finance, casinos and online gaming, technology, and infrastructure projects) that may be exploited to support scam operations, including through law enforcement access to the zones and collaboration with SEZ boards and management structures.

4. Aggregate law enforcement and immigration data to prevent attempted re-entry of criminals involved in trafficking and scam operations into the country for nefarious purposes.

5. Collect and share relevant trafficking trends from, into and within the country with stakeholders across trafficking routes and engage with victim-survivors in developing targeted and actionable awareness raising messages.

6. Strengthen resilience of tourism and labour migration visa regimes to abuse by organised crime groups to move money and people across borders for scam operations.

7. Regulate and monitor casinos, gambling, call centres, IT, social media and other businesses that can operate as fronts for scam operations and trafficking for forced criminality.

8. Regulate and monitor recruitment agencies and pursue criminal charges against natural and legal persons involved in recruitment into scam operations.

9. Put in place accountability mechanisms at ports of entry, exit and transit for criminals and victims of trafficking from, to and through the country, to minimise the role of corruption in facilitating trafficking into scam operations.

10. Consider measures to prevent the departure or entry of individuals assessed to be at significant risk of trafficking into scam operations, in line with domestic law and international human rights obligations, including through secondary screening processes to identify trafficking indicators.

COUNTRY SNAPSHOTS



BANGLADESH





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COUNTRY SNAPSHOT:

BANGLADESH

This country snapshot is based on open-source information as well as stakeholder consultations carried out in Bangladesh with 44 people across ten different agencies. The content of this snapshot was further enhanced at the Regional Validation Workshop held in June 2026, attended by delegations from five countries, including six participants from Bangladesh who provided extensive inputs. For more details, see Annex I on methodology.

TRAFFICKING FROM BANGLADESH

Since around 2022, Bangladeshi nationals have been identified among victims of trafficking into forced criminality in scam operations across South-East Asia.[78] Key destinations include Cambodia, Lao PDR, Myanmar, the Philippines, Thailand, and the United Arab Emirates.[79]

The dominant modus operandi of the traffickers is deceptive online recruitment: victims are deceived by offers of employment online or recruited through a layered network of licensed agencies and informal brokers (*dalals*) operating at district and village level.[80] Victims have been lured by fake job offers posted on social media sites advertising salaries of between 800 and 1,500 USD per month. Officials report that brokers collect between 2,000 and 5,000 USD for recruitment fees, which the victims' families occasionally meet by mortgaging land and thereby raising debt-related risks.

Authorities reported that in some cases, Bangladeshis travel with legitimate documents for legitimate jobs (including reportedly in the Cambodian construction sector) but are subsequently recruited into the scam industry. Unlike in other countries where victims are often educated, Bangladeshi authorities reported that victims of trafficking into forced criminality in scam operations have been generally less educated and come from rural or semi-urban areas. As elsewhere, victims are primarily young men aged between 18 to 35 years with aspirations to migrate or who are already labour migrants.

Some victims also reported to have been initially lured by smuggling opportunities to Australia or Canada, only to have instead been trafficked into South-East Asia. In some cases, they are told that they first have to travel through Cambodia on the way to their intended destination country. Some traffickers operate

78 Casinos, cyber fraud, and trafficking in persons for forced criminality in Southeast Asia, Policy Report (UNODC, September 2023), p.24; Transnational Organized Crime and the Convergence of Cyber-Enabled Fraud, Underground Banking and Technological Innovation in Southeast Asia: A Shifting Threat Landscape (UNODC, October 2024), p.47.

79 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026); Uncovering the Spread of Human Trafficking for Online Fraud into Laos and Dubai (Humanity Research Consultancy, July 2024), p.13.

80 Kristina Amerhauser and Alex Goodwin, *A World of Deceit: Mapping the Landscape of the Global Scam Centre Phenomenon* (Global Initiative against Transnational Organized Crime, March 2026), p.30.

out of Dubai, recruiting Bangladeshi migrant workers with promises of high-paying jobs in Thailand, before trafficking them across the Thai border into Cambodia, Lao PDR or Myanmar.[81] Stakeholders report that victims have also been trafficked elsewhere in South Asia to the Middle East and to countries in Southern Europe. Bangladeshi migrants in the Gulf States are particularly vulnerable to onward trafficking due to high migration costs, low wages, and job instability owing to ongoing conflict in the region that make them susceptible to fraudulent job offers in South-East Asia.

That there currently is no systematic data available on the number of Bangladeshis trafficked into scam operations in South-East Asia was highlighted as a key knowledge gap during both the primary data collection and the Regional Validation Workshop convened for the purposes of this report.

TRAFFICKING INTO AND WITHIN BANGLADESH

Cyber-enabled fraud, identity theft and phishing are widespread within Bangladesh, accelerated by the digitalization of Bangladesh's financial systems. Cyber-enabled fraud and scams have more recently emerged within Bangladesh. According to media reports, in January 2026, six people were reprimanded for conducting Telegram-based scam operations and authorities seized thousands of SIM cards, phones, and VoIP devices.[82] In May 2026, Bangladesh police arrested nine suspects, including six foreign nationals, in Dhaka for alleged online gambling, cyber fraud, and illegal digital financial transactions. Investigators stated that the group targeted Bangladeshis through online advertisements and laundered proceeds abroad.[83]

The Dhaka Metropolitan Police Detective Branch and the Cyber Personnel Management and Development Unit have investigated online job scam syndicates and scam operations with Bangladeshi perpetrators, to which the *Cyber Security Act, 2026* has been applied. In June 2021, Bangladesh CID uncovered a case involving a network exploiting livestreaming platforms to generate illicit profits and virtual-currency schemes.[84]

As with trafficking cases in South-East Asia, there is currently no data kept by official authorities on potential human trafficking involved in scam operations in Bangladesh.

81 Ali Al Shouk and Ramola Talwar Badam, *"How Dubai Police are cracking down on scams involving real company names – but fake jobs"*, The National, 21 January 2026.

82 The Business Standard, *"Telegram-based job scam: Six, including five Chinese nationals, placed on remand"*, 13 January 2026.

83 The Business Standard, *"6 Chinese nationals among 9 arrested over online gambling, cyber fraud"*, 14 May 2026.

84 The Business Standard, *"Bigo Live 'scam' gang busted"*, 13 June 2021.

VULNERABILITIES AND OPPORTUNITIES

The involvement of private companies in criminal activity, including extortion via gambling apps and loan sharks, has been noted. Offshore gambling operators have established a foothold despite gambling being illegal, creating associated risks of money laundering. The *Cyber Security Act 2026* has partly addressed gaps left by the outdated *Public Gambling Act* of 1867, though enforcement remains limited.

There is currently a dearth of data about potential human trafficking links to scam operations within Bangladesh. Government stakeholders consulted for this research considered the risk to be low, partly due to a perception that scam compounds – of the type found in South-East Asia – require large spaces and remote geography and could not emerge in Bangladesh with its densely populated landscape. This perception gap warrants urgent attention as the organized crime landscape appears to be evolving to diffused rather than centralised models that operate from small premises.

At present, there around eight operational Special Economic Zones (SEZs) in Bangladesh. However, the government is seeking to establish 100 by 2030, including Government EZs, Private EZs, 'Government-to-Government' (G2G) EZs, Public Private Partnership (PPP) EZs and Special Tourist Parks. Several more SEZs and Export Processing Zones (EPZs) are proposed throughout the country – including in what have been called by the Bangladesh Economic Zone Authority (BEZA) as 'backward and underdeveloped regions.'[85] State authorities consulted in this report perceive the risk of such SEZs in Bangladesh being misused by organized criminals, as has occurred in South-East Asia, to be low.

Additionally, there are 'Hi-Tech Parks', or special technology zones designed to attract IT, software, electronics, and other knowledge-based industries, spread across Bangladesh in different stages of development. They are administered by the Bangladesh Hi-Tech Park Authority (BHTPA), which was established under the *Bangladesh Hi-Tech Park Authority Act 2010*. Like SEZs, the Hi-Tech Parks are governed by a range of specific laws and policies that are different from the rest of the country. The governance and regulatory structure incentivize foreign investments.[86]

Law enforcement jurisdiction applies in SEZs and EPZs, but in practice has not been exercised. Labour inspectors have no jurisdiction to carry out any monitoring in SEZs and EPZs, which are instead administered by the Bangladesh Export Processing Zone Authority (BEPZA), attached to the Prime Minister's Office.[87]

Leveraging the experiences and lessons learned by the South-East Asian countries in this aspect, there is scope for Bangladesh authorities to assess the risks and enhance the regulatory oversight over its special zones in order to identify and mitigate the risks for criminal misuse by organized crime groups and for labour inspectors to be empowered to monitor SEZs, EPZs and Hi-Tech Parks.

85 Bangladesh Economic Zones Authority, *"BEZA at a Glance"*, 2026.

86 Government of the People's Republic of Bangladesh, *"Bangladesh Hi-Tech Park Authority"*, 2 June 2026; Bangladesh Hi-Tech Park Authority, *"Bangladesh – Potential Destination for Invest in Hi-Tech Industry"*, 2026.

87 Government of the People's Republic of Bangladesh, *"Bangladesh Hi-Tech Park Authority"*, 2 June 2026.

COUNTER-TRAFFICKING STAKEHOLDERS IN BANGLADESH

The Ministry of Home Affairs (MOHA) is the focal division for counter-trafficking. It facilitates the National Anti-Human Trafficking Authority. The Ministry of Foreign Affairs (MoFA) and the Ministry of Expatriates Welfare and Overseas Employment (MEWOE) are responsible for rescues and returns of victims, alongside the embassies in relevant countries.

In the criminal justice domain, the Criminal Investigation Department (CID) is the primary authority for investigating trafficking cases, along with the Police Bureau of Investigation (PBI) and the Counterterrorism and Transnational Crime Unit under the Metropolitan Police. An Interpol National Central Bureau (NCB) is based in Police Headquarters. The Cyber Crime Investigation Division of Dhaka Metropolitan Police is responsible for the investigation of cybercrime, which includes the online recruitment into fraudulent work.

The National Anti-Human Trafficking Authority includes both government and non-government actors, including the Ministry of Foreign Affairs (MOFA), Ministry of Law, Justice, and Parliamentary Affairs (MoLJPA), Ministry of Social Welfare (MoSW), Ministry of Women and Children Affairs (MoWCA), Ministry of Labour and Employment (MoLE), Ministry of Expatriates' Welfare and Overseas Employment (MEWOE), and Ministry of Education (MoE).

Prosecution

Criminalization and jurisdiction: The Government of Bangladesh has acceded to the UNTOC and to the Trafficking Protocol in September 2019.[88] It has not enacted law specifically addressing organized crime, though the *Penal Code 1860* and the *Money Laundering Prevention Act 2012* are relevant. The *Cyber Security Act 2026*, which repeals the *Cyber Security Act* of 2023, addresses cyber fraud and other cyber offences. The key instrument to address trafficking in persons is the *Prevention and Suppression of Trafficking in Persons and Smuggling of Migrants Act 2026* (PSHTMS), which has amended and replaced the *Prevention and Suppression of Human Trafficking Act 2012* (PSHTA). The trafficking definition in the 2026 Act is non-exhaustive, and the enumerated list of exploitative purposes have been expanded to include 'forcing a person to commit criminal acts (Section 2(20)(i)). The act also criminalizes digital promotion and online recruitment (Section 20).

Law enforcement and investigation: Currently, as elsewhere, response to trafficking is largely directed at the lower-level criminals who are investigated and potentially prosecuted for trafficking. For various reasons, investigators limit their evidence gathering to what is available within the jurisdiction, meaning that often only the first tier (recruiter) and sometimes middlemen are investigated, with more powerful transnational actors rarely investigated. Investigators, particularly outside of the capital, may prefer to apply more basic laws (for instance, under the *Penal Code 1860*) to the more complex offences under the counter-trafficking legislation. Capacity to conduct other necessary investigations, such as financial and cyber investigations or digital evidence gathering (e.g.,

88 Bangladesh is not yet party to the UN Smuggling Protocol.

from social media and messaging platforms), has not kept pace with the evolution of criminal modus operandi.

The newly adopted *Prevention and Suppression of Trafficking in Persons and Smuggling of Migrants Act 2026* (PSHTMS) strengthened investigative powers of the police, which the authorities consider will enhance responses to organized criminals trafficking people into scam operations.

Prosecution and adjudication: Since the PSHTA 2012 and under the PSHTMS Act 2026, trafficking offences have been tried at the Anti-Human Trafficking Offence (AHTO) Tribunals spread across the country. However, stakeholders reported that victims tend to settle out of court rather than pursue lengthy criminal justice processes, which can take several years and ultimately yield little for victims. Lengthy delays, overreliance on victim cooperation, and dearth of victim protection measures all make payments by offenders to not file complaints appealing to victims and their families. Overreliance on victim testimony and the absence of alternative evidence often proves fatal to cases. Successful cases against traffickers require the rare confluence of commitment and resources by individual investigating officers, prosecutors and judges.

International cooperation: Bangladesh has a strong legislative framework to cooperate against trafficking through the PSHTMS Act 2026, the *Overseas Employment and Migrants Act 2013* (OEMA), and the *Extradition Act 1974*, all of which include several provisions of relevance to trafficking into forced criminality in scam operations in its scheduled offences. The 2026 Act also incorporates the *Mutual Legal Assistance in Criminal Matters Act 2012*. Bangladesh also has bilateral extradition and mutual legal assistance treaties in place with many countries.

However, in practice, it does not routinely engage in international cooperation against trafficking. Formal cooperation through diplomatic channels is considered slow, bureaucratic and to rarely yield response. Informal police-to-police cooperation has proven challenging in the absence of pre-existing personal relationships with foreign counterparts. Networking opportunities facilitated by UNODC and other international partners have proven resourceful in this regard. There have been a few successful cases of international cooperation in the context of repatriation of victims and information received through foreign embassies based in Bangladesh.

Protection

Screening and identification: Bangladeshis returning from scam compounds abroad are reportedly not routinely screened for potential trafficking upon return, in addition to not having been consistently screened in countries of destinations. Bangladesh has launched a National Referral Mechanism in 2024 and Victim Identification Guidelines, but they are not consistently applied yet. Stakeholders report that screening capacity remains uneven across the country and that few cases are referred to protection services. As elsewhere, high turnover of staff raises challenges in building sustainable institutional capacity. Stakeholders who have the capacity to screen and identify victims of trafficking in forced criminality in scam operations within the country are unlikely to encounter them in their day-to-day work as they take place in private premises that labour and other inspectors are unlikely to monitor. As mentioned above, inspections of Export Processing Zones (EPZs) and Special Economic Zones (SEZs) are not routinely carried out.

Victim and witness protection: The PSHTMS Act 2026 introduces provisions to strengthen victim and witness protection, including to protect their identity and to criminalize influencing or intimidating them. Such provisions may be beneficial in the context of trafficking into scam operations given that perpetrators are often powerful people. However, the absence of a Witness Protection Programme in Bangladesh poses a challenge in protecting victims and witnesses from well-connected criminals.

Repatriation: Section 50 of the PSHTMS Act 2026 provides for MOFA (including through its embassies) or MOHA to assist in the return of Bangladeshi victims. There is no provision allowing foreign victims to remain in Bangladesh. There are challenges associated with repatriating victims from countries where Bangladesh has no embassy.

Bangladeshi victims identified in Cambodia, Lao PDR and Myanmar have been repatriated through Thailand. There have been reports of corruption of diplomatic personnel in the past, with stranded victims having to pay corrupt officials to facilitate their release from detention and issue documents.[89]

Resources allocated for return, both within and outside the criminal justice system, are insufficient, meaning that the government largely relies on international organisations and civil society organisations. Resources allocated to repatriate migrant workers in 'situations of distress' under Section 29(3) of the *Overseas Employment and Migrants Act 2013* (OEMA) are not always accessible to victims of trafficking, given that: (i) work involved in scam operations do not fall under the ambit of the law; and (ii) because recruitment agencies who knowingly place victims in those situations are not legitimate operations. Lengthy delays have meant that some victims have had to fund their own repatriation, incurring debts to do so and thereby further entrenching their vulnerability to re-trafficking.

Reintegration: There are shortcomings in the application of legislative protections and assistance, particularly for those returning to Bangladesh from scam operations abroad. As mentioned above, returning victims are not consistently screened nor identified, meaning that they are not referred for reintegration assistance.

Stakeholders have noted that the assistance that some returning victims have received is provided primarily by non-state actors. The lack of reintegration support makes returning victims susceptible to offers from traffickers to accept money in exchange for their agreement not to file charges. It also raises risks of vulnerability to re-trafficking or even actively choosing to return to scam operations.

Non-punishment: The PSHTMS Act 2026 provides for the non-criminalization of victims of trafficking and smuggled migrants regarding illegal entry or possession of fraudulent travel or identity documents, 'if such acts were direct consequences of human trafficking.'[90] Complexities may arise in protecting victims from criminalization, who knowingly travelled irregularly but were subsequently exploited.

There is general acceptance that Bangladeshis who have been exploited in scam compounds abroad are victims and not perpetrators of crime. However, there is limited capacity to formally identify those who travelled abroad willingly for work and were subsequently trafficked as victims. Practitioners report that it is challenging in practice to obtain sufficient information from potential victims among people involved in scam operations to the level that would enable them to differentiate between victims and criminals. Some victims who have filed cases against traffickers have subsequently had cases filed against them by traffickers, suggesting that they may be punished by use of Strategic Lawsuits against Public Participation (SLAPP suits).

89 US TIP Report Bangladesh 2024

90 Section 54, PSHTMS Act 2026, previously 37 of the PSHTA 2012.

Prevention

Awareness raising: The Bangladeshi Embassy in Thailand has issued warnings to Bangladeshi citizens of job scams using online platforms to traffic people to Thailand, Myanmar, Lao PDR, Viet Nam and Cambodia, and cautioned job seekers to verify the legitimacy of their job offers with the Ministry of Expatriates' Welfare and Overseas Employment (MoEWOE), or with relevant branches of the Bureau of Manpower, Employment and Training (BMET).

Non-state actors, including BRAC, have developed information campaigns about trafficking into scam operations and victim survivor advocates have used their voices to raise awareness of this issue among aspirant migrants at risk. Stakeholders report that there have been effective and resource-intensive targeted awareness raising (albeit in relation to smuggling) conducted by contacting individuals who were about to travel imminently to inform them of known dangers involved. Nonetheless, a general lack of awareness remains, in part owing to a disbelief that something so large-scale and so violent can be real.

Safe labour migration: The *Overseas Employment and Migrants Act 2013 (OEMA)* criminalizes fraudulent and unlawful recruitment fees, although the government continues to impose recruitment fees on workers. Recruitment fees raise concerns that aspirant migrants will incur debt and face increased risks of exploitation. This reality and impunity for violations of the OEMA by recruitment agencies and corrupt officials are significant concerns for trafficking.[91] The Ministry of Expatriates, Welfare and Overseas Employment issues travel permits for Bangladeshis who work abroad but lacks oversight of their migration experience.

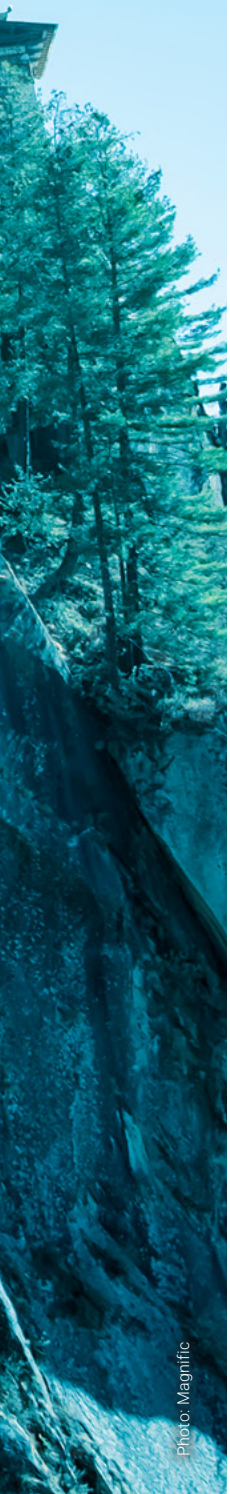
Border and document measures: The PSHTMS Act 2026 does not include specific legislative provisions for travel or identity documents beyond its Section 8 that poses penalties on persons who receive, cancel, conceal, remove, destroy or take possession of any document. Section 33 of the OEMA imposes penalties for using unlawful means for collecting a 'demand note', visa or work-permit for overseas employment, or for trading in such documents. Section 3 of the *Passport (Offences) Act 1952* penalises passport-related offences. Screenings are reportedly conducted at land and air borders. Reports of corruption have been made in regard to facilitation of international border crossings related to trafficking. There are reports of some victims of trafficking having been issued Bureau of Manpower Employment and Training (BMET) smart cards and yet still been trafficked, while others have been able to travel abroad without a BMET card. There is scope for measures to enhance trafficking prevention.

Intercepting potential victims before the travel: Bangladesh has been able to successfully intervene to prevent persons at risk from travelling abroad where concerns have been identified. In 2025, there were reportedly 15,000 people with tourist or hajj visas who, following interviews about their plans and finances, were prevented from travelling to Saudi Arabia, Malaysia, Cambodia or other locations where exploitation risks are high. In this respect, some authorities have discretion to act even when valid visas are held by persons seeking to travel abroad. Challenges of course arise from the fact that such travellers may have paid or borrowed significant money for the opportunity to travel abroad for work and do not consider that they are in a situation of potential victimization.

91 Visit to Bangladesh: Report of the Special Rapporteur on trafficking in persons, especially women and children, Siobhán Mullally, UN Doc A/HRC/53/28/Add.1, 28 April 2023, Paragraphs 23 and 24.

BHUTAN




Photo: Magnific

COUNTRY SNAPSHOT:

BHUTAN

This country snapshot is based on open-source information. The findings of this snapshot were further enhanced at the Regional Validation Workshop held in June 2026, attended by delegations from five countries, including six participants from Bhutan who provided extensive inputs. For more details, see Annex I on methodology.

TRAFFICKING FROM BHUTAN

Data on trafficking in persons in Bhutan is limited. Recent reports have noted that Bhutanese citizens have been trafficked into South-East Asian scam compounds.[92] In such identified cases, victims were reported as having been recruited online to travel for work opportunities via India and Singapore and later rescued by Bhutan's Ministry of Foreign Affairs and External Trade.[93] Traffickers reportedly recruit Bhutanese victims through fraudulent job offers, leading them to be forced to engage in online scam operations, including in the Philippines.[94]

TRAFFICKING TO AND WITHIN BHUTAN

No information could be found to suggest that organized crime groups operate within Bhutan. However, the absence of available information should not be taken to mean that it does not occur – they may be simply yet to be detected and disrupted.

In general, Bhutanese citizens are increasingly falling prey to cyber-enabled scams, including multilevel marketing (MLM), currency exchange, rental, and deceptive job recruitment scams. Open-source information show that some have been defrauded by a Dubai-based Bhutanese criminal through a fraudulent job offer. [95] According to media reports, between 2024 and 2026, the Royal Bhutan Police recorded 318 financial scam cases involving 37.08 million BTN (roughly 388,000 USD), spanning lottery scams (98 cases), exchange scams (87 cases), investment fraud (44 cases), and One-Time Password scams, which tripled from 9 cases in 2024 to 29 in 2025.[96] No trafficking cases have been reported in these types of scams.

92 Transnational Organized Crime and the Convergence of Cyber-Enabled Fraud, Underground Banking and Technological Innovation in Southeast Asia: A Shifting Threat Landscape (UNODC, October 2024), p.47; Inflection Point: Global Implications of Scam Centers, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), pp.7, 10, 35.

93 Bhutan Broadcasting Service, *"Six Bhutanese rescued from human trafficking"*, 9 June 2023.

94 2025 Trafficking in Persons Report: Bhutan (US Department of State, 2025)

95 National Cyber Security Strategy (Bhutan, 2024-2029), pp.15-16. Also see: Kuensel, "*RBP warns of "spoofing" scam"*, Facebook, 13 January 2026; and Kezang Choden, *"Police Warn of Rising Sophisticated Scams as Victims Surge across Bhutan"*, Bhutan Today (Date accessed: 3 June 2026).

96 Tshering Dema, *"Crime rate declines but road accidents, drug cases and sexual offences rise"*, The Bhutanese, 17 January 2026.

VULNERABILITIES AND OPPORTUNITIES

There are Special Economic Zones (SEZs) in Bhutan. Bhutan is in the process of developing a 2,500 square kilometre special economic city called Gelephu Mindfulness City on the border with India, intended as a special administrative region for technology, financial and digital development. The experiences and lessons learned by the South-East Asian countries offer an opportunity for the Royal Government of Bhutan to assess whether similar risks exist in its own SEZs and proactively take steps to adopt regulatory safeguards to ensure that the economic and cultural opportunities brought about by increased digital connectivity and cryptocurrency activities are not exposed to risks of exploitation by organised criminal actors.

COUNTER-TRAFFICKING STAKEHOLDERS IN BHUTAN

A Special Task Force (STF) on Trafficking in Persons was established in 2019, comprising of: Royal Bhutan Police (RBP), Department of Immigration, Ministry of Home Affairs (MoHA), Ministry of Industry, Commerce and Employment, Ministry of Foreign Affairs, Ministry of Health, Ministry of Education & Skills Development, Health care service providers and facilities, Office of the Attorney General, The PEMA Secretariat, Bhutan Qualifications and Professionals Certification Authority, National Commission for Women and Children, and civil society organizations.

The Royal Bhutan Police consist of thirteen field divisions covering the twenty districts of the country. There is a dedicated Anti-Money Laundering and Organized Crime Unit within the police.[97] The Department of Law and Order (DLO) of the Ministry of Home Affairs is responsible for coordinating Bhutan's policies on trafficking in persons. In practice, several offices are responsible for different stages of responding to trafficking cases: the Woman and Child Protection Division (WCPD) of the Royal Bhutan Police is responsible for investigating trafficking crimes; the Office of the Attorney General is responsible for prosecuting trafficking cases; with the Royal Court of Justice adjudicating and overseeing them.

The Women and Child Protection Division of the Royal Bhutan Police, along with the PEMA Secretariat – the national agency for mental health – provide services to victims of trafficking irrespective of their sex.


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97 Royal Bhutan Police, "Criminal Investigation Division (CID)", 2025.

Prosecution

Criminalization and jurisdiction: Bhutan acceded to the UNTOC and the Trafficking Protocol on 20 February 2023. The *Penal Code (Amendment) Act of Bhutan 2021* criminalizes serious organized crime and trafficking in persons (Sections 284C and 154 respectively), but there currently is no dedicated organized crime law nor counter-trafficking law in Bhutan.

Law enforcement and investigation: The Woman and Child Protection Division (WCPD) of the Royal Bhutan Police (RBP) focuses primarily on crimes against women and children and is responsible for investigating trafficking crimes. The Office of the Attorney General is responsible for prosecuting trafficking cases, with the Royal Court of Justice overseeing them. Bhutan has not yet investigated or prosecuted trafficking of Bhutanese into forced criminality in scam operations, either of its citizens outside the country or in relation to activities in the country. Officials point to the need to strengthen investigative capacity in relation to cybercrime and to increase the country's digital forensic capabilities in the event that they arise in Bhutan.

Prosecution and adjudication: The National Prevention and Response Strategy 2021 sets out increased prosecution as a key strategy of trafficking in persons, with 'strict prosecution' considered a strategy to curtail demand.[98] The Standard Operating Procedures for Multi-Sectoral Cooperation against Trafficking in Persons 2019 sets out that the Office of the Attorney General is to review the investigative report submitted to it by the Royal Bhutan Police, and initiate prosecutions as expeditiously as possible and enforce judgments.[99]

International cooperation: Bhutan has sufficient legislation in place to support international cooperation and information sharing, including through international, regional and bilateral agreements. The Bhutanese government is reportedly pursuing additional bilateral agreements relevant to trafficking in persons, generally with countries where Bhutanese people migrate for work, such as Qatar. Its *Extradition Act 1991* includes kidnapping, abduction, slavery and forced labour as extraditable offences (schedule, point 4), and *the Anti-Corruption Act of Bhutan, 2011* includes corruption as an extraditable offence (section 164(1)). The draft *Mutual Legal Assistance (MLA) Act of Bhutan* is tabled for approval during the current Parliamentary Summer Session of 2026.

As elsewhere, the implementation of cooperation in practice proves challenging. The absence of a specific legal framework to support MLA has reportedly resulted in criminal cases being dropped and raised challenges for government agencies in respect of investigation, prosecution and judicial proceedings.

Protection

Screening and identification: The Standard Operating Procedures for Multi-Sectorial Cooperation against Trafficking in Persons 2019 offer guidance for law enforcement agencies to identify victims and/or trafficking scenarios. To support them in this effort, Annexure IV of the SOPs offers a basic set of indicators to identify adult victims and child victims. The SOPs currently do not address the specific context of trafficking for forced criminality in scam operations.

Given the global rise and agile relocation of cases involving forced criminality into scam operations, an update to include the specific indicators of this crime

98 National Prevention and Response Strategy on Trafficking in Persons 2021 (Department of Law and Order Ministry of Home and Cultural Affairs, Royal Government of Bhutan) p.15.

99 Standard Operating Procedures for Multi-sectoral response to address trafficking in persons in Bhutan, October 2019, p.7.

type would serve well to support the work of Bhutanese stakeholders in identifying victims.

Victim and witness protection: Bhutan's multi-sectoral protection framework, coordinated by the Department of Law and Order (DLO) and supported by the Royal Bhutan Police, manages victim-witness assistance, repatriation, and referral services. The PEMA Secretariat – the national mental health agency – provides services to people of all sexes and plays a key role in supporting victims of trafficking.

Repatriation and reintegration: No specific legal provisions on cooperation for return and repatriation were identified. In practice, the Department of Law and Order, with support from Royal Bhutan Police and embassies abroad, facilitate repatriation. The law of Bhutan does not provide alternatives to the removal of trafficking victims to countries where they may face retribution or hardship.

Non-punishment: There is no specific legislative provision to protect victims of trafficking from being punished for unlawful activities they are involved in as a direct result of being trafficked. Provisions in the *Penal Code of Bhutan 2004* may be relevant to protect victims from punishment, including the requirement that a criminal act is voluntary (article 49 and 50) and culpability requirements and standards (articles 54 to 62) and causation (article 63). Criminal justice practitioners also may have recourse to defences of duress, compulsion and coercion (articles 80 to 82), and necessity (article 89 and 90).

While there are no dedicated legislative provisions on non-punishment, the Standard Operating Procedures for Multi-Sectorial Cooperation against Trafficking in Persons 2019 emphasize the obligation not to charge, prosecute or otherwise criminalize victims for offences that have been committed in the course of being trafficked. Those guidelines further state that in situations where children are implicated in criminal offences, 'it is particularly important that due regard be paid to the full range of rights and protections to which they are entitled under the general and specific laws.'

Prevention

Awareness raising: The National Strategy on Overseas Employment (2022 – 2030), developed by the Department of Employment and Entrepreneurship under the Ministry of Labour and Human Resources of Bhutan, includes an activity to "[d]evelop a media and communication package to create constant awareness on the risk of human trafficking associated with overseas employment especially by unregistered agents using various modes of communication channels."[100] There is scope to include the rising phenomenon of trafficking for scam operations in such initiatives in order to keep pace with evolving trafficking modus operandi. Online announcements are also posted by the government to warn potential workers of false job advertisements and to encourage applicants to verify job advertisements. Funding has been allocated to raise awareness among students, teachers, the general public and government officials. Officials have pointed to the value in strengthening digital literacy among Bhutanese youth to build their resilience to recruitment into trafficking.

Safe labour migration: The National Strategy on Overseas Employment (2022-2030) aims to improve governance of overseas job placements, including by protecting overseas workers from trafficking in persons and reintegrating returning overseas workers. The government prohibits unlicensed recruitment agencies from facilitating overseas employment. The Ministry of Industry, Commerce and Employment (MoICE) monitors recruitment agencies in Bhutan, and has cancelled

100 National Strategy on Overseas Employment 2022 – 2030 (Department of Employment and Entrepreneurship Ministry of Labour and Human Resources, Bhutan) p.11.

licences of some overseas recruitment agencies for unlawful practices. Bhutan began to establish an online overseas employment portal to help job seekers distinguish between official and unregistered placement agencies and agents.[101]

MoICE has issued warnings to jobseekers to be wary of online job offers, and to seek work through legitimate channels including the Registered Bhutanese Overseas Employment Agents (RBOEAs) or reaching out the Department of Employment and Entrepreneurship (DoEE). MoICE also delivers pre-departure orientation on trafficking risks, to which the Department of Law and Order is invited to conduct awareness sessions for youths pursuing overseas employment and sensitize participants to issues related to trafficking in persons, scam operations and other potential risks that they may encounter working abroad. Awareness raising content about the risk of trafficking for scam operations do well to keep pace with evolving trafficking modus operandi. Officials also referred to the importance of monitoring of people placed through government and registered recruitment agencies, to ensure their safety while working abroad.

Border and document measures: The Bhutanese government takes measures to detect transnational trafficking at border checkpoints, using biometric systems at entry points.[102] Bhutan's Check Post Management System (CPMS) is an official digital platform developed by the Royal Government of Bhutan and administered by the Royal Bhutan Police and the Road Safety & Transport Authority (RSTA), which enables authorities to verify identities and regulate movement within the country. In addition, foreign nationals entering Bhutan are registered and monitored through the Border Management System (BMS), which maintains records of their entry, stay, movement and exit. The two digital platforms provide opportunities to leverage them in detecting trafficking for forced criminality in scam operations.

Restrictions on overseas employment: The Ministry of Industry, Commerce & Employment (MoICE) restricts overseas employment opportunities to people between 21 and 29 years of age.[103] Concerns have been raised here that this measure increases the likelihood of irregular labour migration and vulnerability to trafficking.[104] It is not known whether Bhutanese authorities, where they have a reasonable suspicion that a person is in the process of being trafficked, intercept their movement before they travel abroad.

101 2025 Trafficking in Persons Report: Bhutan (US Department of State, 2025)

102 2025 Trafficking in Persons Report: Bhutan (US Department of State, 2025)

103 Ministry of Industry, Commerce & Employment, "*Announcement of Overseas Employment*", Royal Government of Bhutan, 2025.

104 2024 Trafficking in Persons Report: Bhutan (US Department of State, 2024)

MALDIVES




Photo: Magnific

COUNTRY SNAPSHOT:

MALDIVES

This country snapshot is based on open-source information as well as stakeholder consultations carried out in the Maldives with 12 people across six different agencies. The content of this snapshot was further enhanced at the Regional Validation Workshop held in June 2026, attended by delegations from five countries, including six participants from Maldives who provided extensive inputs. For more details, see Annex I on methodology.

TRAFFICKING FROM MALDIVES

There are no known cases of Maldivians having been trafficked into scam operations abroad, nor of any Maldivian recruiters, facilitators or trafficking networks. It also has not been established that migrant workers in the Maldives have been recruited into scam operations abroad (as has occurred from other migrant-dependent countries in the Middle East). However, authorities have pointed to potential underreporting of trafficking cases as a key knowledge gap in the Maldives.

TRAFFICKING TO AND WITHIN MALDIVES

Trafficking for forced criminality in scam operations in the Maldives likewise has not been identified. Trafficking in the Maldives is closely linked to labour migration in the Maldives, as there are thousands of migrant workers, with leading nationalities being Bangladesh, India, Sri Lanka and Nepal, working across the country's 26 atolls. Many migrants experience non-payment or under-payment of wages, passport confiscation, work visa expiry and challenges in changing employers. There is media coverage that employers leverage the threat of reporting workers as 'missing' as a means of control.[105]

These indicators are consistently normalised as labour migration issues rather than treated as indicators of trafficking.

Trafficking for sexual exploitation has been identified through NGO referrals rather than proactive screening. None of the cases have been linked to scam operations. It is not yet established that trafficking-fuelled scam operations of the type seen elsewhere have been set up in the Maldives. However, law enforcement agencies have observed foreign fraud networks misusing Maldivian links, such as company names, resort identities and work visa allocations, and forged employment documents.

105 Atoll Times, *"Fake reports of 'missing' migrant workers rise"*, 1 December 2022.

The role of corruption has also been noted in these respects. The fact that victims and perpetrators are reportedly located outside of the Maldives points to the increased transnational nature of cyber-enabled crime.

Media coverage of official data report that Maldivians are increasingly falling prey to scams, with a 200 per cent increase reported since 2021.[106] An estimated 13 million Maldivian rupees (MVR, approximately 841,500 USD) was reported as being lost to scams in 2024 alone.[107] In April 2026, it was reported that, out of total losses amounting to 27.6 million MVR, more than 10 million MVR have been successfully recovered.[108] Authorities point to main scam types being e-commerce scams, currency exchange scams, impersonation scams, 'vishing' (voice phishing) scams, and unauthorized transnational investment scams. Identity theft, phishing and phone scams are reportedly becoming more common.[109] Media coverage shows that some scams within the country appear to be conducted from prisons without any identified link to corruption or the exploitation of those committing the scams, as has been found elsewhere.[110]

Scams involving unregulated cryptocurrency transfers and black-market foreign currency exchanges have been identified, with stolen funds transferred to other jurisdictions. Several cases have been identified individuals acting as money mules, though authorities believe this is to avoid the cost of official transfers rather than for organized criminal purposes. As reported at the official Operation Frontier+ III press conference, between 10 March and 27 May 2026, the Anti-Scam Centre of MPS investigated 349 scam operations ranging from e-commerce, currency to investment scams, which in total had stolen over 4 million MRV. It rapidly intervened to freeze 664 bank accounts and recovered 1.2 million MVR. The focus of the operation was heavily on identifying money mules used by criminals to move stolen funds. Authorities interviewed 574 money mules (490 males, 84 females) and arrested 16 males; all money mules were aged between 19 and 49 years old.[111] It is not known whether there are any trafficking in persons dimensions to these cases.

While the Maldives has yet to identify scam operations within the country nor trafficking of people into such operations, it recognizes the need to remain vigilant to the evolving nature of these risks and points to the need for stronger monitoring, data collection, interagency and regional cooperation in these respects.

106 SEE, *"6,000 people scammed out of MVR 110M; not a single culprit caught"*, 25 December 2025; Atoll Times, *"Scammers stole over MVR 110 million from 6,000 victims: Police"*, 25 December 2025.

107 Zain Rasheed, *"Maldives Police Recover Over MVR 2.2 Million from Scams in 2024"*, SUKUN, 26 September 2024.

108 Ainy Waheed, "Over MVR 10 million recovered from scam cases in one year" (MMTV, 6 April 2026); These figures were also shared by the Maldives delegation at the Validation workshop held in June 2026.

109 "Trafficking in persons for the purpose of Forced Criminality in Cyber Scam Operations from, to and within Maldives", presentation delivered at the Regional Validation Workshop: South Asian responses to trafficking in persons for the purpose of forced criminality in cyber scam operations, organized by UNODC in Colombo, Sri Lanka from 2 to 4 June 2026.

110 For instance, scam operations run from prisons in Colombia is often prison guards have been known to take advantage of a captive labour force to oversee scam operations by certain segments of the prison population, with senior guards pocketing a significant portion of the takings. Kristina Amerhauser and Alex Goodwin, A World of Deceit: Mapping the Landscape of the Global Scam Centre Phenomenon (Global Initiative against Transnational Organized Crime, March 2026), p.26; MV+ News Desk, *"Police Seize 33 Mobile Phones From Maafushi Prison"*, MV+, 15 September 2025.

111 Results reported at Operation Frontier + III Press Conference, 20 May 2026, Malé, Maldives.

VULNERABILITIES AND OPPORTUNITIES

Migrant worker vulnerabilities: Migrant workers constitute nearly half the population of the Maldives, estimated 63,000 of whom are undocumented.[112] According to stakeholders consulted, the average salary of migrant workers is 350 USD per month and passport confiscation, non-payment of wages and fraudulent recruitment are common and routinely treated as administrative rather than criminal matters. Labour authorities reportedly face significant human resource constraints, limiting inspection of work sites including government development projects. It was shared that several large-scale infrastructure and development projects use an almost exclusively foreign labour force that remains largely hidden behind designated worksites and are inaccessible to labour inspections. There are reports of senior officials having accepted bribes from companies to inflate foreign worker quotas, with forged employment documentation used to facilitate mass irregular entry.[113]

Special Economic Zones (SEZs) and foreign direct investment: The government of the Maldives is inviting significant investment into a range of strategic investment areas in SEZs in the Maldives, including information communication technology, international financial services, and other new technologies.[114] Numerous large-scale infrastructure and development projects, including land reclamation projects, are taking place on a significant scale, with several residential buildings and other facilities being built in Hulhumale and other islands and atolls. There is scope to apply the experiences and lessons learned by South-East Asian countries and proactively conduct risk assessments to identify and mitigate risks of SEZs being misused by organized criminal networks who exploit the favourable conditions to gain access to local economies.

The Maldives currently has 31 Special Economic Zones. Both authorities and media reports confirmed that some unlawful activities have already been associated with SEZs, including incidents of there being applications for migrant labourers for falsified projects that do not actually exist.[115] Authorities point to the need to strengthen cooperation between anti-trafficking stakeholders and the foreign investment office to bolster resilience against trafficking and other crime types.

Institutional and perceptual gaps: There is a prevailing perception that the Maldives' small size and close-knit communities would make it difficult for scam operations to establish themselves undetected. However, the fact that so many migrant workers remain largely hidden from public view can suggest the opposite. Lessons from the evolution of such operations in Sri Lanka and in small island states such as Palau and Timor-Leste point to a similar risk in the Maldives, and indeed in South-East Asia. The unique geography of the country is changing rapidly, with large-scale construction not only of large buildings but also through the creation of new land. Construction companies operating in the Maldives often have complex ownership structures spread across borders, multi-layers of subcontractors and opaque labour worker policies. There is a perception that such 'government' projects fall outside of both public view and police oversight.

112 Maldives Independent, *"Number of illegal migrants estimated at 63,000"*, 17 January 2019.

113 2024 Trafficking in Persons Report: *Maldives* (US Department of State, 2024).

114 Ministry of Economic Development & Trade and Invest Maldives, *Special Economic Zones in Maldives*, Information Sleeve (July 2025).

115 Neil Merrett, *"Fictitious labour demand fuelling "systematic" migrant abuse in Maldives"*, Maldives Independent, 24 April 2013.

COUNTER-TRAFFICKING STAKEHOLDERS IN THE MALDIVES

When the new administration assumed office in November 2023, key institutions were brought within the purview of the Ministry of Homeland Security and Technology (MoHST), unifying the Maldives Police Service (MPS), Maldives Immigration and Maldives Customs Service within a security framework, and placing the Labour Relations Authority also under its oversight.[116] The Anti-Trafficking in Persons Office (ATO), previously under the Ministry of Defence, now falls within the MoHST.

The National Anti-Human Trafficking Coordination Committee (NAHTCC) under the MoHST is mandated by *the Prevention of Human Trafficking Act (Law No. 12/2013)* to develop annual plans. Criminal justice response is implemented by the Maldives Police Service (MPS), which is the agency responsible for investigating trafficking and bringing cases to the Prosecutor General's Office (PGO). The national steering committee on counter-trafficking convenes on a regular basis.

In July 2024, a Police Anti-Scam Centre of the Cyber Crime Department was established within the Cybercrime Department of MPS. Its focus has been on asset recovery and investigation of scams, not human trafficking per se.

Prosecution

Criminalization and jurisdiction: The Republic of Maldives acceded to the UNTOC in 2013 and the Trafficking in Persons Protocol in 2016. The recent enactment of the *Prevention of Gang and Other Serious Offences Act (Act No. 7/ 2025)* in 2025 includes human trafficking. The *Penal Code (Law No.6/2014)* also contains provisions on organized crime.[117] The *Prevention of Money Laundering and Financing of Terrorism Act (Law No.10/2014)* defines 'organized criminal group' in alignment with its definition in the UNTOC and captures key provisions of the UNCAC almost verbatim.

Trafficking in persons is criminalized in the *Prevention of Human Trafficking Act (Law No. 12/2013),* which was subsequently amended in both 2020 and 2021. Exploitation is not an element of the criminalization provision, which is largely concerned with movement. The offence of 'compelling a person to work or provide a service, through unlawful coercive means'[118] may be of relevance to trafficking into forced criminality, along with Section 16 on debt bondage.

Law enforcement and investigation: The number of identified trafficking cases in the Maldives is exceptionally low in general; only a couple of cases have been identified that do not relate to forced criminality. It was said that law enforcement capacity to investigate organized crime, including human trafficking, is uneven across the country and that it did not have sufficient resources to conduct proactive investigations. There was prevailing perception that trafficking is limited to sexual exploitation, or that it is a migration issue, rather than serious organized crime. Stakeholders have noted that standard indicators, such as passport confiscation and non-payment of wages are not treated as indicators of trafficking or exploitation, but of labour disputes or at most fraud cases. Law enforcement capacity gaps, including in relation to cybercrime and financial investigations, are explicitly addressed in the Anti-Human Trafficking Action Plan 2025, signalling a welcome shift away from reactive and immigration-focused responses towards a proactive approach through an organised crime lens.

116 Maldives Anti-Human Trafficking Action Plan 2025, National Anti-Human Trafficking Coordination Committee, Ministry of Homeland Security and Technology, Foreword by Ali Ihusaan, Minster of Homeland Security and Technology, p.3.

117 Sections 720 and 721, Penal Code (Law No.6/2014).

118 Section 13(a)(1)(i), Prevention of Human Trafficking Act (Law No. 12/2013).

Prosecution and adjudication: Since the *Prevention of Human Trafficking Act (Law No. 12/2013)* entered into force in 2013, approximately ten charges have been brought, none of which have related to forced criminality in scam operations. As such, cases rarely progress to prosecution and when they do, they even more rarely result in conviction. It was shared that delays can mean cases take years, during which time victims may opt out of participation. As elsewhere, overreliance on victim testimony means that cases cannot proceed without their testimony. Testimony via video link is permitted in law but rarely used in practice.

The fact that so few trafficking cases have proceeded to prosecution means that prosecutors and judges have had limited experience in applying the key concepts in trafficking in persons, such as exploitation and irrelevance of consent when means are used. In practice, there is a tendency to apply other legislation in lieu of trafficking offences.

International cooperation: The Maldives has a strong legal framework in place to support international cooperation. The *Extradition Act (Act No. 1/2015)* and the *Mutual Legal Assistance in Criminal Matters Act (Act No. 2/2015)* both entered into force on 5 June 2015. Maldives has bilateral mutual legal assistance (MLA) arrangements in place, including with India and Sri Lanka, to facilitate cooperation in criminal matters. The *Prevention of Money Laundering and Financing of Terrorism Act (Law No.10/2014)* includes a chapter on extradition and mutual legal assistance,[119] and the *Criminal Procedure Act (Law No. 12/2016)* includes a provision on conducting joint investigations.[120]

While no examples were found of formal or informal criminal justice cooperation in relation to trafficking in persons, the Maldives has recently cooperated as part of the Singapore-led Operation Frontier+ III[121] and Interpol-led Operation HAECI VI[122] in relation to scam centres and cyber-enabled financial crimes.

Protection

Screening and identification: The Anti-Human Trafficking Action Plan endorsed in May 2025 sets out actions that, if taken, will strengthen screening tools for frontline officers. The ATO has strengthened its screening tools for police use. The *Prevention of Human Trafficking Act (Law No. 12/2013)* provides for the presumption of victimhood to apply to support the identification and protection of presumed victims of trafficking. The Maldives has also recently developed a preliminary human trafficking screening tool, although not specific to the context of forced criminality.

As mentioned above, there have not been many victims identified in the Maldives. None of the identified cases have been through State-led screenings and no Maldivian national has ever been identified as a victim of trafficking.

Further, despite there being an exceptionally large population of migrant workers in the Maldives, many of whom in vulnerable situations, no victim was identified in 2025. Screenings are reportedly carried out at the border prior to the removal of irregular migrants, but in the absence of cases, it is not clear what response would be triggered if indicators were found.

As elsewhere, identification shortcomings are likely a result of the widely held misconception that victims of trafficking will identify themselves, notwithstanding the many reasons they have for not doing so. Screenings that take place in the context of raids carried out to find irregular migrant workers, or in deportation processes, are not effective for victim-centred screening.

119 Sections 70-73, Prevention of Money Laundering and Financing of Terrorism Act (Law No.10/2014).

120 Section 76, Criminal Procedure Act (Law No. 12/2016).

121 Maldives Police Service, *"Maldives Leads Regional Anti-Scam Operation with Highest Recovery Rate"*, 15 June 2025; Singapore Police Force, "*Operation Frontier+ III: Joint Two-Month Crackdown on Transnational Scams Resulted in More than 3,000 Arrests across Ten Jurisdictions*", 20 May 2026.

122 Maldives Police Service, *"Maldives Police Service participates in INTERPOL-led global operation against cyber-enabled financial crime"*, 28 September 2025.

Furthermore, indicators of trafficking were often trivialized to labour law violations. For instance, employers who confiscate passports or do not pay wages are routinely given the benefit of doubt. In such cases, employers are simply asked to return documents and pay the wages and upon compliance, the situation is considered resolved with no further enquiry made about potential trafficking or exploitation. Human resource constraints also reportedly raise challenges for carrying out inspections and screenings, including at the many large-scale infrastructure and development projects across the country that are financed by foreign capital. In these respects, authorities pointed to the value of developing SOPs that integrate indicators specific to trafficking into forced criminality and training frontline officers to strengthen victim identification and application of the non-punishment principle.

Victim and witness protection: There is no formal National Referral Mechanism in place. The *Police Service Act (Law No. 34/2020)* provides for some protection for witnesses and people close to them.[123] The *Criminal Procedure Act (Law No. 12/2016)*, in its Chapter 10, contains protections for witnesses. The *Prevention of Human Trafficking Act (Law No. 12/2013)* provides for protection of victims during legal proceedings (Chapter 9). However, the fact that only a few victims have been identified in the Maldives means that these protections have yet been applied in practice. Authorities have also pointed out that having a dedicated law on victim and witness protection would strengthen response.

Repatriation: Maldives has a robust legal framework in place to support victim return and repatriation, but lack of identification means that they have not been used in practice. Foreign victims of trafficking have the right to remain in the Maldives for a reflection period of 90 days under the *Prevention of Human Trafficking Act (Law No. 12/2013)*.[124] Section 17 of the *Maldives Immigration Act 2007* provides for a 'special visa' that may be applicable in some situations relevant to victims of trafficking, including to participate in legal proceedings.[125] The *Prevention of Human Trafficking Act (Law No. 12/2013)* also addresses the return of Maldivian victims of trafficking to the Maldives.[126] However, no Maldivian has been identified abroad or in the country, meaning that this provision has not been applied.

Non-punishment: The *Prevention of Human Trafficking Act (Law No. 12/2013)* does not contain a specific non-punishment provision. However, victims are protected from detention by Section 33(c). The law also allows victims of trafficking who entered the country illegally to not be treated as illegal migrants for their illegal entry (Section 46(b)) or their subsequent stay (Section 49).

In practice, a victim's defence on trial can be made under provisions in the *Penal Code (Law No.6/2014)*. Thus far, the only context in which the application of the non-punishment principle has been 'tested' is in relation to trafficking for sexual exploitation. However, victims have not been identified in the sex industry in the last several years. Situations in the sex industry are generally approached as cases of willing workers working irregularly and discretion is reportedly exercised not to prosecute them. Maldivian officials recognize the challenge presented by such victims who may appear to be offenders but are victims in need of specialized support. The most urgent action required to implement the non-punishment principle is to strengthen identification capacity so that victims can be diverted away from punitive processes into protection channels.

123 Section 2(1)(p), Police Service Act (Law No. 34/2020).

124 Section 32(d)(1), Prevention of Human Trafficking Act, (Law No. 12/2013).

125 Section 17(c), Maldives Immigration Act, 2007.

126 Section 38, Prevention of Human Trafficking Act, (Law No. 12/2013).

Prevention

Awareness raising: Authorities point to the lack of awareness of trafficking for forced criminality as a key challenge. Awareness raising programmes in relation to trafficking in general and not specific to forced criminality have been conducted in Dhivehi and English, but not in the language of labour-sending countries, such as Bangladesh.[127] In a promising development, the National Anti-Human Trafficking Action Plan updated in 2025 by the Anti Trafficking in Persons Office refers to awareness raising in multiple languages for migrants and locals. There was a training for the Maldives Police Service on trafficking in online scam operations during trafficking awareness operations in July 2024.[128]

Safe labour migration: There is currently no framework in place to govern the emigration of Maldivian citizens abroad. For those who migrate to the Maldives, the Labour Relations Authority faces significant challenges in verifying the legitimacy of employers and work permits for immigrant workers. Many migrant workers fall into situations of irregularity and precarity. Efforts to regularise the status of undocumented migrant workers have led to thousands of people coming forward to be registered.

There are reports of corruption in the facilitation of irregular movement into the country, such as senior government officials having accepted bribes from companies to inflate the quota of foreign workers that they are able to bring into the country.[129] As mentioned, there have been applications for foreign migrant labour using fraudulent applications depicting pictures of sites that were later found to be of other locations.[130] The whereabouts of workers brought in under such schemes is often not known. There is scope to enhance the regulatory oversight over inward labour migration.

Border and document measures: The Department of National Registration (DNR) and Maldives Immigration have registration and monitoring systems in place to monitor border entries. However, data in the Maldives 'Personal Identification Secure Comparison and Evaluation System (PISCES)' has yet to be used as a source of potential trafficking data. Lack of data means that border officials lack a sufficient intelligence picture to support their identification of potential criminals or potential victims entering or leaving the country.

Migrants, whose travel is often facilitated by recruitment companies in the Maldives as well as in the countries of origin, reportedly enter the Maldives with fraudulent documents and often find that there is no job waiting for them, leading to situations of vulnerability. Rather than approaching these factors as indicators of potential human trafficking (or migrant smuggling), these situations are often treated as fraud cases by Maldivian authorities.

Misuse of tourist visas: Perceptions vary about whether tourist visas have been misused to enable people to enter the Maldives for non-tourist purposes. Some consider that the 'visa-friendly' approach has allowed people to enter as tourists, including those who may not be entering for the purpose of tourism. Others consider the entry of people on tourist visas to be sufficiently controlled as tourists stay at registered hotels or are sponsored to stay at private homes. Authorities view the new requirement to obtain electronic visas prior to arrival as a measure that will reduce the risk of migrant workers travelling to the Maldives on fraudulently obtained documents and contribute to mitigating risk of corruption at airports.

127 2025 Trafficking in Persons Report: Maldives (US Department of State, 2025).

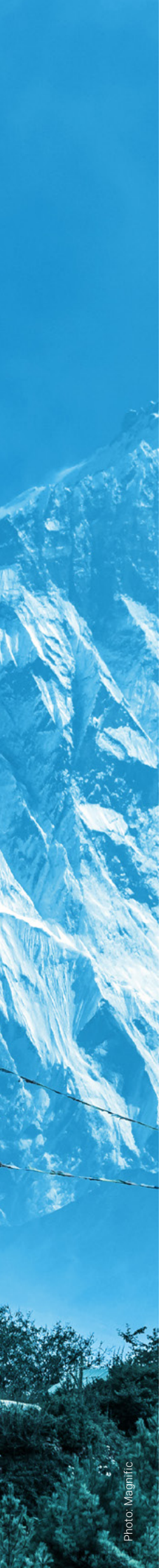
128 2025 Trafficking in Persons Report: Maldives (US Department of State, 2025).

129 See inter alia: Ahmedulla Abdul Hadi, *"Govt. removes fake quota document submitter list from gazette"*, SEE, 26 September 2019; *Adhadhu*, *"Official in charge of expat quotas suspended"*, 6 May 2024.

130 Neil Merrett, '*Fictitious labour demand fuelling "systematic" migrant abuse in Maldives*', Maldives Independent, 24 April 2013.

NEPAL





COUNTRY SNAPSHOT:

NEPAL

This country snapshot is based on open-source information as well as stakeholder consultations carried out in Nepal with 25 people across ten different agencies. The content of this snapshot was further enhanced at the Regional Validation Workshop held in June 2026, attended by delegations from five countries, including four participants from Nepal who provided extensive inputs. For more details, see Annex I on methodology.

TRAFFICKING FROM NEPAL

Reports of Nepali victims of trafficking into forced criminality in scam operations in Cambodia emerged as early as 2021, with further cases in subsequent years in Cambodia, Lao PDR, Myanmar and the Philippines.[131] Victims from Nepal are generally exploited in scam operations in Myanmar (KK Park in Myawaddy), Cambodia (Bavet, Poipet, Phnom Penh, Sihanoukville) and Lao PDR. The victimization appears to extend beyond South-East Asia, as according to media coverage in 2025, more than 1,000 Nepali victims were reported to be held in industrial-scale scam compounds in the Indian states of Uttarakhand, Uttar Pradesh and Bihar.[132] In June 2026, another news outlet reported large-scale operations in India resulting in the rescue of hundreds of Nepalis lured into scam operations.[133]

As elsewhere, the primary modus operandi of traffickers is to deceive victims with offers of employment, commonly in Thailand, before being taken into Myanmar or Cambodia and forced into scam operations run by organized crime groups. According to media accounts, others are recruited from among Nepali workers residing in the Middle East.[134] A small number fly directly into Myanmar before being transferred overland to scam compounds. India and the UAE, and to a lesser extent, Viet Nam, have operated as transit points or places from which victims are directly recruited.[135] In the case of the UAE, victims may already be established in Dubai and be recruited from there into South-East Asia, in some cases recruited by other Nepali people. Others have travelled independently to Cambodia for work and are subsequently trafficked into scam compounds.

Authorities report that the victims are predominantly adult males aged 20 to 40 and that those targeted for trafficking are often intelligent, have English language skills, basic

131 Casinos, cyber fraud, and trafficking in persons for forced criminality in Southeast Asia, Policy Report (UNODC, September 2023), p.10; Transnational Organized Crime and the Convergence of Cyber-Enabled Fraud, Underground Banking and Technological Innovation in Southeast Asia: A Shifting Threat Landscape (UNODC, October 2024), p.47.

132 Arpana Adhikari, *"Human trafficking takes a heavy toll on indigent Nepali citizens"*, The Rising Nepal, 29 June 2025.

133 THT Online, "Nepal embassy rescues 453 Nepali nationals from networking fraud racket in India's Uttar Pradesh", Himalayan Times, 2 June 2026.

134 Man Bahadur Basnet, *"Nepalis in 'scam camps' escape to tell the tale"*, Nepali Times, 22 March 2025.

135 Ibid.

computer skills and aspirations to work abroad. They are lured by promises of monthly salaries of 1,000 to 1,500 USD – significantly large sums when compared to Nepal's average monthly salary of approximately 134 USD.[136] Recruitment typically occurs through popular social media platforms, which are largely unregulated in Nepal, or through relatives and friends. Authorities report that the first layer of perpetrators involved in the trafficking process are often Nepalis, who may be friends and relatives of the victims. Victims frequently travel on tourist visas, although business visas are also used for trafficking into Myanmar. Passports are confiscated on arrival at locations of exploitation. Some have paid up to 5,000 USD in ransom to secure release, the same figure that was reported as being owed to recruitment agents. Authorities also report that Nepali victims have been found in support roles at scam locations, including as kitchen aids and security guards.

The scale of victimization is significant. The Anti-Human Trafficking Bureau reports having rescued 270 victims abroad between 2021 and 2026. According to media reports, in December 2025, 47 Nepalis were repatriated from Myanmar scam centres, reporting torture and threats of being sold to other criminal groups for failing to meet targets.[137] In March 2026, 21 Nepali citizens were rescued from Cambodian scam centres and casinos; many others remained stranded. The rate of Nepalis entering Cambodia on tourist visas has risen significantly in recent years – in 2025 alone, 9,676 Nepalis travelled to Cambodia on tourist visas.[138]

TRAFFICKING TO AND WITHIN NEPAL

Officials report that victims of trafficking into forced criminality in scam operations within Nepal are often targeted among unemployed youth and students with limited digital knowledge, who may be recruited from rural areas and forced into criminality in scam operations in urban areas. Presence of organized criminal networks with foreign connections have been documented in Nepal, including for trafficking operations.[139]

State-embedded actors and high-level corruption in the public and private sector also contributes to organized crime and human trafficking.[140]

The presence of foreign organized criminal groups has been observed in Nepal as long ago as 2019. By way of example, according to media reports:

- In 2019, Nepal detained 122 foreign nationals on suspicion of cybercrime and bank fraud.[141] Since then, large-scale operations have been uncovered.
- Several raids were carried out of scam centres in 2022, often used to defraud people abroad.[142]
- One raid on a call centre in Lumbini Province, belonging to a business headquartered in a foreign

136 National Report on Salaries and Wages (2020), Nepal's Central Bureau of Statistics.

137 Rajneesh Bhandari, *"47 Nepalis Rescued from Scam Centers in Myanmar Arrive in Kathmandu"*, Organized Crime and Corruption Reporting Project, 11 December 2025.

138 Ibid.

139 National Human Rights Commission (NHRC) of Nepal, "Trafficking in Persons Especially on Women and Children in Nepal", National Report 2009-2010.

140 Hidden Links: Corruption and Trafficking in Persons (UNODC, 2025).

141 Gopal Sharma, *"Nepal detains 122 Chinese for suspected cyber crime and bank fraud"*, Reuters, 24 December 2019.

142 The New Indian Express, *"Nepali Police continue raids against illegal call centres owned by Chinese"*, 28 July 2022.

jurisdiction, found 258 Nepali youths involved in committing lottery fraud.[143]

- In July 2023, 37 individuals were arrested and charged with human trafficking, forgery and organized crime, including a foreign national who received the minimum sentence of two years.[144]
- In 2024, a gang comprised of foreign nationals using a beauty salon as cover recruited Nepalis into scam operations in Myanmar.[145]
- In 2025, 52 individuals were arrested for running romance and cryptocurrency scams from rented houses in Lalitpur and Kathmandu, operating under cover of registered businesses.[146]
- In January 2026, seven foreign nationals were arrested under the *Telecommunications Act, 2053 (1997)*, for running an international call bypass operation from a hotel in Kathmandu.[147]
- In February 2026, 50 people, including three foreign nationals, were arrested for operating an illegal call centre in Lalitpur.[148]
- Also in 2026, 11 foreign nationals were arrested in Mangaluru for running large-scale online fraud from Nepal and Cambodia. [149]

As elsewhere, authorities report that romance scams are used to manipulate people to invest in cryptocurrency. Different platforms are used for different purposes. Such crimes are organized, involving foreign nationals with money mules who are sometimes Nepali, who sell or open bank accounts in exchange for payment without knowing what accounts are used for. A significant example is the SMC App Scam involving the arrest of a foreign national and several Nepalis for scams that reached an estimated 70,000 victims. Offenders were charged under the *Prevention of Organized Crime Act, 2070 (2014)* and the *Penal (Code) Act 2017*.[150]

These cases are not always approached as potential trafficking cases. Stakeholders report that awareness of trafficking into forced criminality is uneven across the country and that screening for potential trafficking indicators at scam centres is not yet routine. As a result, scam aspects of these criminal activities are confronted without consistent determination of potential trafficking dimensions. Authorities have pointed to the role of money mules who move money through layers of different accounts; challenges arise in determining the extent to which they are perpetrators, or where there are dimensions of victimization. Concerns have also been raised by officials that some money mules may be working under pressure from more powerful criminal networks.

143 Martin Thorley, A Changing Landscape: China's New Model of Global Governance and Its Impact on the Fight against Organized Crime (Global Initiative against Organized Crime, May 2024), p.10.

144 Arpana Adhikari, *"Human trafficking takes a heavy toll on indigent Nepali citizens"*, The Rising Nepal, 29 June 2025.

145 Man Bahadur Basnet, *"Nepalis in 'scam camps' escape to tell the tale"*, Nepali Times, 22 March 2025.

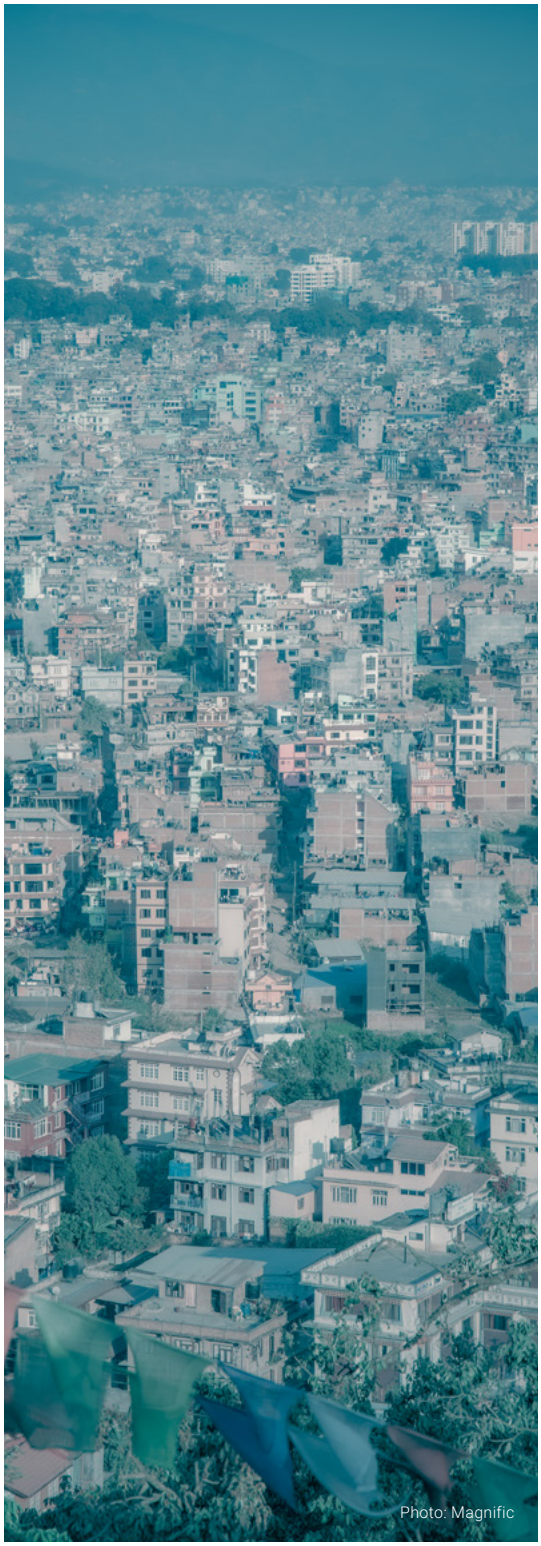
146 The Kathmandu Post, *"52 people, including six Chinese nationals, arrested for online dating scam and illegal crypto trade"*, 2 July 2025.

147 Nepal News, *"Seven Chinese nationals arrested in Kathmandu for illegal call bypass operation"*, 13 January 2026.

148 The Kathmandu Post, *"50 arrested from Chinese-run call centre in Lalitpur"*, 13 September 2024.

149 The 420 Correspondent, *"Cyber Fraud Ring Operating from Nepal Linked to 30.7 Crore Losses"*, The 420, 6 February 2026.

150 See inter alia; The Himalayan, *"Cyber Bureau busts major online scam targeting over 70,000 users"*, 6 January 2026.


Photo: Magnific

VULNERABILITIES AND OPPORTUNITIES

Nepal's high unemployment rate and dependence on remittances, which account for a quarter (26%) of its GDP,[151] are the primary drivers of trafficking risk. Stakeholders reported that some remittances flow through *Hundi* (hawala) systems, meaning their full value cannot be measured. There are an estimated 1.3 million Nepali migrant workers in the Gulf Cooperation Council (GCC) region.[152] A further risk is that victims returning from scam operations abroad return with a skillset to commit scams all while facing a lack of legitimate employment opportunities, raising the possibility that some may willingly return to scam operations in the absence of other livelihood opportunities.

Insufficient regulation and oversight of industries and sectors vulnerable to criminality: Relatively unregulated inward migration, lax regulatory structures around banking and the casino industry, and presence of organized crime operations in the country may raise risks that it is an attractive base for organized criminals. Authorities have reported that criminals operating abroad and domestically have used casinos to launder money.

Nepal's visa on arrival system makes it easy for foreign nationals to enter. Stakeholders report that there are only approximately 2,300 officially registered migrant workers recorded in Nepal; a figure that does not capture the many who enter on tourist visas who may have not entered for purposes of tourism.

Organized criminal networks have been operating scam centres in Nepal for several years, sometimes under the cover of legitimately registered businesses.[153] Scam operations also originate within Nepal using virtual private networks (VPNs) and overseas IP addresses to disguise their location. Cryptocurrency is currently illegal in Nepal under central bank directives and existing foreign exchange and criminal laws.

151 The World Bank Group, *"Personal remittances, received (% of GDP) – Nepal"*, (Date accessed: 4 June 2026).

152 Sparsh Adhikari, '*The Plight of Nepali Migrant Workers in the GCC: Protection and Empowerment Through Diplomacy*', National Policy Forum, 15 May 2025.

153 The Kathmandu Post, '*50 arrested from Chinese-run call centre in Lalitpur*', 13 September 2024.

While seizures and arrests occur, in the absence of dedicated regulatory frameworks for virtual assets, there can be complications in seizure and asset recovery in practice. Nepal has been on the Financial Action Task Force (FATF)'s grey list since October 2025; several of the seven points it has been tasked to address have direct implications for vulnerability to exploitation by organized criminals. Banks lack effective red flag systems, and money laundering investigations are fragmented across many agencies with insufficient resources to pursue high-value targets.

In a positive step, Nepal has recently taken action to control the online gambling industry. While online gambling sites and betting were already prohibited under Nepali law, offshore websites and mobile applications remained widely accessible to users in Nepal. In March 2026, the Ministry of Communications and Information Technology issued an immediate and nationwide ban on all online gambling sites and applications as part of its '100-Point Governance Reform Agenda,' signaling stronger law enforcement action.[154]

Special Economic Zones and border vulnerabilities: Nepal's SEZ landscape is rapidly evolving, with over 10 designated or proposed SEZ sites across the country and some already operational (Bhairahawa and Simara SEZs). As has been observed in other regions, gaps in oversight and significant corruption in both the public and private sector create susceptibility to money laundering and other financial crimes. Low occupancy may also make them attractive to shell companies. These risks are compounded by the proximity of SEZs to porous land borders. Experiences and lessons learned by South-East Asian countries in respect to their SEZs offer opportunities for enhanced regulatory oversight.

COUNTER-TRAFFICKING STAKEHOLDERS IN NEPAL

The Ministry of Women, Children and Senior Citizens (MoWCS) is the lead agency responsible for coordination on counter-trafficking. The Central Investigation Bureau (CIB) under the Ministry of Home Affairs hosts weekly coordination meetings.

The criminal justice response to trafficking in persons is led by the Nepal Police, in particular through the Anti-Human Trafficking Bureau (AHTB) under the Central Investigation Bureau (CIB). The CIB is responsible for addressing complex and serious crimes, including cybercrime, and regularly coordinates with the AHTB on complicated investigations. The Central Cyber Bureau of Nepal Police investigates cases involving cybercrime.

The National Investigation Department (NID) under the Office of the Prime Minister and the Council of Ministers is responsible for gathering information on serious crimes, including human trafficking. The Ministry of Labour, Employment and Social Security (MoLESS) works with the Department of Immigration on protection of migrant worker rights.

154 Government of Nepal, Ministry of Communication and Information Technology, "*Important Notice*"; The Himalayan Times, '*Betting apps, websites shut down on government directive*', 30 March 2026.

Prosecution

Criminalization and jurisdiction: The Government of Nepal signed the UNTOC in 2002 and ratified it in 2011. It acceded to the Trafficking in Persons Protocol in 2020 but has yet to become party to the Smuggling of Migrants Protocol. Organized crime is criminalized in the *Prevention of Organized Crime Act, 2070 (2014)* and the National *Penal (Code) Act 2017*. The *Human Trafficking and Transportation (Control) Act*, *2064 (2007)* (HTTCA) captures 'human trafficking and transportation' as defining features of trafficking, instead of exploitation. Slavery is prohibited by Section 163 of the National *Penal Code (Act) 2017,* and serfdom or debt bonded labour by Section 164. At the time of this writing, the counter-trafficking legislation is being amended, and a new cybercrime legislation is under development.

Law enforcement and investigation: The Anti-Human Trafficking Bureau (AHTB) of Nepal Police has made arrests for trafficking of Nepali citizens into scam operations abroad, including of foreign nationals. As of June 2026, Nepal had arrested 31 offenders in relation to 28 cases involving trafficking of Nepali victims to South-East Asia. Arrested persons are mostly middle agents or recruiters rather than high-level exploiters. In relation to investigations of trafficking-dimensions of scam operations within Nepal, time limitations hamper capacity to gather evidence, including digital evidence related to cyber-enabled crimes, and to link activities with offenders. Police reportedly have 25 days in which to submit reports to public prosecutors, which is insufficient time to gather all the evidence – including digital forensic evidence and evidence that may be in another jurisdictions – that would be required to build a compelling case. The specialized bureaus to address money laundering, cybercrime and human trafficking are chronically under-resourced. Technical capacity to carry out cyber-investigations, money laundering through cryptocurrencies, and to obtain information from social media platforms is insufficient, and the high turnover of staff means that specialized expertise is often lost to institutional memory. As a result, investigations are not proactive and police largely rely on referrals from NGOs or depend on victim self-identification.

Prosecution and adjudication: To date, no cases of trafficking for the purpose of forced criminality in scam operations have been referred to the Attorney General's Office for prosecution. Victim testimony is crucial, but victims do not wish to be stigmatised as victims and are hesitant to file cases and proceed through lengthy criminal justice processes. The dependence on victim testimony is fatal to successful prosecutions in the absence of alternative evidence obtained through proactive investigations and international cooperation.

International cooperation: Officials point to both the importance and the challenge of international cooperation in responding to this regional challenge. The *Mutual Legal Assistance Act, 2070 (2014)* requires cooperation under either bilateral treaties or reciprocity. Nepal's bilateral treaties with China and with India have yet been used in relation to this crime type. On 26 September 2023, a joint statement between Nepal and China committed the two countries to a range of cooperation efforts, including the agreement to expedite the China-Nepal Treaty on Mutual Legal Assistance in Criminal Matters.[155] The *Extradition Act, 2014* can be used to extradite offenders, including of trafficking in persons. Nepal has extradition treaties in place with China and India.

There have been only a few attempts at formal international cooperation involving human trafficking cases. For informal cooperation, police reportedly cannot reach out to counterparts directly but must rely on third parties (such as Interpol and UNODC) and their Ministries of Foreign and Home Affairs to facilitate cooperation. There is also concern about whether Nepal's unorthodox approach to criminalizing human trafficking (and 'human transportation') in the *Human Trafficking and Transportation (Control) Act, 2064 (2007)* without elements of means and exploitation would raise challenges in respect of dual criminality requirements.

155 Ministry of Foreign Affairs, "*Joint Statement between the People's Republic of China and Nepal*", Government of Nepal, 26 September 2023.

Protection

Screening and identification: Persons returning from scam operations abroad are routinely screened by the Anti-Human Trafficking Bureau and recognized as victims of trafficking. On the other hand, identification of potential victims of trafficking into scam operations within Nepal is hampered by the lack of formal identification procedures and the fact that those who encounter potential victims may lack specialized counter-trafficking capacity. In particular, the Cyber Bureau, which is mandated to address scam cases, is responsible for initiating investigations if they identify indicators of trafficking. However, its primary mandate concerns offences under the *Electronic Transactions Act, 2063 (2008)* (ETA) rather than under the *Human Trafficking and Transportation (Control) Act, 2064 (2007)* (HTTCA), meaning the awareness of the trafficking indicators and other nuances, such as irrelevance of consent when the means are used, may not be well understood.

Victim and witness protection: There is no formal victim-witness protection programme in Nepal, but assistance can be allocated to support victims who participate in investigations and prosecutions. HTTCA and the *Crime Victim Protection Act, 2075 (2018)* provide for protections for victims participating in legal proceedings. The HTTCA also mandates that rehabilitation centres be established for victims of trafficking.

The available protection services in the country does not adequately cover the needs of adult males – the predominant profile of people most impacted by trafficking into scam operations. Notably, there are no shelters dedicated to adult men and male victims are reportedly eligible to be placed in government-funded hotels and shelters, with funds allocated accordingly by the National Committee for Controlling Human Trafficking (NCCHT).

Repatriation: The *Human Trafficking and Transportation (Control) Act, 2064 (2007)* is silent on return and repatriation of victims of trafficking. Similarly, the *Foreign Employment Act 2007* and the *Immigration Act, 2049 (1992)* do not provide insight into how undocumented persons – including foreign victims of trafficking among them – would be returned to their home countries. It is possible that deportation is the only possibility in this legislative gap.

Return of victims of trafficking in scam operations abroad is facilitated through the Ministry of Foreign Affairs, who coordinates through its embassies and foreign counterparts on an ad hoc basis. The absence of consular services in some countries where Nepali victims have been trafficked, including Cambodia, has meant that repatriations took place through Thailand. In some cases, victims have had to travel independently to Thailand to seek assistance. Due to the difficulty in reaching Thailand, many become stranded in Cambodia. Victims often depend on assistance from local service providers.

The services of the Foreign Employment Board (FEB), including emergency repatriation, is only accessible by foreign workers who have paid into the Foreign Employment Welfare Fund. Undocumented victims who travelled on tourist or other visas (which is the experience of most trafficked victims in scam operations abroad) are therefore left to fund their own repatriation. In the absence of sufficient government funding allocated to repatriate its citizens, processes depend on support of international organisations or the local Non-Resident Madhesi Associations (NRMAs). The same absence of allocated funding is also tragically true for the repatriation of dead bodies.

Non-punishment: There are several documented cases of Nepali victims of trafficking into scam operations abroad being punished. Media coverage in 2025 reported that Nepali victims recruited from Dubai into a scam centre in Oman were imprisoned on cybercrime charges.[156]

156 Hom Karki, *"Nepali workers being held hostage and subjected to online fraud"*, Ekantipur News, 29 October 2025.

Generally, there is a non-punishment provision in the *Human Trafficking and Transportation (Control) Act, 2064 (2007)*, although its scope is limited only to protect persons involved in prostitution from criminal liability for killing or injuring perpetrators in the course of escape (Section 16).

Notwithstanding the limited scope of the law, there is a wide and deep understanding in Nepal that repatriated persons from scam operations abroad are not liable for the offences they have been compelled to commit during their trafficking experience, and that such persons should be protected and supported as victims of trafficking and not treated as offenders, even in cases where they travelled abroad willingly to work on inappropriate visas. In such cases, there is an understanding that they have been lured by high-paying job offers and are compelled to participate in unlawful acts.

However, the situation is markedly different with respect to those involved in scam operations within Nepal, who are generally understood to be perpetrators rather than victims of trafficking. Authorities have pointed to the difficulty in distinguishing offenders from victims of trafficking, including in cases involving money mules. As elsewhere, the lack of consistent screening of persons involved in scam operations in Nepal raises questions about whether foreign victims are effectively identified and protected from punishment for cybercrimes under the *Passport Act, 2076 (2019) and Immigration Act, 2049 (1992).*

Prevention

Awareness raising: Embassies and other Nepali state institutions issued warnings to their citizens in 2024 about the risks associated with travel to Cambodia, Lao PDR, Myanmar and Thailand, and to urge citizens to be cautious and avoid false promises of lucrative overseas employment. Following raids in 2025 and 2026, the Nepali Embassy in Thailand issued further warnings about human trafficking risks and urged their citizens to only travel for foreign employment after obtaining government approval. Embassies have also encouraged media and civil society to raise awareness of risks. The Anti-Human Trafficking Bureau of the Nepal Police reportedly provides media outlets with press releases to disseminate information about trafficking into scam operations. It also conducts awareness raising activities through community outreach programmes, public service announcements (PSAs) and via social media and websites. The Foreign Employment Board has raised the awareness of workers going abroad for employment of the risk of becoming 'digital slaves.'[157] The Cyber Bureau uses its social media accounts to disseminate awareness raising of cyber fraud. However, concerns were raised that these messages may not always reach their target audience, who may not follow the social media sites that post them.

Safe labour migration: The Ministry of Labour, Employment and Social Security advocates for aspirant migrant workers to avoid travelling abroad on visitor visas and irregular channels that may exclude them from government assistance. It is also working to provide access to safe employment opportunities, through its *Shramsansar* ('Labour World') website and app.[158] The Ministry of Labour is also working to establish an online system to make it easier to track where people are going for work, their experiences abroad, and skills they return to Nepal with, with a view to matching their skillset to the domestic market.

The *Foreign Employment Act 2007* criminalizes deceptive recruitment of Nepali workers for work abroad, which is often used in lieu of trafficking legislation. The Foreign Employment Board provides two-day pre-departure training to migrant workers. However, the course is not mandatory and does not integrate human trafficking information. There is scope to update the training content to include content on trafficking risks.

157 Ibid.

158 Ministry of Youth, Labour and Employment, *"Shramsansar"*, Government of Nepal, 2025.

Border and document measures: The Nepal Police work closely with immigration and border security to address trafficking across borders with India and China. Given the sharp rise in cases involving scam operations in Nepal, as well as overall impact of organized crime on border security,[159] there is scope to calibrate the border management response to such risks. Corruption reportedly plays a role in circumventing document control, with reports of traffickers bribing foreign officials to fly Nepali migrant workers to third countries without proper documentation.[160]

Nepal's tourism-friendly visa on arrival system makes it unwitting targets for foreigners to illegally stay and conduct illicit activities in the country. The Ministry of Labour reported that there are only around 2,300 migrant workers in Nepal, who work for international organizations and other non-vulnerable categories. That figure does not account for those who travel to the country on visitor visas and conduct non-tourist activities.

Intercepting potential victims before the travel: There is considerable effort invested into the protection of female migrant workers bound for destinations in domestic work, but there have yet been any safe labour measures taken to protect males – and females – from exploitation in scam operations. [161]

Nepali victims of trafficking in Cambodia are mostly found to have travelled on a tourist visa. In 2025 alone, 9,676 Nepalis had travelled to Cambodia, compared to 101 in 2021.[162] Notwithstanding this key data point, several stakeholders expressed the view that the government cannot prohibit a person from travelling to another country, as doing so would restrict their freedom of movement. The same point was made with respect to those who travel abroad to participate in the war in Ukraine, citing that there is no possibility to stop them notwithstanding the security risks involved. Arguments that intervening to stop trafficking is tantamount to violation of human rights must be addressed by reference to countervailing human rights considerations to pave a pathway to protect nationals from trafficking, torture, murder and other crimes. There is scope to provide a legal basis for State intervention in cases involving security threats in Nepali legislation, including the HTTCA, the *Foreign Employment Act 2007* or the *Labour Act 2017*.

Financial measures to prevent organized crime: There is scope to strengthen regulations of the financial sector to mitigate its exploitation by organized criminal groups, including for scam operations. For instance, a person opening multiple accounts and/or making hundreds of financial transactions per day should be a red flag that there is potential criminal activity taking place and trigger suspicious activity reports from banks. Nepal has been on the FATF 'grey list' since October 2025 and is taking steps on the seven points it has been advised to address to strengthen its anti-money laundering and counter-terrorism funding regime. Several of these points have implications for vulnerability to exploitation by organized criminals involved in scam operations.[163]

159 Govinda Prasad Guragain, Saroj Pokharel, Bhawani Shankar Adhikari, '*Impact of Transnational Organized Crime on Border Security in Nepal: Challenges and Strategies*', Global Journal of Humanities and Social Sciences, 6 September 2024.

160 2025 Trafficking in Persons Report: Nepal (US State Department, 2025)

161 2025 Trafficking in Persons Report: Nepal (US State Department, 2025)

162 Tourism Statistics Department, Tourism Statistics Report: December 2025, Ministry of Tourism Cambodia, 2025; Tourism Statistics Department, Tourism Statistics Report: December 2021, Ministry of Tourism Cambodia, 2021.

163 These seven points are: (1) improving its understanding of key money laundering / terrorist financing (ML/TF) risks; (2) improving risk-based supervision of commercial banks, higher-risk cooperatives, casinos, dealers in precious metals and stones (DPMS), and the real estate sector; (3) demonstrating the identification and sanctioning of materially significant illegal Money or Value Transfer Service (MVTS) / hundi providers, without hindering financial inclusion; (4) increasing capacity and co-ordination of competent authorities to conduct money laundering investigations; (5) demonstrating an increase in money laundering investigations and prosecutions; (6) demonstrating measures to identify, trace, restrain, seize, and, where applicable, confiscate proceeds and instrumentalities of crime in line with the risk profile; (7) addressing remaining technical compliance deficiencies in its targeted financial sanctions regime for terrorism financing and proliferation financing. Financial Action Task Force, "*Jurisdictions under Increased Monitoring*", 13 February 2026.

SRI LANKA




Photo: Magnific

COUNTRY SNAPSHOT

SRI LANKA

This country snapshot is based on open-source information as well as stakeholder consultations carried out in Sri Lanka with 22 people across nine different agencies. The content of this snapshot was further enhanced at the Regional Validation Workshop held in June 2026, attended by delegations from five countries, including six participants from Sri Lanka who provided extensive inputs. For more details, see Annex I on methodology.

TRAFFICKING FROM SRI LANKA

Sri Lankans are trafficked into forced criminality in scam operations in Myanmar, Cambodia and Lao PDR, with Thailand as the common transit route. Media reports point to hundreds of Sri Lankans having been repatriated from the region,[164] though the lack of centralised data means that the total number remaining in South-East Asian scam operations is not known. As elsewhere, authorities report that victims are mostly young males aged 20 to 35 with secondary or tertiary education, IT skills and English competence. They are typically lured by false promises of employment, commonly in Thailand, before being taken across the Mekong into Special Economic Zones (SEZs) in Myanmar, Cambodia or Lao PDR.[165] Sri Lankans in the UAE have also been recruited and trafficked into Myanmar.[166] Police have described large-scale scams conducted on the internet, particularly in the Northern and Eastern Provinces, where victims are misled by false promises of foreign employment and higher education opportunities in European countries, before being trafficked into forced criminality in scam operations.[167] According to media sources, Sri Lankans have also been identified in scam operations in Pakistan.[168]

The economic crisis of 2022 significantly increased vulnerability to trafficking, with hundreds of thousands of Sri Lankans searching for work abroad and falling prey to fraudulent job offers. In March 2023, the Sri Lanka Bureau of Foreign Employment (SLBFE) received complaints about trafficking into scam centres in Lao PDR, and two Sri Lankans were arrested

164 The Embassy and Permanent Mission of the Democratic Socialist Republic of Sri Lanka in Bangkok, *"25 Sri Lankans Rescued from Cybercrime Centers in Myawaddy, Myanmar Repatriated on 16 Decemeber 2025"*, 16 December 2025; Malay Mail, *"Malaysian among 39 foreigners rescued by Thai authorities after escaping alleged Myanmar scam gang to Thailand's Mae Sot"*, 26 November 2024; Associated Press, *"260 foreigners rescued in Myanmar from virtual slavery to be repatriated"*, Manila Bulletin, 14 February 2025; International Justice Mission, "*Nearly 260 Workers Freed from Myanmar Scam Compounds Identified as Trafficking Victims in Thailand*", 21 February 2025.

165 Emerging Trends of Human Trafficking in Sri Lanka: Trafficking for Forced Criminality (IOM, 2023); Transnational Organized Crime and the Convergence of Cyber-Enabled Fraud, Underground Banking and Technological Innovation in Southeast Asia: A Shifting Threat Landscape (UNODC, October 2024), p.47.

166 Ministry of Defence Sri Lanka, *"Press Release – NAHTTF issues a warning on the trafficking of Sri Lankans in the UAE to the scam centres in Myanmar"*, 11 November 2024.

167 Sri Lanka Police, "*Public Advisory on Internet-Based Financial Frauds Using Social Media Platforms"*, (Date accessed: 5 June 2026).

168 Sri Lanka Mirror, *"Pakistan police arrest 149 including 2 Lankans in 'scam call centre' raid"*, 11 July 2025.

for trafficking young people to Lao PDR, who were 'sold' to other actors in the scam industry. A policy brief published in the same year documented the repatriation of 41 Sri Lankans from SEZs in the Golden Triangle.[169]

Reports of Sri Lankan victims rescued from scam compounds in South-East Asia continued to mount throughout 2024 and 2025. An OHCHR report drawing on confidential victim accounts between 2021 and 2025 includes Sri Lankan victims' experiences.[170] In February 2025, there were reports on social media of victims from Sri Lanka being among those transferred to Thai authorities following a raid by the Democratic Karen Benevolent Army on scam centres in Myawaddy.[171]

There are also accounts of Sri Lankan perpetrators. According to media reports, an organised group of Sri Lankans based in both Lao PDR and Sri Lanka traffics victims into the Golden Triangle SEZ in the Mekong region, using the common modus operandi of: recruitment through fraudulent job offers in Thailand, confiscating passports on arrival, and forcing them to scam people into investing in cryptocurrency, with punishment for failing to meet daily targets.[172] Recruiters reportedly have connections in both the destination countries and in Sri Lanka, recruiting from among Sri Lankan workers already in the UAE.[173]

TRAFFICKING TO AND WITHIN SRI LANKA

Scam operations within Sri Lanka have been detected. Various raids of scam operations in 2024 and 2025 have resulted in arrests of over a thousand people from various countries around the world.[174] As elsewhere, many are lured to the country with promises of legitimate jobs.[175]

Sri Lanka is an increasingly recognized destination for displaced scam operations from South-East Asia, especially following the October 2025 sanctions imposed by the United States and United Kingdom on the known entities and individuals behind the scam compounds in Cambodia, Lao PDR, and Myanmar. Media reports of displacement of scam operations in South-East Asia into Sri Lanka increased over April and May of 2026.[176] Raids escalated in 2026, resulting in the arrest of over a thousand people in the first five months – most of them foreign nationals.

By way of example, according to media reports:

- On 23 February 2026, 21 foreign nationals were arrested in Cinnamon Gardens in Colombo.[177]

169 Emerging Trends of Human Trafficking in Sri Lanka: Trafficking for Forced Criminality (IOM, 2023), p.3.

170 "A Wicked Problem: Seeking Human Rights-Based Solutions to Trafficking into Scam Operations in South-East Asia", (Office of the United Nations High Commissioner for Human Rights (OHCHR), February 2026).

171 The Irrawaddy, *"261 scam center trafficking victims rescued in Karen, handed to Thailand"*, Facebook, 13 February 2025.

172 Uncovering the Spread of Human Trafficking for Online Fraud into Laos and Dubai (Humanity Research Consultancy, July 2024) p.6; Phontham Visapra, *"Sri Lankan Citizen Reveals Harrowing Details of Being Trafficked into Laos"* The Laotian Times, 13 February 2023.

173 Isuru Parakrama, *"SL nationals in UAE targeted for trafficking to Myanmar scam centres"*, Lanka News Web, 12 November 2024.

174 Inflection Point: Global Implications of Scam Centers, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), pp.10, 61; Agence France-Presse, *"Sri Lanka busts Chinese cybercrime racket"*, VOA, 13 October 2024.

175 Arundathie Abeysinghe, *"Chinese, Indians, and Thais arrested after online scam hubs found in Sri Lanka"*, Asia News, 17 October 2024.

176 Mav Rodriguez, *"Sri Lanka emerges as new front in Asia's scam crackdown"*, Insurance Business, 25 May 2026; The Island, *"Crackdown in Southeast Asia pushes scam networks to move to Lanka"*, 24 May 2026; Namini Wijedasa, *"Pig butchering scams in Lanka a developing threat, CBSL warns"*, The Sunday Times, 24 May 2026; Sri Lanka Police, *"Public Advisory on Internet-Based Financial Frauds Using Social Media Platforms"*, (Date accessed: 5 June 2026).

177 Rubatheesan Sandran, *"Sri Lanka nabs hundreds of foreigners in crackdown on cybercrime"*, UCA News, 13 May 2026.

- On 16 March 2026, 133 foreign nationals were arrested in Anuradhapura and Mihintale.[178]
- On 20 March, 77 foreign nationals were arrested in Kochchikade.[179]
- On 24 March, 17 foreign were arrested in Poddala.[180]
- On 27 March, 27 foreign nationals were arrested in one raid, and 18 foreign nationals in another.[181]
- On 3 April 2026, 152 foreign nationals were arrested for running a scam operation out of a hotel in Chilaw, a coastal city 80 kilometers away from Colombo. That raid reportedly followed a tip-off, with encountered foreign nationals deported for violating the terms of their visas by a chartered plane, and others arrested under criminal law.[182]
- On 22 April, another raid in Dungalpitiya resulted in the arrest of 30 foreign nationas.[183]
- On 2 May, police arrested 37 foreign nationals in Koswatte, while another raid at a residential complex in Kollupitiya lead to the arrest of 74 foreign nationals aged between 19 and 39, including 41 males and 33 females.[184]
- On 3-4 May, further arrests of over 100 foreign nationals from various countries, with charges reportedly laid under the *Computer Crime Act 2007*.[185]
- On 7 May, one of the biggest operations targeting suspected scam centres resulted in the arrest of 231 foreign nationals.[186]
- On 9 May, raids carried out in Colombo resulted in the arrest of 19 foreign nationals operating from a luxury apartment.[187]
- On 11-12 May 2026, raids conducted primarily in Galle, Hikkaduwa, and Midigama arrested 221 foreign nationals suspected of running international online fraud syndicates and abusing tourist visas.[188]

Authorities identify a range of risk factors to scam operations, including that the scam operations are controlled by foreign actors and often use business fronts involving suspicious IT or customer service jobs. Authorities also report that the perpetrators found to be leading these operations were primarily foreign nationals who have entered Sri Lanka on either business or tourist visas. In some cases, residence visas have been obtained through local companies. Authorities have pointed to the law enforcement actions in Myanmar, Cambodia and the UAE leading to some displacement of operations to peripheral countries.[189] However, Sri Lankan authorities

178 Ibid.

179 Faizer Shaheid, *"Nearly 700 foreigners arrested for cybercrime"*, The Morning, 10 May 2026.

180 Ibid.

181 Ibid.

182 AFP, *"Sri Lanka busts Chinese-led cyberscam ring in hotel raid"*, UCA News, 4 April 2026; Agence France-Presse, *"Sri Lanka arrests 152 in alleged Chinese-run cyberscam"*, Inquirer.Net, 4 April 2026.

183 Faizer Shaheid, *"Nearly 700 foreigners arrested for cybercrime"*, The Morning, 10 May 2026.

184 Rubatheesan Sandran, *"Sri Lanka nabs hundreds of foreigners in crackdown on cybercrime"*, UCA News, 13 May 2026; Faizer Shaheid, *"Nearly 700 foreigners arrested for cybercrime"*, The Morning, 10 May 2026.

185 Press Trust of India, *"Over 130 foreign nationals arrested in Sri Lanka for cyber fraud"*, The Pioneer, 4 May 2026.

186 Ishu Bandara, *"Sri Lanka a "paradise" for international scammers due to weak visa controls"*, The Sunday Times, 10 May 2026.

187 Rubatheesan Sandran, *"Sri Lanka nabs hundreds of foreigners in crackdown on cybercrime"*, UCA News, 13 May 2026.

188 Rubatheesan Sandran, *"Sri Lanka nabs hundreds of foreigners in crackdown on cybercrime"*, UCA News, 13 May 2026; Newswire, *"221 foreigners arrested on Tuesday over alleged cybercrime activities"*, 12 May 2026.

189 Inflection Point: Global Implications of Scam Centers, Underground Banking and Illicit Online Marketplaces in Southeast Asia (UNODC, April 2025), p.61.

report that they have found no substantial evidence yet that people encountered at scam operations detected so far have been trafficked into these situations.

Authorities consulted as part of the primary data collection report that scam operations in Sri Lanka have been found to be smaller in scale and in more agile settings, such as luxury houses, guesthouses, hotels and apartment buildings, than the large compound structure used in South-East Asia. The criminals involved rent premises at significantly inflated rates in exchange for the silence of landlords. Operations typically involve three tiers: (i) first-level call centre workers who make initial social media contact; (ii) 'harvesters' who build romantic or other relationships; and (iii) 'killers' who execute the actual fraud. Lower-tier workers may not know they are part of a scam. It was shared that the mastermind, who is generally unknown to those at lower tiers, typically receives proceeds through cryptocurrency and may operate from another jurisdiction. AI is used for real-time translation and voice alteration, and IP masking software disguises the location of operations.

VULNERABILITIES AND OPPORTUNITIES

Economic and political context: Sri Lanka's vulnerabilities are rooted in its prolonged economic crisis. Various factors have deepened the financial precarities in Sri Lanka, such as the 2022 economic collapse, the ongoing effects of Cyclone Ditwah in November 2025, and the economic impact of conflicts around the world, including threats to Gulf State remittances that make up a significant portion of its GDP. Concerns are mounting that the rising geopolitical instability could compromise the employment of Sri Lankans abroad.[190] Such economic shocks have compounded Sri Lanka's dependence on foreign investment. These economic and political contexts, combined with significant foreign direct investments in large-scale infrastructure projects, including in the SEZs, raises both challenges and opportunities. There is scope to leverage the relationships with countries in the region and beyond to strengthen investigative capacity in relation to cross-border trafficking in persons.

Infrastructure that is vulnerable to misuse: Sri Lanka's well-developed telecommunications infrastructure, strategic geographic location, established financial system and tourism-oriented visa policies (including visa-free entry for nationals of 40 countries) may make it an appealing environment to criminal actors.[191] Furthermore, there currently is no streamlined system to govern inward labour migration: the Ministry of Labour currently does not have oversight over whether workers brought in by companies are based on a real need, are appropriately qualified, or are screened prior to entry.

The casino and online gambling industry, regulated by the *Gambling Regulatory Authority Act No. 17 of 2025*, has grown rapidly. The Gambling Regulatory Authority is scheduled to be in place starting June 2026. In this respect, Sri Lanka has significant opportunity to learn from the Philippine experience, in particular the trajectory of the Philippine Offshore Gaming Operators (POGOs), which were exploited by organized criminals including to traffic people into forced criminality in scam operations, culminating in their eventual ban and the prosecution of high-level officials including the former mayor for her involvement in trafficking.[192]

There are 14 active Export Processing Zones (EPZs) and SEZs in the country, with more planned by the Board of

190 Anbarasan Ethirajan, *"Iran war lands 'triple blow' to flood-ravaged Sri Lankans"*, BBC, 12 April 2026.

191 Embassy of the People's Republic of China in the Democratic Socialist Republic of Sri Lanka, *'China is Firmly Committed to Cracking Down on Telecom and Online Fraud and Will Continue to Strengthen Law Enforcement Cooperation with Sri Lanka'*, 18 March 2026; Eligible must still apply for an Electronic Travel Authorization (ETA) before arriving.

192 Presidential Communications Office, '*PBBM signs into law Anti-POGO Act of 2025, institutionalizing ban on POGOs*', Office of the President of the Philippines, 29 October 2025; Department of Justice, '*DOJ Scores Double Conviction against Alice Guo et al. for Qualified Trafficking in Persons; Kong Ket Koon for Illegal Possession of Prohibited Drugs*', Republic of the Philippines, 20 November 2025.

Investment.[193] The most prominent SEZ is the Colombo Port City, the large-scale land reclamation project that has changed the skyline and landscape of the capital, along with the City of Dreams resort tied closely to it.[194] As in South-East Asia, there is lack of oversight by law enforcement authorities in such zones due to the erroneous perception that they are outside the jurisdiction of law enforcement authorities. There is scope to learn from the experiences of South-East Asian countries, where SEZs were misused by organized crime groups for various criminal activities.

COUNTER-TRAFFICKING STAKEHOLDERS IN SRI LANKA

The National Anti-Human Trafficking Task Force (NAHTTF) under the Ministry of Defence is the lead agency that convenes its 23 members on a monthly basis (or more often as needed). NAHTTF was transferred from the Ministry of Justice to the Ministry of Defence in July 2021, with the aim of improving coordination between investigation and intelligence services.

Criminal justice response involves the Sri Lankan Police, operating under the Inspector General of Police (IGP) and the Attorney General's Department. A Human Trafficking, Human Smuggling and Maritime Crimes Division under the Criminal Investigation Department (CID) was established in 2021. The Human Trafficking, Human Smuggling and Maritime Crimes Division of Sri Lankan Police, which is a part of the Criminal Investigation Department, is the counter-trafficking focal point. The Organized Crime and Human Trafficking Unit within the Attorney General's Department handles trafficking cases, in close cooperation with the CID and the NAHTTF.

In February of 2025, the new government established a Central Crime Investigation Bureau (CCIB) to operate six divisions, all of which are of relevance to responding to trafficking into forced criminality in scam operations.

The Ministry of Labour, through its Human Trafficking Unit at the Sri Lanka Bureau of Foreign Employment (SLBFE), refers cases where trafficking indicators are present to the Human Trafficking, Human Smuggling and Maritime Crimes Division at CID.

Prosecution

Criminalization and jurisdiction: The government of Sri Lanka ratified the UNTOC in 2006 and the Trafficking Protocol in 2015 but has yet to accede to the Smuggling of Migrants Protocol. There is no specific legislation to address organized crime in Sri Lanka, but a proposed new law has been announced and is under development at the time of this writing. Section 360C of the *Penal Code (Amendment) Act No. 16 of 2006* captures a range of exploitative forms, including forced or compulsory labour or services, slavery or servitude.

193 Board of Investment of Sri Lanka, *"The Best Destination In Asia To Grow Your Business"*, 2026.

194 Colombo Port City Economic Commission, *"Colombo Port City SEZ: Driving Sri Lanka's Growth and Global Business Appeal"*, 24 October 2024.

NATIONAL STRATEGY AGAINST ORGANIZED CRIME IN SRI LANKA

Sri Lanka's forthcoming National Strategy against Organized Crime refers to fraud as a form of organized crime in Sri Lanka. It refers to the use of fraud to recruit victims of trafficking into forced criminality. The threat is described as follows:

Fraud as a form of organized crime in Sri Lanka is a growing and multifaceted issue, encompassing financial crimes, cyber fraud, and relationship fraud used to facilitate trafficking in persons. The rise of online banking and e-commerce has increased online financial fraud, with foreign nationals involved in sophisticated cyber scams such as investment fraud, romance baiting, phishing, and identity theft. Organized crime groups exploit informal value transfer systems to bypass foreign exchange regulations, facilitating illicit payments for goods, drugs, and contract killings, while also enabling tax evasion and money laundering. Fraud is also used to recruit victims of trafficking through false job offers and relationship scams, ensnaring victims into forced criminality and sexual exploitation. These highly coordinated, transnational criminal networks operate across multiple countries, highlighting the complexity and seriousness of fraud-related organized crime in Sri Lanka.[195]

Law enforcement and investigation: Sri Lanka has taken actions against those involved in trafficking of nationals into scam operations abroad both under the *Penal Code (Amendment) Act No. 16 of 2006* and under the *Sri Lanka Bureau of Foreign Employment Act No. 21 of 1985*. In relation to potential trafficking into scam operations in Sri Lanka, raids in urban and rural areas of the country, triggered by tip-offs, have found scam operations of several hundred people comprising several nationalities, but none have been found to involve trafficking.

Authorities point to some successes in carrying out financial investigations to identify members of trafficking networks and roles of perpetrators in organized structures. Authorities also stressed the need for stronger intelligence-led investigations, open-source intelligence (OSINT) monitoring, and stronger regional cooperation. At a practical level on the ground, police report their key challenge to be the very limited time that only a limited number of police officers have to process a significant number of individuals encountered, as well as language barriers with them. Obtaining digital evidence from phones and computers for computer-related crimes is likewise challenging, meaning that persons are generally detained for immigration offences for overstaying tourist visas. Immigration offences and fines under the *Computer Crime Act No. 24 of 2007* are nominal and insufficient to deter offending. Counter-trafficking capacity, particularly beyond urban centres, is low and results in many officers applying easier offences. It was said that the technological capacity to investigate cyber-related crimes, forensic and financial investigations, and to obtain information from social media platforms is insufficient.

Prosecution and adjudication: Despite the rise in detection of scam operations, there is inconsistent screening and identification of potential victims of trafficking. As a result, prosecution and conviction rates for trafficking offences are low. The complexity of these cases has meant that no cases of trafficking into scam operations have made their way to the courts. Cases may be filed as labour disputes or immigration issues, rather than being pursued as serious crime. As elsewhere, cases

195 National Strategy against Organized Crime in Sri Lanka (January 2025, draft), p.6.

depend on victim testimony, but victims are unwilling to participate in lengthy court processes that can take seven or more years to conclude. Testimony via video link is permitted in law and are used to obtain evidence in Sri Lankan courts, with technical assistance provided by the Victims and Witness Protection Authority of Sri Lanka.

International cooperation: Sri Lanka has strong legal bases for international cooperation, including legislation on both extradition and mutual legal assistance as well as extradition agreements with several countries. Despite its strong legislative framework, there is overall hesitance in attempting international cooperation, owing to concerns about its slowness and limited or lack of successes achieved. As a result, investigations tend to be restricted to evidence available within the jurisdiction and opportunities to investigate transnational organized crime are not pursued. The recently finalized National Strategic Action Plan to Monitor and Combat Human Trafficking 2026–2030 points to the UN Cybercrime Convention as an opportunity to enhance cooperation. Informal international cooperation in the form of training and technical assistance from UNODC, the United States and Australia, as well as support with forensic evidence collection for prosecutions abroad provided by China, have been appreciated by Sri Lankan stakeholders.

Protection

Screening and identification: There is strong acceptance by authorities that Sri Lankans involved in scam operations abroad may be victims of trafficking, but the same perception is not applied in cases involving scam operations within Sri Lanka. To date, no victims have been identified in scam operations. Stakeholders report that SOPs on identification currently do not address the specific context of trafficking in scam operations.

Furthermore, the fact that so many persons encountered in scam operations, many of whom are foreign nationals, do not speak (or pretend not to speak) English or even their own national language, frustrates communication. The large number of persons encountered at these premises, sometimes exceeding 100 individuals, as well as their locations (many in remote locations) mean that the human resources required to conduct proper screenings are often lacking.

A commonly held perception is that victims would identify themselves, notwithstanding the many reasons they do not, including out of fear that they will be detained and deported. This fear is perhaps reasonable given the routine deportation of foreign nationals who are encountered in scam operations. The view that people are not victims because they willingly came to the country, as opposed to having been deceived, raises questions about the extent to which other means and their relevance to consent are understood. It is possible that screening processes are influenced by the practical challenges associated with responding to a rise in victim numbers through under-resourced trafficking mechanisms.

Victim and witness protection: There are SOPs in place to serve as guidance for the identification, screening, and referrals of both adult and child victims of trafficking. Sri Lanka has a protection and assistance framework in its National Action Plan, but it is insufficiently resourced to provide victims with effective support under it. Victims of crime also have recourse to the *Assistance to and Protection of Victims of Crime and Witnesses Act, No. 10 of 2023*. The operationalization of a National Referral Mechanism is a key priority for Sri Lanka so that identified victims of trafficking are given appropriate protection and assistance. It was shared that the current shelter system is oriented towards women and child victims, resulting in risks of adult male victims being inadequately protected.

Repatriation: There are no specific legislative provisions governing the return and repatriation of Sri Lankan victims to Sri Lanka, nor of foreign victims from Sri Lanka. While there have been several successful cases of repatriation from the South-East Asian countries,

there is overall lack of government resources to support victims abroad, and lack of coordination between relevant agencies pose challenges. Coordination may be ad hoc, rather than informed by standard processes. The lack of diplomatic presence in Cambodia means that victims must get themselves to Thailand before being repatriated.

In the absence of sufficient government funding allocated to repatriation, it is generally paid for by external parties. In some cases, victims may have to raise funds through family members or seek support from elsewhere, including through international organisations, NGOs or CSOs. Only nationals who travel abroad through regular channels are eligible to access the resources of the Sri Lankan Bureau of Foreign Employment (SLBFE) – that migrant workers register and pay into (per Article 53(3) of the *Sri Lankan Bureau of Foreign Employment Act No. 21 of 1985*) – which victims of trafficking have not.

Foreign victims of trafficking in Sri Lanka are returned to their countries as quickly as possible and do not benefit from a reflection period. Sections 27 to 29 of the *Immigrants and Emigrants Act No 20. of 1948* govern the removal of non-citizens from Sri Lanka, and Sections 30 to 32 concern deportation. Foreigners encountered in scam compounds are not screened as a matter of course, in part due to the sheer number of people being encountered at the same time, and are instead dealt with through measures relating to immigration offences on the basis that they have overstayed their tourist visas. Officials reported, and media reports confirm, that when large numbers of a specific nationality are encountered, they may be returned through chartered flights in cooperation with the country of origin.[196] Those who remain in Sri Lanka are investigated and charged under the *Computer Crime Act No. 24 of 2007*.

Non-punishment principle: There is no specific non-punishment provision provided in relation to victims of trafficking in persons, although Section 87 of the *Penal Code 1885* provides some protection for persons compelled by threats. There is understanding that Sri Lankan victims involved in scam operations abroad may include victims of trafficking who have been deceived, often owing to their vulnerable conditions in Sri Lanka, and trapped in exploitation by debt bondage and other factors. However, the same approach is not applied in relation to persons involved in scam operations in Sri Lanka, who are considered willing criminals.

Since scam operations were detected in Sri Lanka from 2024, there have been hundreds of people from both within and outside the region encountered during raids of scam centres in hotels, private residences, and other locations. That there are inconsistencies in screening processes point to the possibility that not all would have been effectively screened prior to being arrested for crimes related to the *Computer Crime Act No. 24 of 2007*, or detained and/or fined for violating the terms of their tourist visas. Compounding challenges arise from the reality that some victims may choose to return to scam operations and shift from being victims of trafficking to perpetrators of crime, making the application of the non-punishment principle even more challenging.

196 Swapna Sarita Mohanty, *"Sri Lanka Deports 85 Chinese Nationals in Major Cybercrime Crackdown"*, The CSR Journal, 20 June 2025; Rubatheesan Sandran, *"Sri Lanka nabs hundreds of foreigners in crackdown on cybercrime"*, UCA News, 13 May 2026; Daily FT, *"Sri Lanka deports 125 Chinese nationals over online financial fraud"*, 31 March 2026.

Prevention

Awareness raising: The Ministry of Defence, the National Anti-Human Trafficking Task Force (NAHTTF) and Sri Lankan embassies have issued warnings about large-scale recruitment of Sri Lankans and others into forced labour in scam centres in South-East Asia. Ad hoc campaigns have been mounted by the NAHTTF including to raise awareness of the risk of falling prey to offers that lead to exploitation in forced criminality in scam operations. The Sri Lanka Bureau for Foreign Employment (SLBFE) also integrates counter-trafficking messaging into its campaigns; it found that risk-taking behaviour is more likely to be influenced by messages that focus on the impact on the potential victim's family rather than on the potential victim him or herself. Law enforcement websites and social media sites have been harnessed to raise awareness among vulnerable people, but there is concern that these messages are not necessarily reaching their target audience.

Safe labour migration: The Sri Lanka Bureau of Foreign Employment (SLBFE) screens prospective migrants and delivers pre-departure trainings. It has initiated some prosecutions of recruitment agencies (primarily for non-trafficking related offences, including fraudulent document offences and withholding of wages) but also receives complaints relating to trafficking from migrant workers who have been deceived by fraudulent job offers or educational opportunities abroad.

There is currently no streamlined system to govern inward migration. Where a company that is registered in Sri Lanka requires workers, the company can bring them into the country. This process falls within the mandate of the Board of Investment – the Ministry of Labour does not have oversight of whether the people brought in are as per real needs, are appropriately qualified, whether they return to their countries after their work is complete, nor whether police checks and screenings are carried out to identify potential victims or perpetrators among them.

Border and document measures: Offences relating to document forgery are contained in the *Penal Code 1885*,[197] the *Immigrants and Emigrants Act No. 20 of 1948*, and *Sri Lankan Bureau of Foreign Employment Act No. 21 of 1985*. Visa-free travel is allowed to nationals of 40 countries, though such eligible nationals must still apply for an Electronic Travel Authorization (ETA) before arrival.[198] Tourism is a key component of Sri Lanka's economy that is supported by a liberal visa regime. Some view that Sri Lanka's 'relatively lenient visa policies' and 'simplified entry procedures introduced to boost tourism' have made it attractive for organized crime behind scam operations to move into Sri Lanka.[199]

Intercepting potential victims before the travel: Restrictions on young women from pursuing opportunities abroad, particularly those who have children under the age of 18 and additional requirements for women under 45, has raised concern that this demographic is vulnerable to trafficking for want of legal opportunity to travel abroad. No equivalent measures are taken to protect people who are vulnerable to trafficking into scam operations.[200]

Sri Lankan victims in scam operations abroad commonly travelled on tourist visas, having been misled that they can convert their visas into work visas in the destination country. As observed elsewhere, a commonly cited limitation to intervening to prevent their trafficking was concern that stopping their departure, even in the face of strong indicators, would violate their freedom of movement. An effort to balance such right to freedom of movement against other countervailing human rights considerations is needed to fulfill the state obligations to adequately protect its nationals from trafficking in persons, slavery, torture, or murder. Measures aimed at preventing trafficking are most effective when informed by robust evidence, risk assessments, and clear safeguards to ensure that interventions are proportionate, non-discriminatory, and consistent with human rights standards.

197 Sections 455 to 464, Penal Code 1885.

198 Sri Lanka Immigration and Emigration, *"Sri Lanka Electronic Travel Authorization System"*, (Date accessed: 5 June 2026).

199 AFP, *"Sri Lanka busts Chinese-led cyberscam ring in hotel raid"*, 4 April 2026; Ishu Bandara, *"Sri Lanka a "paradise" for international scammers due to weak visa controls"*, The Sunday Times, 10 May 2026.

200 However, there was an example shared of a returned victim from scam operations abroad, who was initially prevented from leaving Sri Lanka again for having initially left without proper authorization.

ANNEX I: METHODOLOGY

This report is based on an extensive desk review of open-source materials pertaining to all five countries as well as 35 in-country and online consultations with a total of 103 people, carried out between March and May 2026, in four of the five countries included in this report.

- From 25 to 27 March 2026 in Kathmandu, Nepal, ten meetings were held with 25 people (21 men and 4 women) across ten agencies.
- From 29 to 31 March 2026 in Dhaka, Bangladesh, ten meetings were held with 44 people (being 39 men and 5 women) across ten agencies.
- From 2 to 5 April 2026 in the Maldives, six meetings were held with 13 people (4 men and 8 women) across six different agencies.
- From 7 and 10 April 2026 in Colombo, Sri Lanka, eight meetings were held with 21 people across eleven different agencies, and an additional online meeting was held with one person on 4 May 2026 (15 men and 7 women).

Table 8: Number of consultation meetings and participants

Country	No. Meetings	No. Participants	Male	Female
Bangladesh	10	44	39	5
Maldives	6	12	4	8
Nepal	10	25	21	4
Sri Lanka	9	22	15	7
TOTAL	**35**	**103**	**79**	**24**

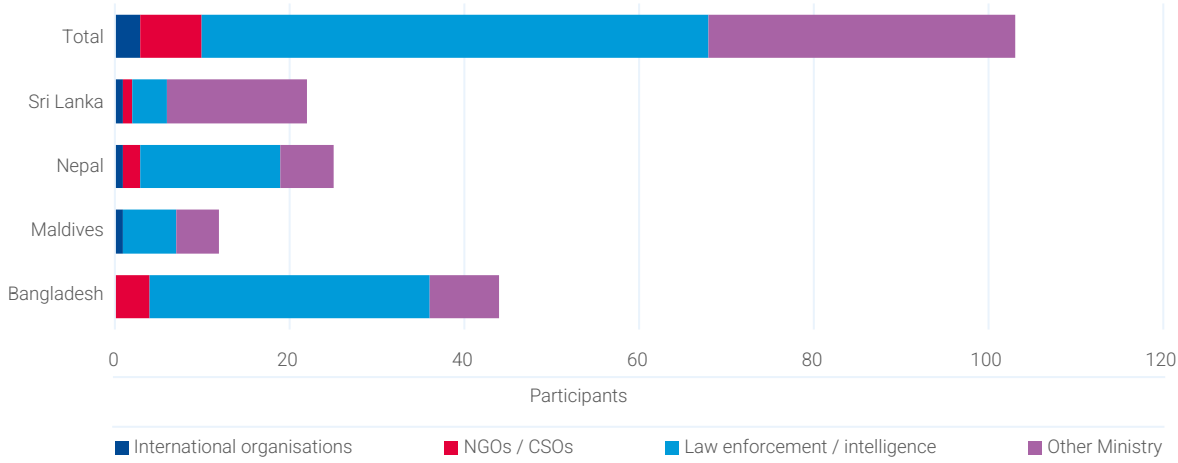
The consultations were conducted and inputs were received on the basis of non-attribution to the participating individuals and institutions. Therefore, the findings across both the regional analysis and the country snapshots are presented in a synthesised manner.

Further to those consultations, a Regional Validation Workshop was held from 2 to 4 June 2026 in Colombo, Sri Lanka, to which all five countries covered under the report were invited to participate. The five participating countries (Bangladesh, Bhutan, Maldives, Nepal and Sri Lanka) reviewed the draft report and provided feedback.

Participant profile

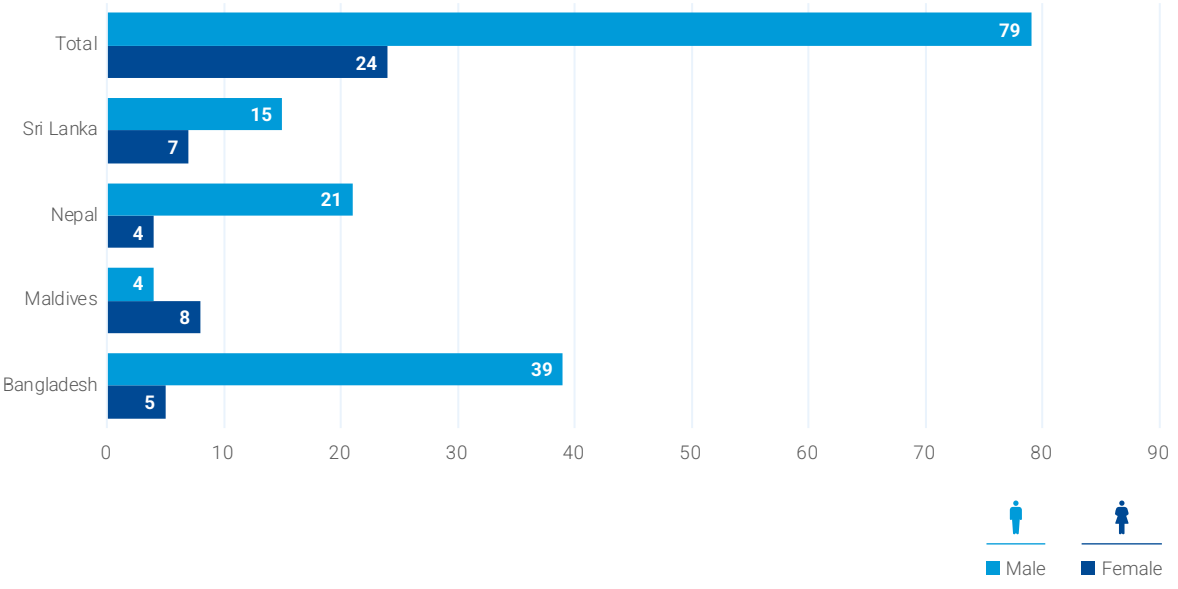
The profile of participants across the consultations was diverse. More than half of participants (56%) were officials of law enforcement and intelligence agencies, and 33% were representatives of other government agencies, such as Attorney General Offices to Ministries of Foreign Affairs, Health, Law, Labour among others. Less than 10% of the participants consulted were non-government actors, whether international, non-governmental or civil society organisations.

Table 9: Profile of participants



Nearly a quarter of participants (23%) were female, the remaining 77% (being 79 of the 103 people consulted) being male.

Table 10: Profile of participants by country and sex



REGIONAL VALIDATION WORKSHOP

A Regional Validation Workshop was convened from 2 to 4 June 2026 in Colombo, Sri Lanka for the purpose of reviewing and validating the key findings and recommendations put forward in the initial draft of this report. To facilitate meaningful review and inputs, the draft report, together with their country snapshot, was shared with national stakeholders in advance of the workshop.

The workshop was attended by a total of 28 representatives from five countries; Bangladesh (n=6), Bhutan (n=6), Maldives (n=6), Nepal (n=4) and Sri Lanka (6).

Each of the country delegations sent representatives from their counter-trafficking agencies (n=3), law enforcement or intelligence agencies (n=12), prosecutorial services, being either from Ministries of Justice or Attorney General Offices (n=5) and from other government agencies of relevance to the issue (n=8).

Across the three days of the workshop, participants provided an update of their domestic situation and response to trafficking into forced criminality in scam operations. They were also presented with the key findings and recommendations provided in the draft regional report. Participants were given time to discuss and formulate their detailed feedback to those findings and recommendations in both single- and multi-country discussion groups, which were later shared in the plenary sessions.

Participants were also invited to provide further written comments to the report in addition to their oral responses presented during the Regional Validation Workshop, with a particular focus on their country-specific snapshots. The inputs received both at the workshop and in written form were integrated into the revised version of this report.

LIMITATIONS

There are several limitations to this report. The desk-based review was constrained by the limited availability of official data about this specific crime type across the South Asian region. Additionally, only open-source and English language information was reviewed.

The number and profile of participants in stakeholder consultations was uneven across the countries, potentially resulting in slanted perspectives. In each country, the number of people consulted varied drastically from 44 in Bangladesh (accounting for almost 43% of total participants) to only 12 in the Maldives (less than 12%). Relatively few individuals (10 people, being less than 10% of participants) from non-government entities were consulted. While it is appropriate for an exercise of this nature that the majority of participants were criminal justice practitioners, additional consultations with non-government actors would have offered helpful insights. That said, this limitation is arguably balanced out by the fact that most of the available relevant literature (on which the open-source research is based) is from non-governmental rather than government sources.

Finally, only four of the five countries included in this report were visited for in-country consultations, meaning that country insights are unevenly represented. This balance was remedied in part by the participation of delegates from the Royal Government of Bhutan at the Regional Validation Workshop and their subsequent provision of written comments on their country report.

ANNEX II: TREATIES

Table 11: Crime Instruments

Country	United Nations Convention against Transnational Organized Crime	Protocol to Prevent, Suppress and Punish Trafficking in Persons	Protocol against the Smuggling of Migrants by Land, Sea and Air	United Nations Convention against Corruption	United Nations Convention against Cybercrime*	Council of Europe Convention on Cybercrime
Bangladesh	13 Jul 2011 a	12 Sep 2019 a	-	27 Feb 2007 a	-	-
Bhutan	20 Feb 2023 a	20 Feb 2023 a	-	27 Sep 2023 a	-	-
Maldives	4 Feb 2013 a	14 Sep 2016 a	-	22 Mar 2007 a	25 Oct 2025 s	-
Nepal	23 Dec 2011	16 Jun 2020 a	-	29 Mar 2011	-	-
Sri Lanka	22 Sep 2006	15 Jun 2015	13 Dec 2000 s	31 Mar 2004	25 Oct 2025 s	1 Sep 2015

*Not yet in force

Table 12: Human Rights Instruments

Country	International Covenant on Civil and Political Rights	International Covenant on Economic, Social and Cultural Rights	International Convention on the Elimination of All Forms of Racial Discrimination	Convention on the Elimination of All Forms of Discrimination against Women Discrimination against Women	Convention on the Rights of the Child	Convention on the Rights of Persons with Disabilities
Bangladesh	6 Sep 2000 a	5 Oct 1998 a	11 Jun 1979 a	6 Nov 1984 a	3 Aug 1990	30 Nov 2007
Bhutan	-	-	26 Mar 1973 s	31 Aug 1981	1 Aug 1990	13 Mar 2024
Maldives	19 Sep 2006 a	19 Sep 2006 a	24 Apr 1984 a	1 Jul 1993 a	11 Feb 1991	5 Apr 2010
Nepal	14 May 1991 a	14 May 1991 a	30 Jan 1971 a	22 Apr 1991	14 Sep 1990	7 May 2010
Sri Lanka	11 Jun 1980 a	11 Jun 1980 a	18 Feb 1982 a	5 Oct 1981	12 Jul 1991	8 Feb 2016



United Nations
Office on Drugs and Crime